

**RESTRICTIONS ON CROSS-BORDER
MARKETING AND SELLING OF
FUNDS AND INVESTMENT MANAGEMENT & ADVISORY SERVICES
INTO
SPAIN**

PART B

22 December 2025

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1. BACKGROUND

1.1 Introduction

Please refer to the *Instructions to Counsel* that you have been sent in conjunction with this Part B of the Memorandum.

When preparing responses to Part B of the Memorandum, please also refer to the *European Framework Document* that you have been sent in conjunction with the Memorandum.

1.2 Structure of Part B

The questions in Part B of the Memorandum are set out in sections 3 to 11. These sections comprise the **Part B Memorandum Subject Matter**.

1.3 Definitions

Please refer to the definitions set out in Appendix 1 of the *European Framework Document*. Terms not defined in Appendix 1 of the *European Framework Document* have the following meaning:

Active Marketing cross-border	Marketing activities which extend beyond Passive Marketing. Where: (a) clients, or prospective clients, are located in your jurisdiction; (b) the OFI is headquartered in a jurisdiction different to your own and either has no licensed office in your jurisdiction or is not carrying out the marketing or selling through any licensed office in your jurisdiction; and (c) employees of the OFI are based in a different jurisdiction to your own and are employed by an entity within the OFI group which is headquartered in a different jurisdiction to your own.
EEA Passporting Entity	A MiFID II Investment Firm, CRD Credit Institution, UCITS ManCo or EEA AIFM authorised in another EEA country with appropriately scoped permissions and which has exercised its right to passport into the jurisdiction on the basis of its home state authorisation.
Fly-In Meeting	Employees of the OFI flying into your jurisdiction to carry out marketing activities.
Fly-Out Meeting	Marketing activities which take place offshore and which are directed at a person who is normally resident in your jurisdiction.
Fund	A collective investment undertaking, with or without legal personality which raises capital from a number of investors with a view to investing it in accordance with a defined investment policy for the benefit of those investors. For the purposes of this Memorandum, local counsel have been instructed to assume that all Funds are offshore.
OFI	A bank, asset manager or other offshore financial institution e.g. distributor, which is marketing or providing financial products or services and is headquartered in a different jurisdiction to your jurisdiction.

Part B Memorandum Subject The contents of sections 3 to 11 of Part B of this Memorandum.
Matter

Passive Marketing Marketing or selling following an unsolicited approach by an investor.
May also be known as “reverse-enquiry” or “reverse-solicitation”.

1.4 Executive Summary

Marketing Funds via AIFMD Marketing Passport or PPR

For background on the AIFMD and other pieces of EU legislation referred to in this Memorandum, please refer to the *European Framework Document*.

Pre-Marketing

The Spanish implementation of the CBDF Directive does not specifically address pre-marketing by non-Spanish AIFMs. However, local counsel's understanding is that following a passporting philosophy, pre-marketing activity in Spain by an EEA AIFM of an EEA AIF (i.e. CBDF Pre-Marketing) should be governed by the law of that AIFM's home Member State. Pre-Marketing regime will also apply to non-EEA AIFs managed by EEA AIFMs authorised in Spain who can pre-market the AIF prior to its register. Non-EEA AIFMs authorised in Spain can also pre-market an AIF prior to its registration. Please refer to section 4.4 (c) of this Memorandum for further detail.

When conducting pre-marketing it will be necessary to submit the Informal Letter and comply with the CBDF Pre-Marketing Conditions and the CBDF Third-Party Requirements.

Publicity Law and Advertising Requirements in Circular 2/2020

Regardless of whether an AIF is marketed/sold via the AIFMD Marketing Passport or the PPR, it is necessary to consider the Publicity Law Requirements and the advertising requirements in Circular 2/2020. These are also relevant to a UCITS that is being actively marketed/sold.

AIFMD Marketing Passport

An EEA AIFM marketing EEA AIF to Professional Investors in Spain must do so via the AIFMD Marketing Passport. A Representative must be appointed. When providing services without a branch (*without permanent establishment*) the EEA AIFM shall also appoint a Spanish local agent for tax purposes. These roles may be assumed by the same entity provided that the relevant requirements are all met.

Private Placement Regime for AIFs

(i) An EEA AIFM marketing non-EEA AIF into Spain; or (ii) a non-EEA AIFM marketing EEA or non-EEA AIF into Spain, can do so via the Spanish PPR (please refer to section 7 of this Memorandum for further detail), if done in compliance with the requirements deriving from AIFMD and the relevant Additional Local Requirements. In respect of an Open-Ended AIF, the Additional Open-Ended AIF Requirements must be met. A Representative must be appointed. When providing services without a branch (*without permanent establishment*) the EEA AIFM or non-EEA AIFM shall also appoint a Spanish local agent for tax purposes. These roles may be assumed by the same entity provided that the relevant requirements are all met.

Licensing Requirement

Active Marketing/selling by an OFI of an AIF will trigger the Licensing Requirement and the OFI will need to be an EEA Passporting Entity or an Authorised Non-EU Entity. If/when the necessary pre-requisites are met (e.g. necessary equivalence determinations are in place), it may also be possible in the future for a Third Country Passporting Entity to undertake Active Marketing/selling of an AIF in Spain.

Other Points to Consider

Active Marketing of Closed-Ended Funds issuing Transferable Securities (other than units shares therein) will be subject to the Prospectus Requirement.

Non-Passported UCITS Funds cannot be actively marketed/sold in Spain. To actively market/sell a UCITS Fund to investors in Spain it is necessary to complete the UCITS notification process.

Passive Marketing/selling of AIFs is not caught by the AIFMD. Passive Marketing of AIFs and/or UCITS Funds is permitted in Spain provided that the Conditions for Permitted Reverse Enquiry are met. It is necessary to consider the 18-Month Restriction on Reverse Enquiry Following Pre-Marketing an AIF.

Marketing Funds to the public

UCITS Funds may be marketed/sold to the public subject to completion of the UCITS notification process. In addition UCITS who intend to market their shares or participation in Spain have to consider the requirement for:

1. a Representative;
2. for self-managed UCITS, a distributor (based in Spain) which will be responsible for submitting the number of shareholders and equity (tax information); and
3. an entity (based in Spain) who will be responsible for the payment to the CNMV of any applicable fees in respect of UCITS Funds.

These roles may be assumed by the same entity provided that the relevant requirements are all met. The person/entity that takes on the role in (2) and/or (3) shall be a Spanish person/entity. Pursuant to article 15 of the Law 35/2003, UCITS will not be obliged to be based in Spain or to designate a third-party based in Spain to carry out facilities (i.e. contact point with the CNMV) to Professional Investors and to Retail Investors.

AIFs may be marketed/sold to the public provided the Conditions for Marketing an AIF to Retail Investors are met. When providing facilities to Retail Investors, AIFs will not be obliged to be based in Spain or to designate a third party based in Spain (art. 75 ter Law 22/2014). However, when providing services without a branch (*without permanent establishment*) the EEA AIFM and the non-EEA AIFM shall also appoint a Spanish local agent for tax purposes. Also, in accordance with Circular 2/2011 it is necessary to consider the requirement for a Representative. These roles may be assumed by the same entity provided that the relevant requirements are all met.

Passive Marketing/selling is permitted to Retail Investors in Spain provided that the Conditions for Permitted Reverse Enquiry are met.

Investment Management & Advisory Services (IMAS)

Passive Marketing/provision of IMAS is permitted if the Conditions for Permitted Reverse Enquiry are met.

Marketing/provision of IMAS is not caught by the AIFMD. Active marketing and provision by the OFI of IMAS is, however, caught by the Licensing Requirement and the OFI will need to be an EEA Passporting Entity or an Authorised Non-EU Entity. If/when the necessary pre-requisites are met (e.g. necessary equivalence determinations are in place), it may also be possible in the future for a Third Country Passporting Entity to undertake Active Marketing or provision of IMAS in Spain.

When marketing IMAS it is also necessary to consider the Publicity Law Requirements and the advertising requirements in Circular 2/2020.

Segregated Managed Accounts, Single Investor Vehicles and Family Office Undertakings

Providing/marketing these vehicles will not be caught by the AIFMD if they are structured to fall outside the definition of an AIF. No special rules apply in Spain when IMAS is marketed or provided in respect of a Single Investor Vehicle or a Family Office Undertaking or a Segregated Managed Account.

DEFINED TERMS:

18-Month Restriction on Reverse Enquiry Following Pre-Marketing an AIF Local counsel understand that the restriction applies to all **Professional Investors** in Spain who make a subscription within 18 months after an AIFM has started pre-marketing in Spain irrespective of whether such investors were the actual recipients of the pre-marketing. However, the CNMV has not issued any communication or guidance in this regard and therefore local counsel's interpretation might be modified in the future.

Additional Local Requirements and Additional Open-Ended AIF Requirements See section 4.1(a) of the Memorandum for more details.

AIFMD Marketing Where a particular activity amounts to AIFMD Marketing it triggers compliance with the various AIFMD requirements applicable to marketing AIFs (including the requirement to make a notification to use the AIFMD Marketing Passport or the requirement to obtain authorisation to use the private placement regime, as applicable).

Following the implementation of the CBDF Directive in Spain, active marketing activities relating to an AIF that go beyond the scope of **CBDF Pre-Marketing** or **Non-CBDF Pre-Marketing** (to the extent applicable) constitute AIFMD Marketing and trigger the requirements referred to above.

Authorised Non-EU Entity An entity that is authorised in Spain by means of a local licence (which is not a full MiFID II licence as it only allows such entity to provide services in Spain). A non-EU OFI may be authorised through (i) a branch or, (ii) provided that certain conditions are met, on a cross-border basis in Spain (*without the establishment of a branch*).

The conditions for acting without the establishment of a branch are that:

- there must be reciprocity in the third-country firm's country of origin, allowing Spanish credit institutions and investment firms to provide investment services under similar conditions; and
- provision of investment services must be to:
 - eligible counterparties; or
 - per se professional clients (provided that the services are provided to fewer than 20 per se professional clients or the income from the provision of these services to per se professional clients is under EUR2 million).

The CNMV may also grant permission for a third-country firm to provide investment services on a cross-border basis where deemed appropriate in exceptional circumstances.

In any event, a third-country firm providing investment services in Spain on a cross-border basis will be required to obtain prior authorisation from the CNMV and will be subject to the supervision of the CNMV. For the requirements applicable to third-country firms providing investment services in Spain, please refer to Section 7.3(a)(i).

CBDF Pre-Marketing The CBDF Directive amended the AIFMD by adding a new definition of 'pre-marketing' as follows (our emphasis in bold):

*“[the] provision of **information or communication**, direct or indirect, on **investment strategies or investment ideas** by an EU AIFM or on its behalf, to potential **professional investors** domiciled or with a registered office in the Union in order to **test their interest** in an AIF or a compartment which is **not yet established**, or **which is established**, but not yet notified for marketing in accordance with Article 31 or 32, in that Member State where the potential investors are domiciled or have their registered office, and which in each case does not amount to an offer or placement to the potential investor to invest in the units or shares of that AIF or compartment;”*

The Spanish law implementation of the definition of CBDF Pre-Marketing refers to Spanish AIFMs only and does not specifically capture the position that applies in respect of EEA AIFMs and their EEA AIFs.

Local counsel's understanding is that following a passporting philosophy, pre-marketing activity in Spain by an EEA AIFM of its EEA AIF should be governed by the law of that AIFM's home Member State. They note, however, that Spanish law is not as clear on this point as it could be.

CBDF Pre-Marketing Conditions The CBDF Directive prescribes the types of documents which can be used to conduct **CBDF Pre-Marketing** and whether they can be in draft or final form. Whether a document falls within the scope of CBDF Pre-Marketing will be an issue of substance and not just form (i.e. being labelled as "draft").

In Spain these conditions are also expected to apply to **Non-CBDF Pre-Marketing**.

The conditions include the following:

- It is important to make sure that the information provided does not amount to an offer or placement to the potential **Professional Investors** to invest in the units or shares of that AIF or compartment i.e. the investors cannot actually acquire interests in the AIF through pre-marketing.
- Appropriate disclaimer to be included - See Appendix 1.G of the Memorandum.
- All AIFMs shall ensure that the pre-marketing is adequately documented.
- Note that following any CBDF Pre-Marketing, an 18-month restriction will apply on being able to rely on a reverse enquiry from an investor in respect of the shares of an AIF referred to in the pre-marketing activities or the shares of an AIF set up as a result of the pre-marketing activities. Local counsel understand that the restriction applies irrespective of whether such investors were the actual recipients of the pre-marketing. However, the CNMV has not issued any communication or guidance in this regard and therefore local counsel's interpretation might be modified in the future.
- It is important to check that neither the AIF itself nor any other AIF of the AIFM with a similar investment strategy/idea has been de-notified in the 36-month period prior to the pre-marketing activities being conducted. CBDF Pre-Marketing is prohibited in this context.

CBDF Third-Party Firm Requirements A third party firm can only engage in **CBDF Pre-Marketing** or **Non-CBDF Pre-Marketing** where it is a MiFID II Investment Firm, a CRD Credit Institution, a UCITS ManCo, an EEA AIFM or a MiFID tied agent.

Collective Investment Scheme means investment funds or investment companies or any other type of legal structure whose purpose is to seek funds, assets or rights from the public to manage them and invest them in assets, rights, securities or other financial or non-financial instruments, provided that the investor's performance depends on collective results. An AIF is a type of collective investment scheme.

Conditions for Marketing an AIF to Retail Investors Please refer to section 6.2(c) of this Memorandum for a description of the conditions to be met in order to receive approval from the CNMV to market an AIF to **Retail Investors** in Spain. A PRIIPs KID must be provided as part of this process.

Conditions for Permitted Reverse Enquiry The following conditions should be considered:

- The contact with the OFI must be initiated solely by the investor;
- The OFI must have no physical presence in Spain;
- The OFI must not:
 - (i) engage in any activity to solicit new business from an existing or new investor in Spain;
 - (ii) carry out any marketing or advertising activity in Spain; or
 - (iii) provide any investment product or service in Spain.

This must be analysed on a case-by-case basis and the OFI must be as passive as possible. Once an unsolicited request has been received and a relationship established any subsequent acts or activities arising from such specific client relationship for such specific Funds or Investment Management or Advisory Service would also be considered unsolicited (without any additional need for an initiative from the investor). In such case the **Licensing Requirement** shall not be triggered. This does not, however, apply to activities outside the initial unsolicited relationship i.e. offering new Funds or Investment Management or Advisory Services. Frequent

reliance on this reverse enquiry route would look suspicious to the CNMV. Counsel recommends record keeping. Note that (i) no notification to the CNMV is required for an OFI to rely on this exemption; (ii) this exemption is available (provided that the conditions above are met) to deal with both Professional Investors and Retail Investors.

Facilities The CBDF Directive introduced the “facilities” concept in order to refer to the facilities to be made available when marketing UCITS or AIF to **Retail Investors**. In terms of the Spanish implementation of the facilities provisions please refer to sections 6.1(c)(iv) and 6.2(e)(iv).

Informal Letter The CBDF Directive introduces a requirement for an Informal Letter to be sent within 2 weeks of beginning pre-marketing activities. The Informal Letter shall:

- specify in which Member States the pre-marketing was conducted and over what time period;
- be sent in paper form or by electronic means; and
- provide details of the activity undertaken for example information on the investment strategies presented and, where relevant, a list of the AIFs including sub-funds that were CBDF Pre-Marketed.

Local counsel indicate that this Informal Letter requirement applies to both **CBDF Pre-Marketing** and **Non-CBDF Pre-Marketing**.

The requirements regarding the Informal Letter depend on the particular fact-pattern as follows:

(1) Pre-Marketing into Spain of AIF with EEA AIFM

The EEA AIFM is required to send the letter to its home Member State regulator. The EEA AIFM should check the process that applies for submitting this letter to its home Member State regulator and whether any additional requirements apply.

(2) Pre-Marketing by Spanish AIFMs

For Spanish AIFMs, the letter should be submitted on paper or by electronic means (e.g. email/via CIFRADOC). There is a specific template to be followed, please see [here](#) the link to the CNMV templates and then click on “*Precomercialización en UE*” for the CBDF Pre-Marketing notification. It should be addressed to the CNMV but at this stage it is not clear exactly which department it should be directed to.

(3) Pre-Marketing of AIF by non-EEA AIFM authorised in Spain

Position as set out for Spanish AIFMs in (2) above applies – letter to be submitted to CNMV on paper or by electronic means. To do **Non-CBDF Pre-Marketing** in Spain, the non-EEA AIFM shall be authorized in Spain but pre-marketing is possible prior to the AIF’s registration.

Licensing Requirement means the requirement under MiFID II requiring that the OFI is authorised to provide MiFID II services (either as an EEA Passporting Entity or an **Authorised Non-EU Entity**). If/when the necessary pre-requisites are met (e.g. necessary equivalence determinations are in place), it may also be possible in the future for a **Third Country Passporting Entity** to undertake activities caught by the Licensing Requirement. At present no such equivalence determinations have been made.

Non-CBDF Pre-Marketing means as described in section 4.4(c) of this Memorandum.

Professional Investor means a “professional client” as defined in Annex II of MiFID II. Please refer to section 4.1 (Professional Investors and Retail Investors) of the *European Framework Document* for a summary of the types of investor who may fall within this definition.

Prospectus Requirement means the requirement to issue a prospectus under the Prospectus Regulation and SMA in respect of any shares/units/interests that constitute **Transferable Securities**. An approved prospectus is required unless an exemption applies. Refer to *European Framework Document* section 3.7 and Memorandum section 9 for applicable exemptions.

Publicity Law Requirements According to the Publicity Law advertisements must not be misleading, unfair or unclear. Comparative advertising is permitted, but only if it relies on essential, comparable and objectively provable characteristics of the relevant good or service. Advertising may not disrespect another company. Advertising may not lead to confusion between the company, its products or services and those of its competitors.

Any individual or legal entity affected by illegal advertising and, in general, any individual or legal entity with a subjective right or a legitimate interest may request to the advertiser the cessation or, where appropriate, the rectification of such illegal advertising.

Representative It is necessary to appoint a representative to act on behalf of the UCITS Fund and/or AIF in Spain vis-à-vis the CNMV. The exact requirements depending on the particular fact pattern, as follows:

- See section 4.2(f) for discussion on the Representative requirements that apply when using the AIFMD Marketing Passport.
- See section 7.1(a) for the Representative requirements that apply when using the PPR (i.e. either Article 36 or Article 42 AIFMD routes).
- See section 6.1(c)(iv) for Representative requirements that apply when using UCITS Marketing Passport.
- See section 4.2(f) for Representative requirements that apply when marketing an AIF that has been approved for Retail Investors. These apply equally to an AIF that is approved for marketing to the public.

Retail Investor means clients who invest as retail clients (that is, excluding **Professional Investors** and eligible counterparties as defined in Annex II to MiFID II).

Third Country Passporting Entity Pursuant to MiFIR and MiFID II, OFIs domiciled outside the EEA (i.e. in a **Third Country**) have the right to provide investment services or perform investment activities (with or without any ancillary services) to eligible counterparties and **Professional Investors** in the EEA without the establishment of a branch in the relevant EEA jurisdiction. The Third Country OFI needs to apply and be registered with ESMA before it can passport around the EEA. Before such application/registration can be made, the requirements for an equivalence determination with the relevant Third Country would need to have been satisfied. *At present no such equivalence determinations have been made.* The necessary co-operation agreements would also need to be in place between the EU and the relevant Third Country. Please note that the CNMV has unofficially stated that it will not authorise Third Country firms to provide investment services without such firm having a local presence.

Transferable Securities means:

- Shares of companies and transferable securities equivalent to shares, and any other type of transferable security giving entitlement to acquire shares or securities equivalent to shares through conversion or exercise of the rights inherent to them.
- Covered bonds (*cédulas*) and bonds of internationalisation.
- Bonds, debentures and similar securities representing part of a debt claim, including those which are convertible or exchangeable.
- Mortgage covered bonds, mortgage bonds and mortgage participations.
- Asset-backed securities.
- Units and shares in UCITS.
- Money market instruments, i.e. categories of instruments which are normally traded on the money market, such as treasury bills, certificates of deposit and commercial paper, except those issued on a unique basis and excluding instruments of payment deriving from preceding commercial transactions that do not involve the capture of repayable funds.
- Preference shares.
- Territorial covered bonds.
- Warrants and any other derivative transferable security giving the right to acquire or sell any other transferable security or giving the right to a cash settlement determined by reference to transferable securities, currencies, interest rates or yields, commodities, credit risk or other indices or measures.
- Any others which the law or regulations define as a transferable security.

This definition would include units/shares in Closed-Ended Funds.

2. GUIDELINES FOR COMPLETING PART B OF THIS MEMORANDUM

Please check the boxes below to **confirm** you have followed each of these guidelines:

Please **do**:

- (a) let us know if there are **upcoming legislative changes** in relation to the Part B Memorandum Subject Matter **before** continuing to complete Part B. If the changes are major, we may ask you to delay work on completion of Part B until the changes are in force; ☒
- (b) **confirm** that the questions in Part B **cover** all the issues, requirements, restrictions, exemptions or workarounds that could apply to: (i) the cross-border **marketing** and **sale** of Funds or Investment Management & Advisory Services into your jurisdiction and (ii) the cross-border **provision** of Investment Advice or Arranging into your jurisdiction in connection with Funds or Investment Management & Advisory Services; ☒
- (c) provide **focused answers**, which deal only with issues/requirements/exemptions/conditions that are **relevant to a financial institution** (e.g. bank/securities firm/credit institution/hedge fund/investment fund/pension fund/insurance firm) – please do **not** provide theoretical answers that could never apply in practice to a financial institution; ☒
- (d) ensure that you **answer all of the questions** posed in Part B (please note that certain questions comprise several separate questions, all of which must be answered); ☒
- (e) use the **defined terms** in section 1.3 of this Part B and in Appendix 1 of the *European Framework Document*; ☒
- (f) begin answers with “**Yes**” or “**No**”, where possible, followed up with a **simple and concise** explanation; ☒
- (g) where publicly available free of charge, please provide (i) a **website link** to **any guidance** (e.g. guidance issued by the competent regulator) referred to in your responses; and (ii) an **English translation** of any such guidance; ☒
- (h) **complete Appendix 1, 2,3 and 4 of this Part B**, which pull together all of the required and recommended legends, disclosures, risk factors and other forms of wording to be included in the communications referred to in this Part B; and ☒
- (i) **confirm** that you have read and agree with the contents of the *European Framework Document*. ☒

Please **do not**:

- (j) leave any answer **blank** – if a question is not applicable, please indicate this by stating “N/A” (and provide a brief explanation why it is not applicable); ☒
- (k) **modify** any question or the format of this Part B; ☒
- (l) qualify your answer with **additional factual assumptions** unless agreed with aosphere Limited; or ☒
- (m) **cross-refer** to answers to Part A of this Memorandum. Part A and Part B should be treated as separate standalone documents. ☒

3. SOURCES OF LAW; GUIDANCE; COMPETENT REGULATOR

Questions	Answers
(a) Please list the principal sources of law (whether based on specific legislative statutes, common/case law or equity (where applicable) or civil laws/codes and including constitutional laws) applicable to the cross-border marketing and sale of: (i) Funds (whether UCITS Funds or AIFs); and (ii) Investment Management & Advisory Services, to investors located in your jurisdiction. Please include the date that the relevant law(s) entered into force. It is not necessary to list the European directives and regulations referred to in section 3 of the <i>European Framework Document</i>.	• Law 6/2023 of 17 March 2023, on Securities Markets and Investment Services, (the SMA) which entered into force on 7 April 2023. • Law 22/2014 of 12 November 2014, regulating venture capital entities, other closed-ended collective investment schemes and management companies of closed-ended collective investment schemes, and amending Law 35/2003, of 4 November, on Collective Investment Schemes (Law 22/2014), which entered into force on 14 November 2014 (which implements the AIFMD into Spanish law). • Law 35/2003, of 4 November 2003, on Collective Investment Schemes, as amended from time to time and specially by Law 22/2014 (Law 35/2003), which entered into force on 5 February 2004. • Royal Decree 1082/2012 of 13 July 2012, approving regulation developing Law 35/2003 (RIIC), which entered into force on 21 July 2012. • Royal Decree 813/2023 of 8 November 2023, on the legal regime of investment services companies and other entities that provide investment services (RD 813/2023), which entered into force on 29 November 2023. • Circular 2/2011 of 9 June 2011, of the CNMV, on information of foreign collective investment schemes (CIS) registered with the CNMV (Circular 2/2011), which entered into force on 1 July 2011. • Order ECC/2316/2015 of 4 November 2015, on classification of financial instruments (Order 2316/2015) which entered into force on 5 February 2016. • Law 34/1988, of 11 November, of General Advertising (Publicity Law) which entered into force on 5 December 1988. • Circular 2/2020 of 8 October 2020, of advertising of investment products and services, (Circular 2/2020) which entered into force on 13 February 2021. • Circular 2/2017, of 25 October 2017, on information on foreign collective investment schemes registered with the CNMV (Circular 2/2017) which entered into force on 1 January 2018.

	Order EHA/1717/2010, of 11 June 2010 (Order EHA/1717/2010), on advertising of investment services and products, which entered into force on 30 June 2010.
(b) Please list any guidance (e.g. bulletins, codes of practice, guidelines, etc.) issued by the competent regulator(s), which is relevant to the subject matter referred to in section (a) above. Please indicate whether guidance has binding (i.e. legally enforceable) or other status.	- Communication of the CNMV on the ESMA Guidelines on marketing communications under the Regulation on cross-border distribution of funds, dated 30 September 2021. - CNMV's Questions and Answers on the regime for prospectus to be published when securities are offered to be public or admitted to trading on regulated market, dated 27/01/2021 (last update 29 April 2025). - CNMV's Questions and Answers on Brexit, dated 2020. - CNMV's Questions and Answers regarding the implementation of MiFID II, dated 30 October 2017 (last update dated 23 April 2024). - CNMV's Questions and Answers regarding the applicable legislation to CIS, AIF and other close-ended collective investment schemes, dated 11 November 2018 (last update dated 15 January 2025). - CNMV's Questions and Answers regarding the implementation of the PRIIPs Regulation, dated July 13 2018 (last update dated 1 December 2022). - Communication of the CNMV on the adaptation of management companies of collective investment schemes and management companies of venture capital entities to Directive 2011/61/EU, dated 18 July 2013. - Communication of the CNMV related to ESMA Guidelines on sound remuneration policies under the AIFMD, dated 31 July 2013. - Communication of the CNMV on the ESMA Guidelines on key concepts of the AIFMD (ESMA/2013/611), dated 9 October 2013 (the Key Concepts Communication). - Communication of the CNMV on the ESMA Guidelines on the model MoU concerning consultation, cooperation and the exchange of information related to the supervision of AIFMD entities (ESMA/2013/998), dated 27 January 2014 (the MoU Communication). These communications do not have a binding nature for others than the CNMV. They cannot be used to impose fines, but, according to Articles 22.3 and 267 of the SMA, the CNMV has traditionally set out different technical guidelines, supervisory criteria, opinions and recommendations as regards the compliance with the rules of the different legislative and regulatory acts which are subject to its supervision. These types of guidelines or soft ruling are not law or regulations, but they have some legal effects.
(c) Please provide a website link to the English language version of any such sources of law or guidance referred to in section (a) or section (b) above, if publicly available free of charge.	Communication of the CNMV on the ESMA Guidelines on marketing communications under the Regulation on cross-border distribution of funds is available in the following link: https://www.cnmv.es/Portal/verDoc.axd?t=%7B4406c66b-d366-445c-b929-bef3c89de850%7D

	CNMV's Questions and Answers on the regime for prospectus to be published when securities are offered to be public or admitted to trading on regulated market is available in the following link: https://www.cnmv.es/docportal/Legislacion/FAQ/QA_mercadoprimario_en.pdf CNMV's Questions and Answers on Brexit is available in the following link: https://cnmv.es/docportal/welcome/QAs_Brexit_en.pdf CNMV's Questions and Answers regarding the implementation of MiFID II is available in the following link: https://www.cnmv.es/docportal/Legislacion/FAQ/FAQ_MiFIDII_EN.pdf CNMV's Questions and Answers regarding the implementation of the PRIIPs Regulation, is available in the following link: https://www.cnmv.es/docportal/Legislacion/FAQ/FAQPRIIPS_en.pdf Circular 2/2011 is available in English in the following link: https://www.cnmv.es/DocPortal/legislacion/circulares/Circular2_211_en.pdf Circular 2/2017, of 25 October, on information on foreign CIS registered with the CNMV http://www.cnmv.es/portal/verDoc.axd?t=%7Bb8b1b621-8964-4cfa-8bf0-8fad03d60384%7D Manual for filing the A01 Statement – Statistical Data on Foreign CIS Marketed in Spain http://www.cnmv.es/DocPortal/legislacion/ModelosNormalizados/IIC/ManualCumpA01-C_2_2017_en.pdf Procedure for Notification of Registration and Deregistration of distributors of Non-Harmonised Foreign CIS http://www.cnmv.es/DocPortal/legislacion/ModelosNormalizados/IIC/TransmAlta_Baja_Comer_ciad_en.pdf
(d) Are there any announced future changes to the laws listed in section (a) above? If so, please: (i) contact us before continuing if the changes are significant; and (ii) provide brief details (including expected date of entry into force and what the anticipated scope of the changes is to the extent relevant). For the purposes of answering this section you may wish to refer to section 11 of the <i>European Framework</i>	There are no future changes expected to the laws listed in (a) above for the purposes of this Memorandum. Additionally at an EU regulation level, we note as follows. Prospectus Regulation On 14 November 2024, Regulation 2024/2809 amending the Prospectus Regulation 2017/1129 (PR3) was published in the Official Journal of the EU (the PR3 Amendment Regulation).

Document where we discuss coming changes of laws in a European law context.

Under PR3, the offer of transferable securities (including units or shares in certain closed-ended funds) to the public in an EEA Member State triggers a requirement to publish a prospectus. This requirement is subject to certain exemptions including the Value of Offering Exemption, which allows a Member State to exempt offers from the requirement to publish a prospectus where the total consideration is below EUR 8m. For further detail, see section 9. The PR3 Amendment Regulation will amend the Value of Offering Exemption (with effect from 5 June 2026) to exempt offers that have a total consideration in the EU below EUR 12m per issuer or offeror calculated over a 12-month period. Member States will continue to be able to set a lower threshold and exempt offers that have a total consideration in the EU below EUR 5m. In either case, the exemption is not available where an offer is subject to a prospectus passporting notification. Spain has not announced a decision, and there is no official indication yet that it will adopt the lower threshold. Under the SMA, Spain currently applies the exemption at 8 million for most offers, with a specific 5 million threshold used only for credit institutions.

Where the total consideration of an offer of securities to the public falls below the EUR 12m/5m threshold (as applicable), a Member State can still require the issuer to file and publish a document either meeting certain information requirements under PR3 (as amended) or national requirements equivalent to or lower than those requirements. It is not yet known whether Spain will introduce such a requirement when the amended regime under the Prospectus Regulation applies from 5 June 2026. Spain does not impose a general obligation to file or publish a national disclosure document for exempt offers below the threshold. The Spanish regime simply exempts those offers from the prospectus requirement.

The PR3 Amendment Regulation makes certain other changes to PR3 including changes to other prospectus exemptions and the rules governing the sequence, format and content of information to be included in a prospectus.

Directive on financial services contracts concluded at a distance

On 28 November 2023, the Directive on financial services contracts concluded at a distance (the **Directive**) was published in the Official Journal of the EU. The Directive includes measures applicable to financial services contracts concluded with consumers (defined as any natural person who is acting for purposes which are outside his trade, business, craft or profession) at a distance (e.g. online, via telephone or through other forms of remote marketing). Where other EU acts governing specific financial services (e.g. on consumer credit) contain equivalent rules e.g. rules on pre-contractual information, the rules of the other EU act apply (the Directive is therefore intended to act as a “safety net”).

In particular, the Directive includes rules relating to:

	• providing adequate explanations about the proposed contract including certain pre-contractual information, essential characteristics of the proposed contract and specific effects it may have on the consumer e.g. the consequences of payment default; • providing a 14-day right of withdrawal (although contracts related to services whose price depends on fluctuations in the market are excluded, e.g. those related to transferable securities, units in collective investment undertakings and certain futures, forwards, swaps and options); and • adoption by Member States of measures addressing certain deceptive or manipulative practices on online interfaces ('dark patterns') e.g. the practice of giving more prominence to certain choices when asking a consumer to make a decision. Consumer laws are generally outside the scope of Marketing Restrictions – Asset Management and we have not considered the above further, but we are noting the development in this section due to the potentially wide scope of the new rules. The Directive entered into force on 18 December 2023. Member States have until 19 December 2025 to publish measures necessary to comply with the Directive and until 19 June 2026 to apply those measures. AIFMD II AIFMD II was published in the Official Journal of the European Union, and came into force on 15 April 2024 and is to be transposed into national law by 16 April 2026. Please refer to section 11 of the <i>European Framework Document</i> for details.
(e) Please provide the name of the competent regulator(s) .	The national regulatory and supervision body is the National Securities Market Commission (<i>Comisión Nacional del Mercado de Valores – CNMV</i>).
(f) Please provide a link to the competent regulator's website (if any) – the English language version if available.	Please note that not all Circulars and other information on the CNMV website are available in English, on the English version of CNMV's website, and that the English website is sometimes out dated: http://www.cnmv.es/portal/home.aspx?lang=en
(g) Art 5(1) of the CBDF Regulation requires regulators to publish and maintain on their websites up to date and complete information on the laws governing marketing requirements. Has the regulator in your jurisdiction published such information yet and if so please could you provide the relevant link(s)?	Please refer to the following link: https://www.cnmv.es/DocPortal/Legislacion/ModelosNormalizados/IIC/UCITSandFIAsnotificationprocedures.pdf Also information on CNMV's webpage on fees and charges: http://cnmv.es/portal/quees/Tasas/Novedades.aspx?lang=en

4. SPECIFIC ISSUES RELATING TO THE IMPLEMENTATION OF AIFMD

Questions	Answers
4.1 Gold-plating/Super-equivalence	
(a) Please confirm whether the implementation of the AIFMD is as per the minimum requirements of the AIFMD or otherwise describe the gold-plating (super-equivalent) measures relevant only to marketing/selling an AIF via the private placement regime under Article 36 or Article 42.	In general terms, the implementation of the AIFMD has been carried out according to the requirements of the AIFMD, nevertheless we shall mention several additional local conditions. Representative See section 4.2(f) for discussion on the Representative requirements that apply when using the AIFMD Marketing Passport and section 7.1(a) for the Representative requirements that apply when using the PPR (i.e. either Article 36 or Article 42 AIFMD routes). General Overview – Closed-Ended vs Open-Ended AIFs Please note that the Spanish transposition of the AIFMD separately regulates Closed-Ended Funds under Law 22/2014 and Open-Ended Funds under Law 35/2003, although in general terms the requirements for all AIFs (whether Closed or Open-Ended) are similar. Technically speaking, under Spanish Law there is no private placement in relation to AIFs. Marketing/selling via the AIFMD Marketing Passport will apply when dealing with EEA AIFs and AIFMs, while a local regime (with additional burdensome requirements to the regime under AIFMD) will apply when dealing with Non-EEA AIFs and/or Non-EEA AIFMs pursuant to Article 36 or Article 42 AIFMD. <u>CLOSED-ENDED AIF</u> The requirements listed below are set out in Law 22/2014. 1. <i>Marketing in Spain to Professional Investors of AIFs incorporated in other EU countries managed by AIFMs authorised in a Member State of the EU via the AIFMD Marketing Passport</i> 1.1. The marketing of units or shares of an EEA AIF to Professional Investors will be freely permitted in Spain subject to the requirements and conditions set out in the AIFMD as applicable to the AIFMD Marketing Passport. In addition to Article 22 of the AIFMD please note that the annual reports that are provided after the registration of the foreign AIF in Spain may be requested by the CNMV during the following five years.

Questions	Answers
	1.2. AIFs and their AIFMs shall respect the applicable laws and regulations relating to the marketing and advertisement regime in Spain. The CNMV will supervise the fulfilment of these obligations. 1.3. In addition, Article 76.6 of Law 22/2014 states that AIFMs shall provide shareholders and participants with details of: how payments are made; the acquisition of shares or the reimbursement of units by AIFs (i.e. treasury stock or reimbursement against capital); the information that shareholders and participants shall be provided with in Spain; and, in general, the exercise of their rights. Investors should be informed with the above information once the AIF is distributed in Spain but the requirements do not specify the type of document (e.g. offering document vs marketing document) that should contain this information. According to local counsel's experience this information is usually included in the prospectus of the AIF via a supplement. 1.4. The requirements relating to a Representative also need to be considered. See section 4.2(f) for more details. 2. <i>Marketing in Spain of Non-EEA AIFs to Professional Investors managed by AIFMs authorised in a Member State of the EU via Article 36 AIFMD</i> 2.1. Marketing units or shares of Non-EEA AIFs in Spain to Professional Investors by AIFMs authorised in a Member State of the EEA requires a prior obligation to prove before the CNMV the compliance with conditions and requirements set out in Article 36 of the AIFMD. In addition to these requirements, and pursuant to Article 77 of Law 22/2014, the third country where the Non-EEA AIF is incorporated shall have signed an agreement with Spain which fully complies with the standards laid down in Article 26 of the OECD Model Tax Convention on Income and on Capital and ensures an effective exchange of information in tax matters, including any multilateral tax agreements. 2.2. The AIFM shall register with the CNMV the information requested under the notification letter defined in Annex IV of the AIFMD. Also pursuant to Article 77 of Law 22/2014, the AIFM shall provide i) the documents proving that the Non-EEA AIF and the shares, units or securities representing its capital or equity, are subject to the applicable legal regime of the AIF's home state, ii) other important details, including the address, so that the CNMV can invoice or communicate any applicable fees or charges; and iii) information of the Facilities available to Retail Investors (if applicable). All documents referred to in the above paragraphs shall be delivered, at least, in a language that is customary in the sphere of international finance (English) or Spanish.

Questions	Answers
	2.3. Additionally, pursuant to Article 77 of Law 22/2014, the AIFM shall provide an accreditation certificate issued by its competent authorities confirming that the said AIFM is authorised under the AIFMD to manage AIFs with a particular investment strategy. 2.4. Furthermore, in order for Non-EEA AIFs managed by EEA AIFMs to be marketed in Spain via Article 36 AIFMD, Article 77 of Law 22/2014 requires that the Non-EEA AIF shall be expressly authorised by the CNMV, and together with their AIFMs registered in the registries of the CNMV. For more detail on this authorisation and registration process, see section 6.2(c) below. The procedure is similar to the one applicable to the marketing of AIFs to the public, but without those requirements which are retail-related). As provided under article 77.4 of Law 22/2014, the authorisation for marketing may be refused for prudential reasons; for not having the proposed AIFs to be marketed in Spain an equivalent treatment in their country of incorporation; for not complying with the disciplinary regulations of the Spanish securities markets; for not guaranteeing the due protection of investors residing in Spain; or because of the existence of differences in the competency conditions between these AIFs and those authorised in Spain. 2.5. Once the referred AIFs and their AIFMs have been authorised and registered within the registry of the CNMV, Article 77 of Law 22/2014 states that the AIFMs shall provide shareholders and participants with details of: how payments are made; the acquisition of shares or the reimbursement of units by AIFs (i.e. treasury stock or reimbursement against capital); the information that shareholders and participants shall be provided with in Spain; and, in general, the exercise of their rights. Investors should be informed with the above information once the AIF is distributed in Spain but the requirements do not specify the type of document (e.g. offering document vs marketing document) that should contain this information. According to local counsel's experience, this information is usually included in the prospectus of the AIF via a supplement. AIFs and their AIFMs shall respect the general applicable laws and regulations in Spain relating to the marketing and advertisement regime. The CNMV will supervise the fulfilment of these obligations. 2.6. A Representative may also be appointed. See section 7.1(a) for more details. 2.7 Further regulations may establish additional conditions for marketing the shares and units of Non-EEA AIFs managed by EEA AIFMs via Article 36 AIFMD.

Questions	Answers
	3. <i>Marketing AIFs in Spain to Professional Investors managed by AIFMs not resident in the EU via Article 42 AIFMD</i> 3.1. Marketing units or shares of AIFs in Spain to Professional Investors by AIFMs not resident in a Member State of the EU mirrors the procedure set out in Article 42 of the AIFMD with no additional conditions except that a Representative will need to be appointed. See section 7.1(a) for more details. Pursuant to the AIFMD there is an obligation to prove before the CNMV the compliance with conditions and requirements set out in Article 42 of the AIFMD. 3.2. If the above-mentioned requirements are met and pursuant to Article 78 of Law 22/2014, the AIFM shall provide and register with the CNMV the information required in Annex IV of the AIFMD. As well as, i) the documents proving that the Non-EEA AIFM, and, where applicable, the non-EEA AIF and its shares, units or securities representing its capital or equity, are subject to the relevant applicable legal regime of their home state, ii) other important details, including the address, so that the CNMV can invoice or communicate any applicable fees or charges and iii) information of the Facilities available to Retail Investors (where applicable). These documents should be delivered in English or Spanish. In order for Non-EEA AIFs managed by Non-EEA AIFMs to be marketed in Spain via Article 42 AIFMD, Article 78 of Law 22/2014 requires that the AIFs shall be expressly authorised by the CNMV, and together with their AIFMs registered in the registries of the CNMV. For more detail on this authorisation and registration process, see section 6.2(c) below. The procedure is similar to the one applicable to the marketing of AIFs to the public, but without those requirements which are retail-related). 3.3. As provided under article 78.4 of Law 22/2014, the authorisation for marketing may be refused for prudential reasons; for not having the proposed AIFs to be marketed in Spain an equivalent treatment in their country of incorporation; for not complying with the disciplinary regulations of the Spanish securities markets; for not guaranteeing the due protection of Spanish investors; or because of the existence of differences in the competency conditions between these AIFs and those authorised in Spain. 3.4. Once the referred AIFs and their AIFMs have been authorised and registered within the registry of the CNMV, Article 78 of Law 22/2014 requires that the AIFMs shall provide shareholders and participants with details of how payments are made; the acquisition of shares or the reimbursement of units by AIFs (i.e. treasury stock or reimbursement against

Questions	Answers
	capital); the information that shareholders and participants shall be provided with in Spain; and, in general, the exercise of their rights. Investors should be informed with the above information once the AIF is distributed in Spain but the requirements do not specify the type of document (e.g. offering document vs marketing document) that should contain this information. According to local counsel's experience this information is usually included in the prospectus of the AIF via a supplement. 3.5. AIFs and their AIFMs shall respect the applicable laws and regulations in Spain relating to the marketing and advertisement regime. The CNMV will supervise the fulfilment of these obligations. 3.6. Further regulations may establish additional conditions for marketing shares and units of EEA AIFs managed by non-EEA AIFMs. 3.7. Spanish regulations shall establish the authorisation conditions of the Non-EEA AIFMs when the lead state is Spain pursuant to the provisions of the AIFMD. <u>ADDITIONAL OPEN-ENDED AIF REQUIREMENTS</u> The requirements listed below are set out in Law 35/2003 (as amended by Law 22/2014). 4. <i>Marketing in Spain to Professional Investors of AIFs incorporated in other EU countries managed by AIFMs authorised in a Member State of the EU via the AIFMD Marketing Passport.</i> Same requirements as for Closed-Ended AIFs will apply. 5. <i>Marketing in Spain of Non-EEA AIFs to Professional Investors managed by AIFMs authorised in a Member State of the EU under the AIFMD via Article 36 AIFMD</i> In addition to the requirements set out above for Closed-Ended AIFs, according to article 15 quáter of Law 35/2003, it must be proven before the CNMV (generally, this requirement is met by providing external counsel's legal opinion) that Spanish law regulates the same category of AIF as the one of the foreign AIF and that the foreign AIF is subject in its home state to a specific regulation on protection of shareholders or unitholders' interests which is similar to the Spanish regulation on this subject. 6. <i>Marketing EU and non-EEA AIFs in Spain to Professional Investors managed by AIFMs not resident in the EU via Article 42 AIFMD</i> According to article 15 quáter of Law 35/2003, in addition to the requirements set out above for Closed-Ended AIFs, the following requirements will also apply:

Questions	Answers
	6.1. It must be proven before the CNMV (generally, this requirement is met by providing external counsel's legal opinion): (i) that Spanish law regulates the same category of AIF as the one of the foreign AIF and that such foreign AIF is subject in its home state to a specific regulation on protection shareholders or unitholders' interest which is similar to the Spanish regulation on this subject; and (ii) that there is a favourable report from the home member state regulator that is in charge of the control and supervision of the AIF or the AIFM acting on its behalf, with regards to the activities of the AIF. Marketing and Advertising Requirements The notification will also have to include the mechanisms and methods of marketing the shares or units in Spain and, when applicable, the type of units or quotas being marketed (see Article 15 <i>quáter</i> of Law 35/2003 for more details). When Law 22/2014 refers to “applicable laws and regulations relating to the marketing and advertisement regime in Spain” it does not set out which specific rule it is referring to. Having said that, there are a number of rules which may be significant in connection with this general statement made by this Law: 1. Article 200.2 of Law 6/2023 sets out requirements for marketing communications to be fair, clear and not misleading in line with MiFID II requirements. 2. Additionally, and also in line with those MiFID II requirements as implemented in Spain, Order EHA/1717/2010, of 11 June, governing the publicity of services and financial products sets out general rules, principles and criteria to which the publicity activity of financial instruments must be subject to e.g. in relation to advertisements being fair, clear and not misleading. 3. In addition, the CNMV issued on 10 November 2015 a communication on the contents and format of publicity information on websites of management companies of Collective Investments Schemes and distributors. Such communication identifies the breaches of article 200.2 of Law 6/2023 committed by those entities. An example would be that any promotional or marketing activities must be carried out in accordance with the Publicity Law (see below for further information on the Publicity Law requirements). 4. In addition it is necessary to consider the requirements in ESMA's Funds Marketing Guidelines. On 30 September 2021 the CNMV issued a public statement regarding the “ESMA Guidelines on marketing communications under the Regulation on cross-border distribution of funds” (the ESMA's Marketing Guidelines), which states relevant considerations regarding: i) the identification of marketing communications; ii) description of risks and rewards in an equally prominent manner; iii) fair, clear and not misleading character

Questions	Answers
	of marketing communications; and iv) information on sustainability-related aspects. ESMA's Marketing Guidelines apply to all marketing communications addressed to investors or potential investors in UCITS and AIFs (including those set up as EuVECAs, EuSEFs, ELTIFs and money market funds). In absence of a definition of what constitutes a "marketing communication" the Marketing Guidelines instead provide non-exhaustive examples of what may and may not qualify. 5. CNMV Circular 2/2020 also sets out a number of obligations to be complied with when marketing financial instruments and services (see section 8.1(c) below) and that the advertising of the products and services must respect the conditions of legality established in the Publicity Law. The content of the CNMV Circular 2/2020 is consistent with the provisions of the ESMA's Marketing Guidelines. 6. According to the Publicity Law advertisements must not be misleading, unfair or unclear. Comparative advertising is permitted, but only if it relies on essential, comparable and objectively provable characteristics of the relevant good or service. Advertising may not disrespect another company. Advertising may not lead to confusion between the company, its products or services and those of its competitors. 7. In addition, according to the Publicity Law, any individual or legal entity affected by illegal advertising and, in general, any individual or legal entity with a subjective right or a legitimate interest may request to the advertiser the cessation or, where appropriate, the rectification of such illegal advertising.
By way of example, please consider whether any additional local conditions have been imposed in order for an AIF to be marketed/sold into your jurisdiction via the private placement regime in respect of: (i) reporting (dates/language/format);	All documents shall be delivered, at least, in a language that is customary in the sphere of international finance (i.e. English or Spanish). The CNMV's criterion regarding language is that, considering the characteristics and complexities of the AIF in question and the type of investor it is aimed at, the CNMV will inform its distributors, in each case, of the accepted language for the relevant documents that must be submitted in the said procedure. The language usually recognized for these purposes by the CNMV is English/Spanish.
(ii) auditing;	Annual reports that are provided after the registration of the foreign AIF in Spain may be requested by the CNMV during the following five years.
(iii) requirement to appoint entities to perform depositary-like functions;	In order for an AIF to be marketed/sold into Spain, the identification of the depositary of the collective investment schemes and venture capital entities is required. This applies for both A36 route and A42.

Questions	Answers
(iv) the acquisition of holdings in issuers and non-listed companies in your jurisdiction pursuant to Article 26(7) of the AIFMD;	There are no additional local conditions for non-Spanish AIF or non-Spanish AIFM.
(v) steps to prevent the AIF being marketed to Retail Investors; or	Marketing AIFs to Retail Investors will be deemed a very serious breach of Law 22/2014 and therefore the offender shall have to pay a fine of up to: (i) five times the gross profit (i.e. the offeror's revenues from the reserved activity) obtained as a result of the acts or omissions comprising the infringement (where possible); or (ii) EUR 300,000. AIFs should provide information on the steps and measures adopted to prevent distribution amongst Retail Investors when appropriate including use of appropriate disclaimer language.
(vi) requirements in respect of the regulatory status of the AIFM.	There are no additional requirements in this regard.
(b) Where the laws of your jurisdiction draw a distinction between marketing using a national private placement regime conducted pursuant to Article 36 of the AIFMD as compared to Article 42 please can you set out the differences and the requirements that apply in respect of each type of marketing.	Please see Section 4.1 (a) above.
(c) Please confirm whether the implementation of the AIFMD is as per the minimum requirements of the AIFMD or otherwise describe the gold-plating (super-equivalent) measures relevant only to "marketing/selling an AIF via the AIFMD Marketing Passport" .	Please see Section 4.1 (a) above.
By way of example, please consider whether any additional local conditions have been imposed in order for an AIF to be marketed/sold into your jurisdiction via the AIFMD Marketing Passport in respect of: (i) reporting (dates/language/format);	All documents shall be delivered, at least, in a language that is customary in the sphere of international finance (i.e. English) or Spanish. There are no additional conditions in respect of dates or format. The CNMV's criterion regarding language is that, considering the characteristics and complexities of the AIF in question and the type of investor it is aimed at, the CNMV will inform its distributors, in each case, of the accepted language for the relevant documents that must be submitted in the said procedure. The language usually recognized for these purposes by the CNMV is English/Spanish.
(ii) auditing;	Annual reports that are provided after the registration of the foreign AIF in Spain may be requested by the CNMV during the following five years.

Questions	Answers
(iii) requirement to appoint entities to perform depositary-like functions;	In order for an AIF to be marketed/sold into Spain, the identification of the depositary of the collective investment schemes and venture capital entities is required.
(iv) the acquisition of holdings in issuers and non-listed companies in your jurisdiction pursuant to Article 26(7) of the AIFMD;	There are no additional local conditions for non-Spanish AIF or non-Spanish AIFM.
(v) steps to prevent the AIF being marketed to Retail Investors;	Marketing AIFs to Retail Investors will be deemed a very serious breach of Law 22/2014 and therefore the offender shall have to pay a fine of up to: (i) five times the gross profit (i.e. the offeror's revenues from the reserved activity) obtained as a result of the acts or omissions comprising the infringement (where possible); or (ii) EUR 300,000. AIFs should provide information on the steps and measures adopted to prevent distribution amongst Retail Investors when appropriate including use of appropriate disclaimer language.
(vi) requirements in respect of the regulatory status of the AIFM.	There are no additional requirements in this regard.
4.2 AIFMD Marketing Passport	
Please refer to section 6.5 of the <i>European Framework Document</i> .	Yes, according to Article 76 of Law 22/2014 and Article 15 <i>bis</i> of Law 35/2003, the position set out in section 6.5 of the <i>European Framework Document</i> applies when an EEA AIF is being marketed by or on behalf of an EEA AIFM using the AIFMD Marketing Passport in Spain.
(a) Please confirm whether the position set out in section 6.5 of the <i>European Framework Document</i> applies in your jurisdiction.	
(b) What language does the Fund documentation need to be in?	All documents shall be delivered, at least, in a language that is customary in the sphere of international finance (i.e. English or Spanish). The CNMV's criterion regarding language is that, considering the characteristics and complexities of the AIF in question and the type of investor it is aimed at, the CNMV will inform its distributors, in each case, of the accepted language for the relevant documents that must be submitted in the said procedure. The language usually recognized for these purposes by the CNMV is English/Spanish. These languages can also generally be used for marketing documents relating to an AIF that is using the AIFMD Marketing Passport.
(c) Are there any fees payable in your jurisdiction:	Law 16/2014, of 30 September, on fees of the CNMV (Law 16/2014) establishes fixed fees which are payable at the time of registration in the official registry of the CNMV including a
(i) upon receipt of an incoming AIFMD Marketing Passport notification; or	

Questions	Answers
(ii) on an ongoing basis?	fee for supervising marketing requirements of foreign AIFs marketed via the AIFMD Marketing Passport. These fees have increased with the entry into force of Law 6/2023 (please see below the latest fees): 1. Registration fees: a fixed fee of EUR 2.601,51 which will be accrued when the notification is resolved. 2. Supervision of marketing requirements fees: a fixed fee of EUR 3,121.81 which will be accrued on 1 January of each year. The fee is payable per sub-fund rather than per umbrella.
(d) Please outline the local arrangements (including any documentation that needs to be filed with the regulator in your jurisdiction) for marketing which an EEA AIFM marketing an EEA AIF via the AIFMD Marketing Passport is required to comply with in accordance with Article 32(5) of the AIFMD. If applicable, please cross-refer to your answers to sections 4.4(a) and 7.1(a).	In line with article 32(5) AIFMD, the Spanish regulation under Law 22/2014 and Law 35/2003 requests that AIFMs that wish to operate in Spain, provide and register with the CNMV the mechanisms and methods of marketing of shares and units in AIFs, and when appropriate, the class or series of the shares or units being marketed. This information is to be included in the notification submitted to the home member state regulator. Written marketing materials are required to be consistent with the information provided as part of the marketing passport notification on the mechanisms and methods of marketing. Licensing Requirements Applicable to OFI doing the marketing/selling activity Active Marketing by an OFI of an AIF will trigger the Licensing Requirement and the OFI will need to be an EEA Passporting Entity or an Authorised Non-EU Entity. See section 7.3(a)(i) for more information on the route for Authorised Non-EU Entities. Representative The relevant AIF must also appoint a Representative. See section 4.2(f). In addition, AIFs and their AIFMs must comply with the applicable laws and regulations relating to the marketing and advertisement regime in Spain including the Publicity Law Requirements and the advertising requirements in Circular 2/2020. See the discussion regarding “Marketing and Advertising Requirements” in section 4.1(a) above. The CNMV will supervise the fulfilment of these obligations.
(e) (i) Are there any OFI notification/licensing or approval requirements before marketing via the AIFMD Marketing Passport can commence?	Yes, the AIFMD Marketing Passport can only commence once the AIFMD Marketing Passport procedure has been completed. Where the marketing activities are to be carried out by the AIFM of the AIF that has been passported, then the marketing activity falls within the scope of the AIFM’s authorisation. To

Questions	Answers
	conduct related activities (e.g. the provision of Investment Advice or RTO), the AIFM will need to be properly licensed in its home jurisdiction and passport the relevant activities into Spain. In addition to the AIFMD Marketing Passport, an OFI cannot carry out active marketing in Spain unless it is duly licensed as an EEA Passporting Entity or an Authorised Non-EU Entity. Marketing an AIF is considered as an investment service requiring a licence and thus a restricted activity in Spain. Appointing distributors (without contacting any potential investors) is not technically speaking an investment service. However, lately the CNMV is taking an extensive interpretation on this matter and considering such activity as an investment service. In our view however such interpretation clearly goes beyond the legal requirements. Pursuant to Articles 46-49 of MiFIR, OFI's domiciled outside the EEA (i.e. in a Third Country) have the right to provide investment services or perform investment activities (with or without any ancillary services) to eligible counterparties and to Professional Investors, set out in Section I, Annex II of MiFID II, established throughout EEA without the establishment of a branch. This requires that the OFI domiciled outside the EEA has applied and been registered with ESMA for the provision of investment services or performance of activities throughout the Union. Before such application/registration can be made, the requirements for an equivalence determination with the relevant Third Country would need to have been satisfied. <i>At present no such equivalence determinations have been made.</i> The necessary co-operation agreements would also need to be in place between the EU and the relevant third country. A Third Country OFI so registered is referred to in this Memorandum as a Third Country Passporting Entity.
(ii) Would the OFI notification/licensing or approval requirements discussed in (i) also apply where the OFI receives and responds to a reverse enquiry in relation to a Fund that benefits from the AIFMD Marketing Passport in your jurisdiction? For example, could a non-EEA OFI respond to a reverse enquiry regarding a Fund that benefits from the AIFMD Marketing Passport?	Passive Marketing/selling is permitted in Spain and a non-EEA OFI could respond to a reverse enquiry regarding a Fund that benefits from the AIFMD Marketing Passport provided that the Conditions for Permitted Reverse Enquiry are met. Conditions for Permitted Reverse Enquiry • The contact with the OFI must be initiated solely by the investor; • The OFI must have no physical presence in Spain; • The OFI must not: (i) engage in any activity to solicit new business from an existing or new investor in Spain; (ii) carry out any marketing or advertising activity in Spain; or (iii) provide any investment product or service in Spain.

Questions	Answers
	This must be analysed on a case-by-case basis and the OFI must be as passive as possible. Once an unsolicited request has been received and a relationship established any subsequent acts or activities arising from such specific client relationship for such specific Funds or Investment Management or Advisory Service would also be considered unsolicited (without any additional need for an initiative from the investor). In such case the Licensing Requirement shall not be triggered. This does not, however, apply to activities outside the initial unsolicited relationship i.e. offering new Funds or Investment Management or Advisory Services. Frequent reliance on this reverse enquiry route would look suspicious to the CNMV. Counsel recommends record keeping. As mentioned under Section 1.4 above, please note that (i) no notification is required for an OFI to rely on this exemption; (ii) this exemption is available (provided that the conditions above are met) to deal with both Professional Investors and Retail Investors.
(f) Is an intermediary, local distributor or local agent required in order to market via the AIFMD Marketing Passport?	Distributor and Representative Yes. Different local roles may be required: 1. Distributors (which may be an EEA Passporting Entity including an AIFM with an AIFMD Marketing Passport which is marketing and distributing the AIF in question, an Authorised Non-EU Entity or a Spanish licensed entity) can be appointed by the AIF. 2. The relevant AIF must appoint an entity (a representative) which shall communicate to the CNMV any information which may be relevant for the marketing of the AIF in Spain on an on-going basis as well as any modification / amendment to the main key documents registered with the CNMV during the initial registration process. 3. All marketing entities of foreign AIFs are obliged to submit a quarterly statistical statement referred to in Circular 2/2017, even if in during the quarter they have not marketed any of the CIS for which they are registered with the CNMV. This statement is referred to as an A01 statistical statement. AIFs must therefore identify a representative before the CNMV for statistical purposes. 4. When providing services without a branch (without permanent establishment) the EEA AIFM shall also appoint a Spanish local agent for tax purposes. In order to notify the representation agreement, the AIFM must submit the form in the below link and send it to AIFM.estadistica@cnmv.es. The subject of the email should be "Representative of non-harmonised CIS":

Questions	Answers
	http://www.cnmv.es/DocPortal/legislacion/ModelosNormalizados/IIC/Proced_IIC_No_armo_nizada_en.pdf Submission of the statistical statement requires access to the CIFRADO/CNMV service. The representative must in turn report the registrations and de-registrations of entities marketing the AIFs in Spain. The procedure for registering or deregistering a distributor/entity marketing the AIFs is described in this link: https://www.cnmv.es/DocPortal/legislacion/ModelosNormalizados/IIC/TransmAlta_Baja_Comerciad_en.pdf The Representative, where not appointed for tax purposes, does not require to have a presence in Spain. These roles may be assumed by the same entity provided that the relevant requirements are all met. In addition, AIFs and their AIFMs must comply with the applicable laws and regulations relating to the marketing and advertisement regime in Spain. The CNMV will supervise the fulfilment of these obligations.
(g) Could an OFI be appointed as a tied agent of an EEA regulated entity in order to market/sell an AIF to investors in your jurisdiction? If so, (i) must the EEA regulated entity be incorporated in your jurisdiction or can it be passported into your jurisdiction;	Yes, an OFI can be appointed as a tied agent of an EEA regulated entity. Nonetheless, please note that in order to ensure that the duty of exclusivity to which tied agents are bound (by virtue of Article 4(29) of MiFID II) is fulfilled, it is expected that tied agents have sufficient substance in the EU and do not mainly rely on resources based outside of the EU in the provision of activities on behalf of the appointing firm (the aforementioned in accordance with ESMA supervisory briefing on supervisory expectations in relation to firms using tied agents in the MiFID II framework). The EEA regulated entity can be passported into Spain.
(ii) must the tied agent be incorporated in the EEA; and	The OFI shall be incorporated in the EEA and passported into Spain.
(iii) do any licensing requirements apply to the tied agent?	There are some requirements and obligations for the tied agent. In accordance with Article 95 of the RIIC, the exercise of the activity of the agents shall be subject to the supervision of the CNMV, which may establish additional requirements for the agents to cover the risks arising from non-compliance or fraud arising from their activity.

Questions	Answers
	Agents shall be considered to be those who are not linked through an employment relationship to the company or to entities within its group and to whom the management company has granted powers to act habitually in its name and on its behalf with regard to clients in the marketing of shares and holdings in investment companies whose management it has been entrusted with. Acting as agents of legal persons is subject to the compatibility of such activity with their corporate purpose. The agents must meet the following requirements: • They must have a board of directors made up of no less than three members (in the case that the agent is a legal entity). • Those who hold administrative or management positions in the company must meet the requirements of good repute laid down in Law 35/2003 and the majority of the members of its board of directors, or of its executive committees, as well as all the managing directors and general managers and similar, must meet the requirements of knowledge and experience laid down in the same law. • That it has a good administrative and accounting organisation, as well as adequate human and technical resources, in relation to its purpose. These relations must be formalised by the granting of a power of attorney which must specify the territorial scope of action, including investment companies and funds, type of clientele and form of execution of acquisitions or subscriptions and of disposals or reimbursements which, in any case, must comply with the requirements established in these regulations and their implementing rules. In addition, institutions may enter into a contract regulating other aspects of the agency relationship, such as the obligations deriving from the contract for the parties, the guarantee systems, the system of incompatibilities that, where appropriate, they wish to establish, the commission invoicing systems and the rules of conduct applicable to the agent. Additionally: • Agents may not act through sub-agents or establish legal relationships that personally bind them to clients in matters related to the scope of action of the management company. • Agents must unequivocally state their status as representatives of the management company in all their relations with clients. • An agent may only represent one or more of the management company belonging to the same group. The management company shall be liable to the shareholders or

Questions	Answers
	participants for any damages that may arise from the actions of its agents or proxies within the scope of the representation granted. • The agents must comply with the obligations arising from Law 35/2003, Royal Decree 1082/2012 and other applicable provisions governing the marketing of shares and holdings in IICs. The management companies shall be responsible for the compliance of their agents with these rules and must develop appropriate control procedures, in accordance with the provisions of the following article. • The agents of the management companies that are legal persons must hold a minimum amount of capital, in accordance with the rules governing agents of investment firms laid down in the SMA. The management companies must, prior to their establishment, ensure that the agents have sufficient capacity, training and professionalism to carry out the activity. The management companies must have at all times the means and procedures for internal control of the actions of its agents that are adequate for monitoring the agent's transactions and relations with shareholders or participants. To this end, prior to the formalisation of the power of attorney, they must verify the sufficiency and adequacy of the administrative organisation and the means, operating, internal control and accounting procedures and, where appropriate, the computer systems to be used by them in the further development of their actions. In the event that representation is to be granted to a legal entity, the foregoing verifications shall extend to its economic and financial situation. The management companies will condition the appointment of the agents to the satisfactory verification of the aspects mentioned in this paragraph. Similarly, the management companies may require that their actions be carried out in accordance with the operational, internal control and accounting procedures developed by the management companies, especially with regard to cash or payment instruments, and may also require the use of computer systems that ensure adequate integration of data and information between the agents and the management companies. To this end, the agents must allow and collaborate in those operational, procedural and internal control audits of these procedures and systems carried out by the management companies. The management companies will condition the maintenance of the representation contract to the compliance of their agents with these measures. All deliveries of funds must be made directly between the management companies and the investor, and the funds may not be in the possession or in the account of the agent, even

Questions	Answers
	temporarily. An exception is made for the receipt or delivery of funds by means of nominative instruments, either in favour of the IIC or in favour of the investor, as the case may be. Under no circumstances may the shares or holdings of the shareholders or participants be held, even temporarily, by the agents, and must be deposited directly in their names. Likewise, the agents must be subject to rules that guarantee that their behaviour complies with the rules of conduct set out in Law 35/2003, in the SMA and in the internal code of conduct of the management company. The management company will be responsible for ensuring that its agents comply with these rules, including all the requirements established in this title and in the regulations that develop it. The management companies must have a file, the content of which is determined by the CNMV, regarding the documentary support of agency relations. On 2 February 2022, ESMA published the “<i>Supervisory Briefing on supervisory expectations in relation to firms using tied agents in the MIFID II framework</i>” which clarifies Member State competent authorities’ common understanding on the supervision of firms using tied agents. When appointing a tied agent, the management company shall conduct a suitability test of the tied agent and the management company shall monitor its activity. According to ESMA the management company should have instruction and termination rights, rights of information and right of inspections along with access to books and premises of the tied agent. These should also be set out in an agreement between the investment firm and the potential tied agent. ESMA expects that such an agreement also addresses at least the following aspects: • Details of registration; • description of the activities to be carried out by the tied agent; • prohibition for the tied agent to provide services as tied agent for others; • obligation for the tied agent to disclose that it is acting in capacity as a tied agent and to disclose the investment firm which it is representing; • description of the mechanism through which the management company will monitor the activity of the tied agent; and • indication that the auditors have access to data related to the tied agent and to the relevant business premises.

Questions	Answers
	When monitoring (<i>ongoing basis</i>) it is expected that the management company has in place adequate internal measures to oversight the activity that the tied agent carries out. In particular the management company shall implement: • adequate organisational arrangements to monitor the tied agent; • appropriate reporting mechanisms; • adequate mechanism to assess the quality of the services provided by the tied agent; • adequate mechanism for the identification of conflicts of interest; and • rights so it is able to terminate the relationship where necessary. After termination the management company shall inform the national competent authority and their clients. On 19 April 2023, CNMV published the communication “<i>Information for the industry on the operations of firms providing investment services through agents</i>” where it remarked that the use of agents by banks and investment firms is a high supervisory priority for the regulator. The main concerns of the CNMV are the following: (i) conflict of interest arising from variable remuneration (ii) on-going training of the agents (iii) investment advice rendered by the agents (they cannot provide such service independently given that they act on behalf of another entity) (iv) the persons responsible for the agent network control functions are not independent from the business units they supervise and (v) there are some client referrers or introducers who collaborate with the investment firm and receive remuneration for it, but they are not registered as agents.
(h) Can an OFI actively market an AIF in your jurisdiction after 20 working days (from the date of receipt of the notification file by the home Member State regulator), as set out in section 6.5 of the <i>European Framework Document</i>? If not, please set out how soon active marketing may commence following the notification.	No. This period of 20 working days is the period set out in AIFMD. This means that since receipt of the notification file, the home Member State regulator has 20 working days for notifying the CNMV. Spanish law sets out that marketing will be permitted after the CNMV expressly confirms to the home Member State regulator the receipt of the notification file. Therefore, accordingly to Spanish law, the time it takes to the Home State Regulator is irrelevant and the AIF cannot start being marketed until express confirmation is made of the receipt of the CNMV of the AIFMD Marketing Passport notice. In addition, please note our reference to licensing requirements of the OFI in 4.2(e) above. The CNMV will confirm the receipt of the home Member State notification file to the AIFM, after which the AIFM shall be registered within the CNMV's Registry.

Questions	Answers
(i) Please provide a link to the local regulator's website (even if in the local language only) where information on the notification procedure for incoming passported AIFs is set out?	Please find the CNMV website link and the specific document where information on the notification procedure for passported AIFs is set out: https://www.cnmv.es/portal/Legislacion/ModelosN/ModelosN?id=IICEX https://www.cnmv.es/DocPortal/Legislacion/ModelosNormalizados/IIC/UCITSandFIAsnotificationprocedures22.pdf
(j) Is it recommended or mandatory to include certain disclaimers/warnings in the written marketing materials for a Passported AIF? If so, provide recommended wording in Section D of Appendix 1 and 2 of this Memorandum.	It is mandatory to include the registration number of the passported AIF granted by the CNMV upon registration as well as a reference to the places where the relevant documentation of the passported AIF may be obtained. Suggested wording could be in the lines set out in Section D of Appendix 1 or 2, as applicable. Where the communication amounts to a “marketing communication” within the scope of ESMA’s Marketing Guidelines, see disclaimer wording in Appendix 4D. Where a Closed-Ended Fund is being marketed via the AIFMD Marketing passport, it may, depending on the context, also be necessary to include wording describing which PR3 exemption is being used. See Appendix 2.D. It is not necessary for the marketing materials to provide details of the Representative. The representative is for CNMV purposes.
4.3 Co-operation Agreements	
(a) With reference to section 6.7 of the <i>European Framework Document</i> , please confirm the current status of the Memoranda of Understanding entered into by your jurisdiction and the competent authorities of non-EEA jurisdictions.	In the MoU Communication, the CNMV informed ESMA that it is compliant with the guidelines on model MoU concerning consultation, cooperation and the exchange of information related to the supervision of AIFMD entities because either they have already executed the relevant MoUs or they will plan to execute them in the future according to the models published by ESMA. Please refer to the list published by ESMA on the MoUs executed by the CNMV with different competent authorities of non-EU jurisdictions: https://www.esma.europa.eu/document/aifmd-mous-signed-eu-authorities Note that there is also an MOU between the UK and EEA Member States (including Spain) which also applies to Article 42 AIFMD: https://www.fca.org.uk/publication/mou/mmou-eu-fca.pdf

Questions	Answers
4.4 Definition of “AIFMD Marketing” and/or “Pre-Marketing”	
Please refer to section 6.3 of the <i>European Framework Document</i>. (a) (i) With reference to section 6.3 of the <i>European Framework Document</i>, is there any law or guidance in your jurisdiction regarding the definition of “marketing” in the context of AIFMD (i.e. AIFMD Marketing)? Is it possible to distinguish between specific marketing activities that trigger the requirements deriving from the AIFMD (i.e. AIFMD Marketing), including the requirement to make a registration/notification, and permitted marketing activities which fall outside the scope of the AIFMD (i.e. Pre-Marketing) and which may be conducted prior to making the notification/registration filing or during such process?	Yes. Marketing in the context of AIFMD has a specific definition under Spanish legislation: The concept of marketing which triggers registration requirements is defined under Article 2.1 of Law 35/2003 for Open-Ended Funds and under Article 75.5 of Law 22/2014 for Closed-Ended Funds. According to these provisions, marketing means: • “<i>Raising investors in the collective investment scheme by means of any type of “publicity activities”, for the account of the collective investment scheme itself or any person acting in its name or in the name of any of its distributors</i>”. • “<i>Publicity activities” are any kind of communication addressed to possible investors aimed to promote directly or indirectly or by means of any third party acting for the account of the collective investment scheme or its management company, the subscription or acquisition of shares or units in the collective investment scheme.</i> • <i>Publicity activities occur when the means used to contact investors are telephone calls initiated by the AIF or the management company, visits, personally addressed letters, emails or any other electronic means forming part of a “campaign”.</i> • <i>A “campaign” shall be carried out in Spain when it is addressed to Spanish residents. In the case of e-mails and any other electronic means, the offer will be understood as addressed to Spanish residents when the AIF or its management company, or any person acting in the name and on behalf of them, proposes the acquisition or the subscription of shares/units or provides Spanish residents with the necessary information to understand the terms of the offer. In this regard marketing of AIFs will require its registration with the CNMV.</i> Where a particular activity amounts to AIFMD Marketing it triggers compliance with the various AIFMD requirements applicable to marketing AIFs (including the requirement to make a notification to use the AIFMD Marketing Passport or the requirement to obtain registration of the AIF to use the private placement regime, as applicable). Following the implementation of the CBDF Directive in Spain, active marketing activities relating to an AIF that go beyond the scope of CBDF Pre-Marketing or Non-CBDF Pre-Marketing (to the extent applicable) constitute AIFMD Marketing and trigger the requirements referred to above.
Harmonised CBDF Pre-Marketing Regime	

Questions	Answers
In this section we are concerned with the harmonised CBDF Pre-Marketing regime which applies to EU AIFMs eligible to market EU AIFs via the AIFMD Marketing Passport. Please refer to section 6.3 of the <i>European Framework Document</i> and in particular the discussion regarding CBDF Pre-Marketing.	
(b) Where the CBDF Directive has been transposed into the national law of your jurisdiction, please could you:	
(i) confirm that the concept of CBDF Pre-Marketing as implemented in your jurisdiction aligns with the definition of CBDF Pre-Marketing in section 30a AIFMD. ¹	Confirmed. RDL 24/2021 introduces the concept and regulation of pre-marketing in Spain, in line with the CBDF Directive. In this regard, Articles 62 and 63 of RDL 24/2021 modify the distribution regime of collective investment undertakings. (a) Specifically in accordance with Article 62 of RDL 24/2021 which modifies Law 35/2003², “pre-marketing” means: “<i>the provision of information or communication, direct or indirect, on investment strategies or investment ideas by a management company authorized in Spain in accordance with EU Directive 2011/61/EU of the European Parliament and of the Council of 8 June 2011 or carried out on its behalf to potential professional investors domiciled or registered in Spain and in the rest of the European Union, in order to test their interest in a CIS other than those regulated by Directive 2009/65/EC of the European Parliament and of the Council of 13 July 2009 or a compartment which is not yet established or is already established but whose marketing has not yet been notified in Spain or in the Member State in which the potential professional investors are domiciled or have their registered office, and which in each case does not amount to an offer or placement to the potential professional investor to invest in the units or shares of said CIS or compartment</i>”; and (ii) in accordance with Article 63 of RDL 24/2021, which modifies Law 22/2014³, “pre-marketing” means: “<i>the provision of information or communication, direct or indirect, on investment strategies or investment ideas by management companies authorized in Spain or</i>

¹ As set out in section 6.3 of the *European Framework Document*, the definition of CBDF Pre-Marketing in 30a(1) AIFMD is as follows: “pre-marketing” means provision of information or communication, direct or indirect, on investment strategies or investment ideas by an EU AIFM or on its behalf, to potential professional investors domiciled or with a registered office in the Union in order to test their interest in an AIF or a compartment which is not yet established, or which is established, but not yet notified for marketing in accordance with Article 31 or 32, in that Member State where the potential investors are domiciled or have their registered office, and which in each case does not amount to an offer or placement to the potential investor to invest in the units or shares of that AIF or compartment;”

² Law 35/2003, of November 4, 2003, on Collective Investment Undertakings (*Ley 35/2003, de 4 de noviembre, de Instituciones de Inversión Colectiva*) (“**Law 35/2003**”).

³ Law 22/2014, of November 12, regulating venture capital entities, other closed-end collective investment undertakings and management companies of closed-end collective investment undertakings, and amending Law 35/2003, of November 4, on Collective Investment Undertakings (“**Law 22/2014**”).

Questions	Answers
	<i>carried out on their behalf to potential professional investors domiciled or registered in Spain and in the rest of the European Union, in order to test their interest in an AIF or a compartment which is not yet established or is already established but whose marketing has not yet been notified in Spain or in the Member State in which the potential professional investors are domiciled or have their registered office, and which in each case does not amount to an offer or placement to the potential professional investor to invest in the units or shares of said AIF or compartment”.</i> (together, “Pre-Marketing”). We note that the Spanish law definition of CBDF Pre-Marketing is quite closed and does not specifically capture the position that applies in respect of EEA AIFMs in respect of their EEA AIFs - in the definition above, the Spanish legislation expressly refers to AIFM authorised in Spain (instead of “EEA AIFM” in the CBDF Directive). The position that applies as to whether it is permitted for an EEA AIFM to pre-market its EEA AIF in Spain (even where the EEA AIFM submits an informal letter to its home member state regulator in accordance with the requirements of such home member state and such letter is transmitted to the CNMV) is therefore not clear. However, our understanding is that following a passporting philosophy, pre-marketing activity in Spain by an EEA AIFM from another EEA Member State should be governed by the law of that AIFM home Member State.
(ii) confirm whether the scope of permitted CBDF Pre-Marketing in your jurisdiction applies to AIFs not yet established as well as AIFs which are established but not yet notified for marketing passport purposes;	Confirmed. Please see 4.4(b)(i) above.
(iii) confirm whether the following activities/circulation of the following materials would fall <u>within</u> the scope of permitted CBDF Pre-Marketing :	
(A) discussions whether on the telephone, via email or at a Fly-In Meeting on investment strategies/ideas to test investor interest in an AIF (where Fund name is <u>not mentioned</u>);	Discussions on the telephone, via email or at a Fly-In Meeting on investment strategies/ideas to test investor interest in an AIF (where Fund name is not mentioned) would fall within the scope of permitted Pre-Marketing in accordance with the provisions of RDL 24/2021, provided that the information offered to potential professional investors during such discussions is not: (i) sufficient to enable professional investors to commit themselves to acquire units or shares of an AIF;

Questions	Answers
	(ii) equivalent to subscription forms or similar documents, whether in draft or final form; and (iii) equivalent to constitutional documents, a prospectus or offering documents of an AIF not yet established in its final version.
(B) discussions whether on the telephone, via email or at a Fly-In Meeting on investment strategies/ideas to test investor interest in an AIF (where Fund name is mentioned);	Confirmed. Please see (A) above.
(C) pitchbook / presentation / term sheet / teaser document (whether in draft or final form);	Confirmed. Please see (A) above.
(D) DDQ (whether in draft or final form);	Confirmed. Please see (A) above.
(E) PPM / offering document / prospectus (in draft form);	Confirmed. Please see (A) above. Moreover, PPM, offering documents and prospectus (in draft form) would fall within the definition of permitted Pre-Marketing provided that: (i) do not contain sufficient information to enable professional investors to make an investment decision; and (ii) clearly state: (a) that they do not constitute an offer or an invitation to subscribe for units or shares of AIF, and (b) that the information contained therein is not reliable because it is incomplete and may be subject to changes – Please see Appendix 1 below for example language. Finally, circulation of a final form offering document / prospectus would trigger the requirement to make the notification to use the AIFMD Marketing Passport.
(F) Constitutional documents e.g. Memorandum, Articles of Association, LPA (in draft form)	Confirmed. Please see (A) above.
(iv) confirm that the following activities/circulation of the following materials would fall outside the scope of permitted CBDF Pre-Marketing and would trigger the AIFMD Marketing Passport notification requirement:	

Questions	Answers
(G) PPM / offering document / prospectus (in final form);	Confirmed, this would constitute AIFMD Marketing and trigger AIFMD Marketing Passport notification.
(H) Constitutional documents e.g. Memorandum, Articles of Association, LPA (in final form)	Confirmed, this would constitute AIFMD Marketing and trigger AIFMD Marketing Passport notification.
(I) Subscription documentation (in draft or final form)	Confirmed, this would constitute AIFMD Marketing and trigger AIFMD Marketing Passport notification.
(v) confirm whether there are any requirements/restrictions as regards the type of firm/OFI that can conduct the CBDF Pre-Marketing and if so please can you specify the requirements that apply. Specifically, has your jurisdiction implemented the requirement in the CBDF Directive which stated that a third party shall only engage in CBDF Pre-Marketing on behalf of an authorised EU AIFM where it is a MiFID II Investment Firm, a CRD Credit Institution, a UCITS ManCO, an EEA AIFM or MiFID tied agent. If implemented has there been any gold-plating or amendments to the scope of this requirement?	Confirmed. In accordance with articles 62 and 63 RDL 24/2021 a third party may only engage in Pre-Marketing on behalf of a management company where: (i) it is authorised as an investment firm under MIFID II⁴; (ii) is a credit institution under CRD⁵, as a UCITS management company or AIFM under Law 35/2003 and Law 22/2014; and (iii) it acts as a tied agent under MIFID II. Such third party shall be subject to the provisions of Articles 62 and 63 RDL 24/2021. In light of the above, we conclude that there is no gold- plating.
(vi) confirm whether the restriction on being able to rely on an investment arising from a reverse enquiry which applies for the 18 month period following CBDF Pre-Marketing having been conducted has been implemented in your jurisdiction? If so, please provide any relevant details such	Confirmed. According to the RDL 24/2021, any subscription made by professional investors, within 18 months after an AIFM has started Pre-Marketing units or shares of an AIF included in the information provided in the context of Pre-Marketing, or an AIF established as a result of Pre-

⁴ Directive 2014/65/EU of the European Parliament and of the Council of 15 May 2014 on markets in financial instruments and amending Directive 2002/92/EC and Directive 2011/61/EU Text with EEA relevance (*Directiva 2014/65/UE del Parlamento Europeo y del Consejo, de 15 de mayo de 2014 , relativa a los mercados de instrumentos financieros y por la que se modifican la Directiva 2002/92/CE y la Directiva 2011/61/UE Texto pertinente a efectos del EEE*) (“**MIFID II**”)

⁵ Directive 2013/36/EU of the European Parliament and of the Council of 26 June 2013 on access to the activity of credit institutions and the prudential supervision of credit institutions and investment firms, amending Directive 2002/87/EC and repealing Directives 2006/48/EC and 2006/49/EC Text with EEA relevance (*Directiva 2013/36/UE del Parlamento Europeo y del Consejo, de 26 de junio de 2013 , relativa al acceso a la actividad de las entidades de crédito y a la supervisión prudencial de las entidades de crédito y las empresas de inversión, por la que se modifica la Directiva 2002/87/CE y se derogan las Directivas 2006/48/CE y 2006/49/CE Texto pertinente a efectos del EEE*) (“**CRD**”)

Questions	Answers
as whether the restriction only applies to investors that were the recipients of the CBDF Pre-Marketing activities or to all investors in your jurisdiction;	Marketing, shall be deemed to be the result of marketing and shall be subject to the notification procedures applicable to marketing. Under the assumption above, we understand that the restriction applies to all professional investors in Spain who make a subscription within 18 months after an AIFM has started Pre-Marketing in Spain irrespective of whether such investors were the actual recipients of the Pre-Marketing. However, the CNMV has not issued any communication or guidance in this regard; therefore, our interpretation might be modified in the future.
(vii) confirm whether the implementation of the CBDF Pre-Marketing is as per the minimum requirements of the CBDF Directive or otherwise describe the gold-plating (super-equivalent) measures relevant only to CBDF Pre-Marketing if you have not already done so within your other responses to the other sub-sections of this section 4.4(b);	We have not identified any gold-plating in Spain.
(viii) confirm whether any information has been provided regarding the informal letter that is to be provided to the AIFM's home member state in connection with CBDF Pre-Marketing to Professional Investors in your jurisdiction. Where your jurisdiction is the AIFM's home member state and CBDF Pre-Marketing is to be conducted in your jurisdiction or on a cross-border basis into another jurisdiction, please can you provide any details on how the informal letter should be submitted.	Confirmed for Pre-Marketing conducted by a Spanish AIFM on a cross-border basis into another EU jurisdiction under the following conditions: - Timeframe: Within 2 weeks after Pre-Marketing has started the relevant AIFM shall send to the CNMV an informal letter. - Format: on paper or by electronic means (e.g. email/via CIFRADOC). There is no specific template for the letter at this stage. It should be addressed to the CNMV but at this stage it is not clear exactly which department it should be directed to. - Content: The informal letter shall specify: (i) the Member States where the Pre-Marketing has taken place and the periods during which Pre-Marketing is taking place or has taken place; (ii) a brief description of the Pre-Marketing including information on the applicable investment strategies; and (iii) if applicable, a list of the AIF and AIF compartments which Pre-marketing was performed. Once the CNMV has received such letter, it shall inform the competent authorities of the Member States in which the AIFM carries out or has carried out the Pre-Marketing without delay.

Questions	Answers
	After the communication takes place, such competent authorities may request the CNMV to provide additional information on the Pre-Marketing that is taking or has taken place in its territory.
Non-CBDF Pre-Marketing Regime	
In this section we seek to identify whether it is possible to conduct any pre-marketing activities in relation to AIFs that must be marketed/sold via the national private placement regime (either via Article 36 or Article 42 AIFMD). Pre-Marketing of such AIFs has not been harmonised by the CBDF Directive. However, it is anticipated that the new CBDF regime may impact pre-marketing activities in this context, particularly given that recital 12 of the CBDF Directive specified that non-EU managers should not be advantaged over EU managers. Please refer to section 6.3 of the <i>European Framework Document</i> and in particular the discussion regarding Non-CBDF Pre-Marketing.	
(c) Is it permitted to conduct any Non-CBDF Pre-Marketing to assess investor appetite in respect of an AIF prior to making a registration/notification to use the national private placement regime? If so, please could you provide a definition of what would amount to permitted Non-CBDF Pre-Marketing.	The Article 42 private placement regime in Spain involves a two-step process – authorisation of the Non-EEA AIFM and then registration of the AIF. The Pre-Marketing regime discussed in (b) above will also apply to non-EEA AIFMs authorised in Spain who can pre-market the AIF prior to its register to use Article 42 national private placement regime. For EEA AIFMs with non-EEA AIFs the regime is not clear. However, our understanding is that, following a passporting philosophy, pre-marketing activities in Spain by an EEA AIFM from another EEA Member State should be governed by the law of the AIFM's home Member State. The definition of Non-CBDF Pre-Marketing will therefore align with that of CBDF Pre-Marketing discussed in (b) above. The extension of the pre-marketing regime to non-EEA AIFMs is in line with recital 12 of the CBDF Directive, which specified that non-EU managers should not be advantaged over EU managers.
(i) Where Non-CBDF Pre-Marketing is permitted in your jurisdiction, please could you outline the types of marketing activities which would fall within the scope of such permitted Non-CBDF Pre-Marketing distinguishing if relevant between:	Please see 4.4(b)(ii) and 4.4(b)(iii) above.
(J) the status of the Fund (e.g. whether established or still under formation);	Please see 4.4(b)(ii) and 4.4(b)(iii) above.

Questions	Answers
(K) the types of activity conducted and/or materials that can be circulated (whether in draft or final form):	
discussions whether on the telephone, via email or at a Fly-In Meeting on investment strategies/ideas to test investor interest in an AIF (where Fund name is not mentioned);	Please see 4.4(b)(ii) and 4.4(b)(iii) above.
discussions whether on the telephone, via email or at a Fly-In Meeting on investment strategies/ideas to test investor interest in an AIF (where Fund name is mentioned);	Please see 4.4(b)(ii) and 4.4(b)(iii) above.
pitchbook / presentation / term sheet / teaser document	Please see 4.4(b)(ii) and 4.4(b)(iii) above.
DDQ	Please see 4.4(b)(ii) and 4.4(b)(iii) above.
PPM / offering document / prospectus	Please see 4.4(b)(ii), 4.4(b)(iii) and (b)(iv) above.
Constitutional documents e.g. Memorandum, Articles of Association, LPA	Please see 4.4(b)(ii), 4.4(b)(iii) and (b)(iv) above.
subscription documents;	Please see 4.4(b)(ii), 4.4(b)(iii) and (b)(iv) above.
(L) any specific “pre-marketing” activities to avoid on the basis that these will trigger the relevant requirements; and	Please see 4.4 (b)(iv).
(M) any other relevant considerations in your jurisdiction (e.g. number or type of investor to whom the “pre-marketing” is done).	Pre-Marketing can only be made to professional investors.
(ii) Please could you confirm whether there is any requirement to inform the regulatory authorities about	There is no further requirements regarding information obligations to the CNMV. As explained in section (b)(viii) above, AIFMs will be required to submit to the CNMV, within

Questions	Answers
the Non-CBDF Pre-Marketing? ⁶ If so, such a requirement applies please could you provide details of what is required e.g.	two weeks after having started Pre-Marketing, an informal letter, on paper or electronically. In said letter they should specify the Member States where the Pre-Marketing has taken place and the periods during which Pre-Marketing is taking place or has taken place, a succinct description of the pre-marketing including information on the investment strategies and, if applicable, a list of the CIS and the compartments of the CIS that were subject to Pre-marketing. Please see (b)(viii) above.
(N) to whom must the notice be provided	To the CNMV.
(O) what information is to be specified; and	Please see 4.4(c)(ii) above.
(P) what timeframe applies.	Two weeks. Please see 4.4(c)(ii) above.
(iii) any there any requirements/restrictions as regards the type of firm/OFI that can conduct the Non-CBDF Pre-Marketing and if so please can you specify the requirements that apply. ⁷	A third party shall only engage in Non-CBDF Pre-Marketing where it is a MiFID II Investment Firm, a CRD Credit Institution, a UCITS ManCo, an EEA AIFM or a MiFID II tied agent. Please see 4.4 (b)(v) above.
(iv) confirm whether there are any restriction on being able to rely on an investment arising from a reverse enquiry following Non-CBDF Pre-Marketing having been conducted has been implemented in your jurisdiction? ⁸ If so, please provide any relevant details such as whether the restriction only applies to investors that were the recipients of the Non-CBDF Pre-Marketing activities or to all investors in your jurisdiction;	Please see (b)(vi) above.
4.5 Provision of Non-Core Services by an AIFM	

⁶ We note that the CBDF Directive stipulates that an informal letter be sent to the EEA AIFM's home member state within two weeks of the CBDF Pre-Marketing activity commencing. This question seeks to identify the position that applies for Non-CBDF Pre-Marketing and whether this requirement for an informal letter has also been introduced in connection with Non-CBDF Pre-Marketing.

⁷ We note that the CBDF Directive stipulates that a third party shall only engage in CBDF Pre-Marketing on behalf of an authorised EEA AIFM where it is a MiFID II Investment Firm, a CRD Credit Institution, a UCITS ManCO, an EEA AIFM or a MiFID tied agent. As part of responding to this question could you consider whether a similar requirement applies to Non-CBDF Pre-Marketing.

⁸ We note that the CBDF Directive introduced an 18 month restriction on reverse enquiries following the conduct of CBDF Pre-Marketing. As part of responding to this question could you consider whether a similar restriction applies to Non-CBDF Pre-Marketing.

Questions	Answers
Please refer to section 8.3 of the <i>European Framework Document</i>. (a) Please confirm the position in your jurisdiction regarding the non-core MiFID II services which an AIFM may be authorised to provide pursuant to Article 6(4) of the AIFMD (e.g. Investment Advice and reception and transmission of orders (a type of Arranging)) and whether these may be provided by an AIFM authorised in another EEA member state on a cross-border basis into your jurisdiction.	EEA AIFMs may provide services in Spain either directly or through a branch provided they are authorised to provide such services by their EU home state, as provided in article 55.bis of Law 35/2003 and article 82 of Law 22/2014. Spanish law does not specify which services (core/non-core).
4.6 Small AIFMs	
Please refer to section 3.2 of the <i>European Framework Document</i> which deals with the requirements deriving from the AIFMD in respect of “Small AIFMs”. (a) Please outline the position as regards a Small AIFM wishing to market an AIF into your jurisdiction. If appropriate please cross-refer to your answers in section 7.1 (Private Placement Regime (AIFs and Non-Passported UCITS Funds)). Please ensure that your answer specifies whether any particular notification/approvals/registrations or authorisations are necessary and addresses the following scenarios: (i) Small EEA AIFM marketing EEA AIF; (ii) Small EEA AIFM marketing non-EEA AIF; (iii) Small Non-EEA AIFM marketing EEA AIF; and (iv) Small Non-EEA AIFM marketing Non-EEA AIF.	Under Spanish legislation there are no lighter requirements which apply to Small AIFMs from another EU or non-EU member State when wishing to market a Fund into Spain. Please see section 7.1 for further details.
4.7 Sub-funds	
(a) Please can you confirm whether in your jurisdiction, sub-funds will be treated as separate AIFs, whether the undertaking as a whole will be treated as an AIF or whether the undertaking as a whole and each sub-fund are treated as an AIF.	By means of the Key Concepts Communication the CNMV accepted the ESMA Guidelines on key concepts of the AIFMD (ESMA/2013/611), dated 9 October 2013. In this regard, according to the Key Concepts Communication, where an investment compartment of an undertaking exhibits all the elements in the definition of an ‘AIF’ in Article 4(1)(a) of the AIFMD (i.e. ‘collective investment undertaking’, ‘raising capital’, ‘number of investors’ and

Questions	Answers
	‘defined investment policy’) this should be sufficient to determine that the undertaking as a whole will be treated as an ‘AIF’ under Article 4(1)(a) of the AIFMD. In addition, for CNMV fees purposes, AIFs compartments will need to be registered independently and accrue specific registration fees.

5. PASSIVE MARKETING (REVERSE-ENQUIRY)

Questions	Answers
Please refer to section 7 of the <i>European Framework Document</i>. (a) Is marketing/selling of an AIF (whether Open-Ended or Closed-Ended) permitted following an unsolicited approach by an investor to an OFI? Please outline the legal basis of permitted reverse-enquiries considering the following (if relevant):	Yes, the marketing/selling of a Fund following the reverse-enquiry solicitation will be permitted, provided the Conditions for Permitted Reverse Enquiry are met. Please see section 4.4(b)(vi) for restriction on responding to a reverse enquiry following pre-marketing.
(i) What constitutes a “reverse-enquiry”/“reverse-solicitation” within your jurisdiction?	As mentioned in section 4.4(a) above, the legal basis is set out in Law 22/2014 and Law 35/2003 with regards to the concept of marketing. Having said that, the main exception to this is “reverse-enquiry”/ “reverse-solicitation” if the Conditions for Permitted Reverse Enquiry are met.
(ii) Must a “reverse-enquiry”/“reverse-solicitation” relate to a specific AIF or can it be more general?	If the “reverse-enquiry”/“reverse-solicitation” relates to a specific Fund it would be easier to amount to a reverse solicitation. However, in case the solicitation does not refer to a specific Fund but to an investment strategy upon the client’s sole enquiry, that could also constitute a reverse solicitation. In any case, this must be analysed on a case-by-case basis and the OFI must be as passive as possible. Once such unsolicited request has been received and a relationship has been established, any other subsequent acts or activities arising from such client relationship would also be considered unsolicited (without any additional need for an initiative from the investor), although the solicited entity must strictly stick to the request of the relevant client, without being capable of offering or rendering any regulated service outside the scope of the request without triggering licensing requirements. Indeed, this does not apply to activities outside the initial unsolicited relationship, i.e. offering new Funds which are not again requested on an unsolicited basis by such investor.

Questions	Answers
(iii) Does it make a difference if there is a pre-existing relationship with the investor?	Yes. For existing clients, please see our response to question 5(a)(ii) above.
(iv) Must each separate transaction with a particular investor be preceded by a “reverse-enquiry”/“reverse-solicitation”?	Please see Section 5(a)(ii) above.
(v) Is there a maximum number of potential investors an OFI may market/sell to in response to unsolicited approaches?	No, there are not a maximum number of potential investors an OFI may market/sell to in response to unsolicited approaches. However, it should be noted that “reverse-enquiry”/ “reverse-solicitation” cannot be seen as a viable alternative to market Funds in Spain, since unsolicited requests are likely to occur only very occasionally. Frequent reliance on the reverse enquiry route (i.e. to a sizeable number of investors) would look suspicious to the CNMV.
(vi) Does it matter if a third party intermediary made the approach on behalf of the investor?	To the extent it is a real unsolicited request, it is not relevant whether an intermediary made the approach on behalf of the investor.
(vii) Does the investor need to be a particular type of investor e.g. a Professional Investor?	No, the investor does not need to be a particular type of investor to rely on the reverse enquiry exception.
(viii) Are there restrictions regarding future communications with investors known to the OFI on the basis of a “reverse-enquiry”/“reverse-solicitation”?	Please see our response to question 5(a)(ii) regarding pre-existing clients.
(b) Please confirm whether your response to (a) above would apply where an unsolicited approach is made in respect of a Non-Passported UCITS Fund by an investor from your jurisdiction. If the position would differ please specifically address the legal basis of permitted reverse enquiries, together with any conditions that apply relating to Non-Passported UCITS Funds, addressing the same issues set out in (–) - (viii) in (a) above.	Yes, it would apply. The marketing/selling of a Non-Passported UCITS Fund following an unsolicited approach by an investor to an OFI will be permitted, provided the Conditions for Permitted Reverse Enquiry are met.
(c) With reference to your responses to (a) and (b) above, please provide any applicable practical advice in respect of the “reverse-enquiry” regime in respect of Funds that you think is relevant. For example:	

Questions	Answers
(i) are there particular compliance procedures which are advised?	There are no specific requirements regarding particular compliance procedures on a reverse enquiry basis. In any case, it is advisable to keep written evidence (e.g. emails, countersigned letters/notices, etc.) of the unsolicited nature of the request of a client to the OFI with respect to the marketing/selling of a Fund.
(ii) are there any specific requirements regarding how investor documentation or application forms are provided to an investor known to the OFI on the basis of "a "reverse-enquiry"?"	There are no specific requirements regarding how investor documentation or application forms are provided to an investor on a reverse enquiry basis. In any case, it is advisable to keep written evidence (e.g. emails, countersigned letters/notices, etc.) of the unsolicited nature of the request of a client to the OFI with respect to the marketing/selling of a Fund. While it may be possible to use certain template language to confirm that the investor initiated the approach, please note that frequent reliance on the reverse enquiry route (i.e., among a sizeable number of investors) would look suspicious to the CNMV and that having templates could be evidence that the reverse enquiry is frequently used.
(iii) please also consider whether it is possible for an OFI to receive a general confirmation from a potential investor that it is happy to be contacted about future opportunities?	To the extent it is a real unsolicited request (which is very unlikely to be the case) it is possible to receive a general confirmation from a potential investor.
(iv) are there any registration/notification/approval/licensing requirements which apply in respect of the OFI following an unsolicited approach regarding a Fund by an investor to an OFI?	No. The same rules and comments with regards to the reverse enquiry exemption applies. Please see above.
If the practical advice differs for AIFs as compared to Non-Passported UCITS Funds, please make sure your response deals with both types of Fund.	
(d) Is marketing/selling of Investment Management & Advisory Services permitted following an unsolicited approach by an investor to an OFI? Please outline the legal basis of permitted reverse-enquiries considering the following (if relevant):	Yes, the marketing/selling of Investment Management & Advisory Services following an unsolicited approach by an investor to an OFI will be permitted, provided the Conditions for Permitted Reverse Enquiry are met. In this regard, you should note that marketing/selling of Investment Management & Advisory Services will qualify as investment services pursuant to the SMA (i.e. Portfolio Management, Investment Advice, Arranging and Execution of Orders on behalf of Clients will qualify as Investment Services). Investment Services may only be legally marketed or provided within Spain on a regular and professional basis by investment services firms and/or credit entities that hold a Spanish licence. These services may also be marketed or provided in Spain by an EEA

Questions	Answers
	Passporting Entity (either through a permanent establishment or on a cross-border basis) or an Authorised Non-EU Entity. Whilst EU entities may benefit from the EU passport, non-EU entities will require previous authorisation from the CNMV (supervision of investment services is always made by the CNMV) for the creation of a branch or in order to act on a cross-border basis. If an EU entity intends to exercise the freedom to provide services in Spain, it will need to notify its home Member State regulator in accordance with the passporting provisions implemented in its home Member State. To summarise, the following entities may “render” and/or market Investment Services: (i) Spanish entities authorised in Spain (by means of a Spanish licence granted in Spain which may also allow them to act in the EU pursuant to MiFID II); (ii) EEA Passporting Entities (i.e. those acting in Spain by means of a MiFID II licence granted in another EU Member State); and (iii) non-EU entities authorised in Spain by means of a local licence (which is not a full MiFID II licence as it only allows them to provide such services in Spain). If/when the necessary pre-requisites are met (e.g. necessary equivalence determinations are in place), it may also be possible in the future for a Third Country Passporting Entity to market/sell Investment Management & Advisory Services. At present no such equivalence determinations have been made. For the above purposes, an Investment Service would be deemed “rendered” on a “regular” basis when it is rendered together with commercial, publicity or other type of activities intended to obtain clients or based on using client, interest or other types of relationship. There is case law indicating that the term “regular” refers to the general activities carried out by the firm itself rather than to the activities carried out in Spain. In other words, according to this case law, the triggering event is whether the firm provides Investment Services regularly rather than if it has contacted a few clients in Spain. “Professional” means that the services or activities are rendered for consideration. In addition, the marketing of Investment Services (including any type of publicity activities, mass media advertisements, cold-calling, cold-emails, visits, personally addressed letters or any other electronic communications directed at a Spanish resident) and clients’ solicitation are also restricted activities and can only be carried out on a professional basis, directly or through agents, by entities duly authorised to render Investment Services. Having said that, the main exception to the above is “reverse-enquiry”/ “reverse-solicitation”. Please see below our responses with respect to “reverse-enquiry”/ “reverse-solicitation” queries.

Questions	Answers
(i) What constitutes a “reverse-enquiry”/“reverse-solicitation” within your jurisdiction?	In order to determine applicability of Spanish Investment Services regulations it should be analysed which party has taken the initiative to contract with the other ("solicitation test"). The solicitation test or initiative test focuses on which party has taken the initiative to contact the other. In the event that an OFI contacts an investor in Spain to offer them its services in the first place, the services rendered as a result of this first contact shall be deemed rendered in Spain. However, no restricted activities should be deemed to be carried out in Spain if the Spanish resident client contacts (either on a one-time or regular basis) an OFI abroad and such entity merely responds to the requests for services made by the Spanish resident investor being as passive as possible (passive solicitation/unsolicited request/reverse-enquiry). Accordingly, it is our opinion that if Conditions for Permitted Reverse Enquiry are met, the OFI should not be deemed to engage in the marketing or provision of restricted Investment Services. Further, if the OFI regularly provides research reports and market commentary to the client it will not be deemed to engage in the marketing or provision of restricted Investment Services and no authorisation will be required.
(ii) Must a “reverse-enquiry”/“reverse-solicitation” relate to a specific Investment Management & Advisory Service or can it be more general?	If the “reverse-enquiry”/ “reverse-solicitation” relates to a specific Investment Management & Advisory Service (IMAS) it would be easier to amount to a reverse solicitation. However, in case the solicitation does not refer to a specific Investment Management & Advisory Service but to an investment strategy upon the client’s sole inquiry, that could also constitute a reverse solicitation. In any case, this must be analysed on a case-by-case basis and the OFI must be as passive as possible.
(iii) Does it make a difference if there is a pre-existing relationship with the investor?	Once such unsolicited request has been received and a relationship has been established any other subsequent acts or activities arising from such client relationship would also be considered unsolicited if the OFI strictly sticks to the request of the relevant investor (i.e. the licensing requirements will be triggered if the OFI renders a regulated service outside the scope of the investor’s initial request. For example, it is perfectly permissible to set up a client relationship comprising investment or portfolio management services, investment advice or brokerage services accounts with a client following an unsolicited request by such client. Note though that the solicited entity must strictly stick to the request of the relevant client, without being capable of offering or rendering any regulated service outside the scope of the request without triggering licensing requirements. Indeed, this does not apply to activities outside the initial unsolicited relationship i.e. offering new IMAS which are not again requested on an unsolicited basis by such

Questions	Answers
	investor. For example, the delivery of confirmations, portfolio statements, calls or communications with the client to render investment advice or any other service set out in the client relationship would be perfectly admissible as long as they are confined to or in compliance with the initial unsolicited relationship (i.e., such exception does not cover the offering of new products or services which are not again requested on an unsolicited basis by such a client).
(iv) Must each separate transaction with a particular investor be preceded by a “reverse-enquiry”/“reverse-solicitation”?	Yes. For existing clients, please see our response to question 5(d)(iii).
(v) Is there a maximum number of potential investors an OFI may market/sell to in response to unsolicited approaches?	No, there is not a maximum number of potential investors an OFI may market/sell to in response to unsolicited approaches. However, it should be noted that “reverse-enquiry”/ “reverse-solicitation” cannot be seen as a viable alternative to market financial products and/or services in Spain, since unsolicited requests are likely to occur only very occasionally. Frequent reliance on the reverse enquiry route (i.e., among a sizeable number of investors) would look suspicious to the CNMV.
(vi) Does it matter if a third party intermediary made the approach on behalf of the investor?	To the extent it is a real unsolicited request, it is not relevant whether an intermediary made the approach on behalf of the investor.
(vii) Does the investor need to be a particular type of investor e.g. a Professional Investor?	No, the investor does not need to be a particular type of investor.
(viii) Are there restrictions regarding future communications with investors known to the OFI on the basis of a “reverse-enquiry”/“reverse-solicitation”?	Please see our response to question 5(d)(iii) regarding pre-existing clients.
(e) Please provide any applicable practical advice in respect of the “reverse-enquiry” regime in respect of Investment Management & Advisory Services that you think is relevant. For example:	
(i) are there particular compliance procedures which are advised?	There are no specific requirements regarding compliance procedures provided to an investor on a reverse enquiry basis.
(ii) are there any specific requirements regarding how investor documentation or application forms are	There are no specific requirements regarding how investor documentation or application forms are provided to an investor on a reverse enquiry basis. In any case, it is advisable to keep written evidence (e.g. emails, countersigned letters/notices, etc.) of the unsolicited nature of the request

Questions	Answers
provided to an investor known to the OFI on the basis of a "reverse-enquiry"?	of a client to the OFI with respect to the marketing/selling and the rendering of Investment Management & Advisory Services. Please refer to section 5(d) above for further detail. For considering reverse-enquiry solicitation to apply, the provisions contained in Q&A 13.1 of ESMA35-43-349⁹ shall be considered. In that sense, “<i>under the reverse solicitation regime, a third-country firm cannot market new categories of investment products to the client. Whether a third-country firm markets a new category of an investment product needs to be assessed on a case-by-case basis, taking into account elements such as (i) the type of the financial instrument which is offered; (ii) the distinction between complex and non-complex products as referred to in Article 25(4) of MIFID II; (ii) the riskiness of the product. For example, a subordinated bond does not belong to the same category as a plain-vanilla debt instrument. In addition, categories of investment products should be granular enough to ensure that the reverse solicitation is not used as a way of circumventing a national regime of a Member State governing the provision of investment services by a third-country firm</i>”.
(iii) is it possible for an OFI to receive a general confirmation from a potential investor that it is happy to be contacted about future opportunities?	To the extent it is a real unsolicited request (which is very unlikely the case), it is possible to receive a general confirmation from a potential investor. Having said that, distributions of letters or communications addressed to clients asking them whether they are happy to be contacted about any future opportunities will be not permitted.

6. MARKETING/SELLING TO THE PUBLIC

Questions	Answers
6.1 Passported UCITS Funds and Pre-Marketing of UCITS Funds	
Please refer to section 5.1 of the European Framework Document which deals with the notification process applicable to a Passported UCITS Fund.	
(a) Please confirm whether the position set out in section 5.1 of the <i>European Framework Document</i> applies in your jurisdiction.	Correct, the position set out in section 5.1 of the <i>European Framework Document</i> applies in Spain.
(b) Please confirm whether the implementation of the UCITS Directive is as per the minimum requirements of the UCITS	The implementation in Spain of the UCITS Directive in relation to the marketing/selling to the public of Passported UCITS Funds is generally as per the minimum requirements of the UCITS

⁹ ESMA Q&A on MiFID II and MiFIR investor protection and intermediaries topics. 19 November 2021 | ESMA35 349. Likewise, ESMA Reminder to firms of the MiFID II rules on ‘reverse solicitation’ in the context of the recent end of the UK transition period, of 13 January 2021. | ESMA35-43-2509.

Questions	Answers
Directive or otherwise describe the gold-plating (super-equivalent) measures relevant only to marketing/selling a Passport UCITS Fund in your jurisdiction.	Directive although see the requirements discussed in (iv) below regarding facilities/representatives/local agents.
(c) In relation to marketing/selling a Passport UCITS Fund in your jurisdiction, please briefly outline:	
(i) the notification process;	The notification process is set out in the UCITS Directive, along with its implementing regulations as described in section 5.1 of the <i>European Framework Document</i> , as it is harmonised in the EU. Additional conditions under Spanish law apply as discussed in (iii) regarding fees and (iv) regarding facilities/representatives/local agents below.
(ii) timescales ;	Timescales are those provided in UCITS Directive and described in section 5.1 of the <i>European Framework Document</i> . However, note our answer in 6.1(d) below – it is necessary to wait for the express confirmation of the CNMV.
(iii) costs, including any fees : (A) initially payable to the host regulator to passport the UCITS Fund; and (B) payable on an ongoing basis;	Aside from translation costs of documentation (KIDs and other legal documentation of the UCITS Funds if not in English), there may be additional costs in the Home State (notarial fees, granting of PoA, apostilled applications, etc.). Further, Law 16/2014 establishes a fixed registration fee of EUR 1,040.60 which will be accrued when registration in Spain is conducted and a fixed supervision of marketing requirements fee of EUR 2,601.51 (per sub-fund) which will be accrued on 1 January of each year.
(iv) with reference to the provisions regarding facilities agents in the CBDF Directive, please could you confirm: (A) what level of supervision/regulation will apply to any third-party providing facilities agent services in your jurisdiction (e.g. will this activity constitute a MiFID II service in your jurisdiction); and (B) whether there is any gold-plating of the provisions relating to facilities agents in your jurisdiction or any other commercial/market	(A) Articles 15 of Law 35/2003 establish that the manager should ensure that the third-party providing the “facilities” is subject to regulation and supervision governing the tasks to be performed. We understand that: (i) the activity of “process of investors’ subscription, payment, repurchase and redemption orders relating to the units or shares of the fund” would fall within the definition of “reception and transmission of orders” in accordance with MiFID II (and Spanish applicable regulations) and therefore be licensable. (ii) the activity of “providing information to investors on how orders can be made and how repurchase and redemption proceeds are paid” clients is more controversial.

Questions	Answers
practice that has emerged that you are aware of and which you consider worth highlighting(A) Articles 15 of Law 35/2003 establish that the manager should ensure that the third-party providing the “facilities” is subject to regulation and supervision governing the tasks to be performed.	Pursuant to MiFID II, investment advice means “the provision of personal recommendations to a client, either upon his request or at the initiative of the investment firm, in respect of one or more transactions relating to financial instruments”. In this regard, according to the Q&A from ESMA “<i>Understanding the definition of advice under MiFID</i>” (“Investment Advice Q&A”), for a service to be considered investment advice under MiFID II, the following “tests” must be met: 1. Does the service being offered constitute a recommendation? As long as the third party only gives objective information without making any comment or value judgement on its relevance to decisions which an investor may make, the activity of providing information would not fall under MiFID II. Otherwise the test would be met. 2. Is the recommendation in relation to one or more transactions in financial instruments? Yes, the test would be met. 3. Is the recommendation at least presented as suitable based on a consideration of the person circumstances? We don’t have this information, however if that is the case the test would be met. 4. Is the recommendation issued otherwise than exclusively through distribution channels or to the public? We understand that the service can be provided through other channels, so the test would be met. 5. Is the recommendation made to a person in his capacity as one of the following: a) an investor or potential investor or b) an agent for an investor or potential investor? Yes, test would be met. If the tests above are met, the activity of “providing information to investors on how orders can be made and how repurchase and redemption proceeds are paid” will fall within the definition of investment advice. Otherwise, it would not fall within the definition of “investment advice” and therefore would not be licensable. Requirement for a Representative and/or Local agent As regards subsection (B) of this question, in addition to the requirement to provide facilities as required under the CBDF Directive, the following should be considered in Spain. According to Circular 2/2011 a UCITS must appoint a person to: (a) act as its representative (which may be: (i) the foreign UCITS itself or its management company, or (ii) the marketing entity or legal person it designates); (b) submit tax information (applicable to self-managed UCITS only); and (c) make payment of fees.

Questions	Answers
	The representative appointed in accordance with (a) shall communicate to the CNMV any information which may be relevant for the marketing of an UCITS Fund in Spain on an on-going basis as well as any modification / amendment to the main key documents registered with the CNMV during the initial registration process. This representative could be located in Spain but this is not mandatory. Additionally, UCITS Funds must identify a representative before the CNMV for statistical purposes. All marketing entities of UCITS Funds are obliged to submit a quarterly statistical statement referred to in Circular 2/2017, even if in during the quarter they have not marketed any of the CIS for which they are registered with the CNMV. This statement is referred to as an A01 statistical statement. The person/entity entrusted with acting as the Representative and representing the UCITS before the CNMV shall obtain access to the CIFRADO/CNMV service for the submission of the relevant information to the regulatory authority. The person/entity that takes on the role in (b) and/or (c) must be a Spanish person/entity. It is possible to appoint a sole representative for distribution and representative tasks (including representation before the relevant local authorities, such as tax authorities). According to the rule 1 of the Circular 2/2011, the Spanish representative must be included in the form contained in Annex 1 of Regulation 584/2010 and that is sent the Home Member State of the UCITS Fund as part of the notification to market the UCITS in Spain.

(v) what language , or languages, are to be used by the facilities agent ;	Pursuant to article 15 of Law 35/2003 the language to be used by the Facilities are “(i) <i>Spanish</i> or (ii) <i>any other language accepted by the CNMV</i>”. Please note that there is no guidance from the CNMV regarding which other languages would be accepted: however, we assume the CNMV may accept English language (although please note that usually, when providing services to Retail Investors, the retail client is always entitled to receive any information in Spanish).
(vi) what language the KIID or KID , as applicable, needs to be in;	The KID and its amendments must be in Spanish. However, for MiFID II financial instruments, CNMV accepts that a distributor may provide a retail investor with a KID drafted in another language, but only if the distributor has ensured that the investor has proper knowledge of that language and is able to evidence it. It is Counsel’s view that, in practice, evidencing an investor’s sufficient knowledge in another language is difficult, especially because when targeting retail clients, distributors typically do not have visibility into client’s language knowledge.

(vii) what language the other documents to be filed need to be in;	The prospectus and the annual and semi-annual reports and their amendments must be in Spanish, in a language commonly used in international finance, or in another language accepted by the CNMV (i.e., English). Although Law 35/2003 does not specify requirements for marketing communications, we believe that they must be presented in Spanish/English. When communications are directed at Retail Investors, they must be in Spanish.
(viii) initial and ongoing filing requirements; and	Initial and on-going filing requirements are set out in Circular 2/2011. Initial filing requirements are explained in (iv) above. As regards on-going filing requirements, the representative must communicate to the CNMV: (a) the registrations and de-registrations of marketing entities of the CIS in Spain; (b) modifications to the data of the CIS; (c) modifications relating to the entities acting as representative/local agent as referred to in (iv) above; (d) modifications in the estimation of the total amount to be marketed in Spain; and (e) where appropriate, the application for de-registration of the CIS from the corresponding CNMV Registry. The information in (a) to (e) must be communicated within 7 days of the date the change took place. In the EU, from 1 January 2023, a UCITS Fund can no longer rely on the exemption from producing a PRIIPs KID when making its fund available to Retail Investors but instead is required to switch over to producing a PRIIPs KID. Where a UCITS Fund is being marketed/sold to Professional Investors only, it is A&O Shearman's interpretation that, when the asset management company has decided to produce this marketing document to offer the UCITS Fund, it is necessary to follow the PRIIPs KID.
(ix) Please could you provide a link to the local regulator's website (even if in the local language only) where information on the notification procedure for an incoming Passported UCITS Fund is set out.	https://www.cnmv.es/DocPortal/Legislacion/ModelosNormalizados/IIC/UCITSandFIAsnotificationprocedures22.pdf
(d) whether an OFI can actively market a UCITS Fund in your jurisdiction after 10 working days (from the date of receipt of the notification file by the home Member State regulator), as set out in section 5.1 of the <i>European Framework Document</i> ?	No. This period of 10 working days is the period set out in UCITS Directive. This means that since receipt of the notification file, the Home Member State regulator has 10 working days to notify the CNMV. Spanish law sets out that marketing will be permitted after the CNMV expressly confirms to the Home Member State regulator the receipt of the notification file. Therefore, accordingly to Spanish law, the time it takes to the Home State Regulator is irrelevant and the UCITS cannot start being marketed until express confirmation is made of the receipt of the CNMV of the AIFMD Marketing Passport notice. In addition, please note our reference to licensing requirements of the OFI in 4.2(e) above.

(e) (i) Is it permitted to conduct any “pre-marketing” activities in respect of a UCITS Fund in your jurisdiction to assess investor appetite either: (A) before committing to notify; or (B) during the relevant notification process? If so, please could you provide a definition of what would amount to permitted “pre-marketing” of a UCITS Fund.	As indicated in section 4.4 above, Pre-Marketing is recognised for AIFs but the regime does not extend to UCITS Funds. All the activities which fall within the scope of “marketing” for UCITS will require the appropriate authorisations from the CNMV.
(ii) Where “pre-marketing” of a UCITS Fund is permitted in your jurisdiction, please could you outline the types of marketing activities which would fall within the scope of such permitted “pre-marketing”, distinguishing if relevant between:	No pre-marketing regime is recognised for UCITS.
(A) the types of materials that can be circulated (e.g. presentations, offering documents, subscription documents);	Please refer to section (ii) above.
(B) the status of the UCITS Fund (e.g. whether established or still under formation);	Please refer to section (ii) above.
(C) whether the documents are in draft or final form; and	Please refer to section (ii) above.
(D) any other relevant considerations in your jurisdiction (e.g. number or	Please refer to section (ii) above.

	type of investor to whom the “pre-marketing” is done).	
(iii)	Are there specific “pre-marketing” activities to avoid on the basis that these will trigger the UCITS notification requirement?	Please refer to section (ii) above.
(iv)	Are there any registration/notification/approval/licensing requirements which apply in respect of the OFI pre-marketing a UCITS Fund in your jurisdiction?	Please refer to section (ii) above.
(f) (i)	Are there any registration/notification/approval/licensing requirements which apply in respect of the OFI marketing/selling a Passported UCITS in your jurisdiction?	Yes. Where the marketing activities are to be carried out by the UCITS ManCo of the UCITS Fund that has been passported, then the marketing activity falls within the scope of the UCITS ManCo’s authorisation. To conduct related activities (e.g. the provision of Investment Advice or RTO), the UCITS ManCo will need to be properly licensed in its home jurisdiction and passport the relevant activities into Spain. Please refer to Section (iv) above. Please also note that marketing/selling a UCITS Fund will be caught by the Licensing Requirement and the OFI will need to be an EEA Passporting Entity or an Authorised Non-EU Entity.
(ii)	Would the OFI notification/licensing or approval requirements discussed in (i) also apply where the OFI receives and responds to a reverse enquiry in relation to a Fund that benefits from the UCITS Marketing Passport in your jurisdiction? For example, could an OFI respond to a reverse enquiry regarding a Fund that benefits from the UCITS Marketing	Please see section 5(c)(iii). The rules regarding reverse solicitation also apply here.

Passport without triggering notification/licensing or approval requirements?	
(g) Could an OFI be appointed as a tied agent of an EEA regulated entity in order to market/sell a UCITS Fund to investors in your jurisdiction? If so, (i) must the EEA regulated entity be incorporated in your jurisdiction or can it be passported into your jurisdiction;	Yes, an OFI can be appointed as a tied agent of an EEA regulated entity. Please refer to section 4.2(g) above.
(ii) must the tied agent be incorporated in the EEA; and	Please refer to section 4.2(g) above.
(iii) do any licensing requirements apply to the tied agent? If applicable, please cross-refer your answer to section 4.2(g) above.	Please refer to section 4.2(g) above.
(h) Where an OFI is marketing a Passport UCITS Fund (registered outside your jurisdiction) which is an umbrella fund with sub-funds, is a fresh notification required in your jurisdiction for each new sub-fund?	Yes. A new Notification Letter containing the new sub-fund will generally be required. However, you should note that the market practice will depend on the different Home State regulators.
(i) Is there a difference if the UCITS is self-managed as opposed to the UCITS appointing an external management company?	No. Same regime applies.
(j) Is it recommended or mandatory to include certain disclaimers/warnings in the written marketing materials for a Passport UCITS Fund marketed to the public? If so, provide recommended wording in Section E of Appendix 1 of this Memorandum.	It is mandatory to include the registration number of the UCITS Funds granted by the CNMV upon registration as well as a reference to the places where the relevant documentation of the UCITS Funds may be obtained. Suggested wording could be in the lines set out in Section E of Appendix 1. Where the communication amounts to a “marketing communication” within the scope of ESMA’s Marketing Guidelines, see disclaimer wording in Appendix 4D.

	It may be advisable to include details of the Facilities/Representative in marketing materials relating to a UCITS but this is not required/mandatory.
6.2 Non-Passported UCITS Funds and AIFs	
(a) Please confirm whether your response to section 5(a) would apply where the unsolicited approach is made in respect of an AIF by an investor which is a member of the public . If the position would differ, please specifically address the legal basis (if any) of permitted reverse enquiries from the public relating to AIFs.	Yes, it will be applicable.
(b) Please confirm whether your response to section 5(b) would apply where the unsolicited approach is made in respect of a Non-Passported UCITS Fund by an investor which is a member of the public . If the position would differ, please specifically address the legal basis (if any) of permitted reverse enquiries from the public relating to Non-Passported UCITS Funds.	Yes, the marketing/selling of a Non-Passported UCITS Fund following an unsolicited approach by an investor which is a member of the public to an OFI will be permitted, provided the Conditions for Permitted Reverse Enquiry are met.
(c) Is active marketing/selling of: (a) a Non-Passported UCITS Fund; or (b) an AIF (registered outside your jurisdiction), to the public in your jurisdiction permitted without restriction ?	No. Please see the position as regards Professional Investors and non-Professional Investors set out below. <u>Professional Investors</u> Active marketing/selling of a Non-Passported UCITS Fund is not permitted in Spain. Any Non-Passported UCITS Fund would be treated as a Collective Investment Scheme registered outside of Spain that will trigger the registration requirements already explained in 4.1(a) above and licensing requirements with respect to the entity carrying out such active marketing/selling of Funds in Spain (the rendering of Investment Services). Provision of such activities without a licence or approval/registration is prohibited and entails very substantial fines. <u>Non-Professional Investors (Retail Investors)</u> <i>Non-Passported UCITS</i> According to Law 22/2014 and Law 35/2003, active marketing/selling of a Non-Passported UCITS Fund is not permitted in Spain. Any Non-Passported UCITS Fund would be treated as Collective Investment Scheme registered outside of Spain and active marketing/ selling of such Non-Passported UCITS Fund to Retail Investors in Spain will

trigger the requirement for the AIF to be registered with the CMNV and licensing requirements with respect to the entity carrying out such active marketing/selling of Funds in Spain (the rendering of Investment Services).

There are several additional restrictions that we set out under AIFs below.

AIFs

Closed-Ended AIFs, as provided under article 75 of Law 22/2014, may be marketed/sold to non-Professional Investors provided that: (i) such investors undertake to invest a minimum of EUR 100,000 and declare in writing in a document different to the investment commitment agreement that they are aware of the risks connected to the commitment; or (ii) such investors make an investment based on a personalised recommendation from an intermediary who provides them with the advisory service, provided that, in the case that their financial wealth does not exceed EUR 500,000 the investment is at least EUR 10,000, and is maintained, and does not in turn represent more than 10% of that financial wealth (the latter requirements will not apply to administrators, directors or employees of the management company, AIFs admitted to trading on stock exchanges and investors with experience in similar AIFs). Prior to the subscription or acquisition, investors must be provided with the prospectus (which will include the management regulations or the by-laws, the annual report and, in case of companies, the management delegation agreement). Subsequently, the annual report will be submitted to investors within the first 6 months of each year.

In addition, Active Marketing/selling in Spain of Closed-Ended and Open-Ended AIFs (whether EEA or Non-EEA) by EEA or Non-EEA AIFMs to non-Professional Investors, as provided under article 15 *quinquies* of Law 35/2003 and article 79 of Law 22/2014, shall meet the following requirements:

1. Prior to marketing, the following issues shall be proved to be fulfilled before the CNMV:
 - 1.1. That the AIFs, are subject in their state of domicile/registration to a specific regulation that protects the interests of their shareholders in a similar way as the Spanish legislation governing the same category of collective investment schemes and venture capital entities to which the foreign collective investment schemes and venture capital entities belong, or the managing entities acting on their behalf.
 - 1.2. A favourable report from the authority of the Home State of origin that is responsible for the control and inspection of foreign collective investment schemes and venture capital entities, or their respective managing entities, regarding the development of management activities.
 - 1.3. Appropriate cooperation arrangements are in place between the CNMV, the competent authorities of the Home Member State of the managing entity and the supervisory authorities of the third country where the collective investment schemes and venture capital entities are established, in order to ensure at least an efficient exchange of information that allows competent authorities to carry out their duties in accordance with the AIFMD.

	1.4. That the non-EU state where the managing entity of the collective investment schemes and venture capital entities are established, or if appropriate the non-EU incorporated collective investment schemes and venture capital entity are established is not listed as a Non-Cooperative Country and Territory by FATF. Authorisation and Registration Process 2. If the above-mentioned requirements are met, the managing entities of the collective investment schemes and venture capital entities shall provide and register in the CNMV the following information: 2.1. The identity of the collective investment schemes and venture capital entities that the managing entity intends to market to non-Professional Investors and information on where such entities are established. 2.2. The mechanism and methods of marketing the quotas or units in Spain, and when applicable, the type of units or quotas being marketed. 2.3. The rules or instruments of incorporation, as applicable. 2.4. The prospectus, or equivalent document, that shall be approved and published by the CNMV. 2.5. The PRIIPs KID. 2.6. The identification of the depositary of the collective investment schemes and venture capital entities. 2.7. A description of, or any information on, the collective investment schemes and venture capital entities available to investors. 2.8. Information on where the master collective investment schemes or venture capital entities is established if the collective investment schemes or venture capital entities is a feeder collective investment scheme or venture capital entity. 2.9. Documents proving that the managing entity incorporated in a Non-EEA Member State, and where applicable collective investment schemes and venture capital entities incorporated in a Non-EEA Member State and the shares, units or securities representing their capital or assets, are subject to their applicable legal regime. 2.10. The financial statements of the collective investment schemes and venture capital entities and the related auditors' report, drafted in accordance with their applicable law. 2.11. Other important details, including the address, so that the CNMV can invoice or communicate any applicable fees or charges. 2.12. Information of the Facilities available to Retail Investors. 3. All the documents referred to herein shall be filed along with their respective Spanish translation or in any other language admitted by the CNMV. 4. In order for these AIFs to be marketed to non-Professional Investors in Spain, they shall have been previously authorised and registered by the CNMV, along with their managing entities.
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	The authorisation for marketing may be refused for prudential reasons, for not giving the Spanish collective investment schemes and venture capital entities, or their managing entities, equivalent treatment in their country of incorporation of the foreign entities, for not complying with the disciplinary regulations of the Spanish securities markets; for not guaranteeing the due protection of investors resident in Spain; and because of the existence of differences in the competency conditions between these collective investment schemes and venture capital entities and the collective investment schemes and venture capital entities authorised in Spain. Once authorised and registered within the registry of the CNMV, as provided under Law 35/2003 and Law 22/2014 as applicable, the managing entities shall provide shareholders and participants of the latter with: how the payments are made; the acquisition of shares or the reimbursement of units by AIFs (i.e. treasury stock or reimbursement against capital); the communication of the information that shareholders and participants shall provide in Spain; and, in general, the exercise of their rights. The regulations (Art. 15 Law 35/2003, Art. 68 Law 22/2014) require provision of this information prior to the investment and once authorized. Therefore, it will not be necessary to include it in each marketing material. 5. Prior to the subscription or acquisition, the authorised intermediary distributor shall deliver to the foreign entity's shareholders and participants with residency in Spain, a prospectus that contains the management regulations or the articles of association, the annual report that refer to the Articles 67 and 68 of the Law 22/2014 and the PRIIPs KID. Thereafter, the annual report shall be sent to shareholders in the first six months of each year subject to the provisions of Article 69 of the Law 22/2014. These documents shall be provided in translation into Spanish or in another language approved by the National Securities Market Commission. 6. Further regulations may establish additional conditions for marketing shares and units of Non-EU collective investment schemes and venture capital entities. 7. Please note that the Publicity Law Requirements apply as do the advertising requirements in Circular 2/2020. It is also necessary to consider the ESMA Funds Marketing Guidelines. See section 8.1(b) and (c) of this Memorandum for more information.
(d) With reference to sections (a), (b) and (c) above, if possible, please provide a definition of “the public” as such term is interpreted in your jurisdiction. For example, “the public” are those investors that are not Professional Investors (i.e. which are Retail Investors).	The term “the public” means Retail Investors.
(e) If the answer to section (c) above is “No”, are there certain requirements that either the OFI, the Non-Passported UCITS Fund or AIF (registered outside your jurisdiction) can fulfil	Yes, please see section 6.2(c) above. Please note that the Prospectus Regulation replaced the Prospectus Directive. Recently, the SMA has been updated to reflect the Prospectus Regulation.

so that active marketing/selling by the OFI of a Non-Passported UCITS Fund or AIF to the public in your jurisdiction is permitted? If applicable, please cross-refer to your section 9 in respect of those AIFs which fall within the scope of the Prospectus Regulation. In preparing your answer, please ensure that your analysis covers the following (or if these matters are not relevant to your jurisdiction, please explicitly state that in your response):	
(i) the impact (if any) of the marketing/sale being undertaken in respect of a Non-Passported UCITS Fund as compared to an AIF.	Please see section 6.2(c) above.
(ii) the impact (if any) of the marketing/sale being undertaken in respect of an Open-Ended or a Closed-Ended AIF.	Please see section 6.2(c) above.
(iii) the relevant criteria for determining whether investors are in your jurisdiction for the purposes of determining whether the Non-Passported UCITS Fund or AIF may be offered to the public.	In the event that an OFI entity contacts clients (excluding Retail Investors) in Spain to offer them its services in the first place, the services rendered as a result of this first contact shall be deemed rendered in Spain.
(iv) whether the requirements relating to facilities agents outlined in section 6.1(c)(iv)(A), 6.1(c)(iv)(B),	For AIFs the provisions regarding Facilities are established in articles 75 ter (2) and 79 of Law 22/2014. AIFMs where they intend to market AIF units to Retail Investors in Spain are not required to have a physical presence in Spain or to appoint a third party to (i) act as a contact point with the relevant supervisor or (ii) to provide other Facilities.

	and 6.1(c)(v) above apply equally to an AIF being marketed to Retail Investors? If not, please could you specify the requirements that will apply.	In terms of the language to be used by the Facilities agent in respect of an AIF, pursuant to article 75 ter (3) of Law 22/2014, where the AIFMs intend to market AIF units in Spain to Retail Investors, the provisions regarding Facilities will be supplied in Spanish.
(v)	whether it is (A) necessary ; or (B) permitted to use a local intermediary in order to market/sell interests in a Non-Passported UCITS Fund or AIF to the public in your jurisdiction; and	(A) Yes. Please see section 6.2(c) above. See also Representative requirements discussed in section 4.2(f), which apply equally to an AIF that will be approved for marketing to the public in Spain. (B) Yes, provided that the local intermediary is duly authorised to provide Investment Services in Spain.
(vi)	whether there is requirement as to the language the Fund documentation needs to be in and are there any particular requirements that apply in connection to such documents?	The fund documentation must be presented to the public in Spanish, or another language accepted by the CNMV (i.e., English). Art. 79.3 Law 22/2014. The KID should be in Spanish. However, for MiFID II financial instruments, CNMV accepts that a distributor may provide a retail investor with a KID drafted in another language, but only if the distributor has ensured that the investor has proper knowledge of that language and is able to evidence it. It is Counsel's view that, in practice, evidencing an investor's sufficient knowledge in another language is difficult, especially because when targeting retail clients, distributors typically do not have visibility into client's language knowledge.
(f)	Where it is possible to market: (a) an AIF or (b) Non-Passported UCITS Fund pursuant to a regime outlined in Section 6.2(e), please briefly outline applicable timescales, costs, initial and ongoing filing or other requirements .	The timing depends on the regulator's workload. The current fees charged by the CNMV for the registration of foreign AIFs managed by foreign AIFMs is €2,601.51. There is no particular form or specific page on the CNMV's website that should be used for the registration. The communication with the CNMV shall be made either online or by post. We recommend to proceed through CNMV's website for efficiency.
(g)	Are there any registration/notification/approval/licensing requirements which apply in respect of the OFI marketing/selling an AIF or Non-Passported UCITS Fund to the public in your jurisdiction?	Marketing/selling activities in relation to an AIF that has approval to be marketed/sold to non-Professional Investors will trigger the Licensing Requirement. The OFI will need to be an EEA Passporting Entity or an Authorised Non-EU Entity.
(h)	Could an OFI be appointed as a tied agent of an EEA regulated entity in order to market/sell	Please refer to section 4.2(g) above.

an AIF or Non-Passported UCITS Fund to investors in your jurisdiction? If so, (i) must the EEA regulated entity be incorporated in your jurisdiction or can it be passported into your jurisdiction;	
(ii) must the tied agent be incorporated in the EEA; and	Please refer to section 4.2(g) above.
(iii) do any licensing requirements apply to the tied agent? If applicable, please cross-refer your answer to section 4.2(g) above.	Please refer to section 4.2(g) above.
(i) Would your answer to section (c) above differ if interests in the Non-Passported UCITS Fund or AIF being marketed/sold to the public constituted the re-sale of existing interests (i.e. a secondary offering) rather than the offering/placement of a new issue?	No. The analysis should be carried out with respect to each offer.
(j) Where pursuant to section 6.2(e) above it is possible to market a Non-Passported UCITS Fund or an AIF to the public in your jurisdiction, is it recommended or mandatory to include certain disclaimers/wording in the written marketing materials for a Non-Passported UCITS Fund or AIF marketed to the public? If so, please provide recommended wording in Section C of each of Appendix 1 and Appendix 2 (as applicable) of this Memorandum.	For Open-Ended Funds, Article 18 of Law 35/2003 sets out that all publicity that includes an invitation to buy shares or units of an Open-Ended Fund must set out the existence of the relevant prospectus and the KID as well as the place and way that the public may obtain or access them. See the wording in Appendix 1.C. Law 22/2014 does not set out a similar requirement for Closed-Ended Funds, it is good practice and market standard to include it when addressing the public. See Appendix 2.C – necessary to include wording describing if the offering is being conducted pursuant to a prospectus exemption. Where the communication amounts to a “marketing communication” within the scope of ESMA’s Marketing Guidelines, see disclaimer wording in Appendix 4D. Regarding the provision in the marketing materials of details of the Facilities and/or Representative, it is recommended to include the identity of the intermediaries as well as information about any transfer of liability to them that may exist. It is not mandatory to provide this in other marketing documents of the fund, but of course the more information provided, the better.

6.3 Other Mutual Recognition/Passporting Schemes	
Other than the AIFMD Marketing Passport referred to in section 4.2 above, the regime for Passported UCITS Funds referred to in section 6.1 above, and the EuVECA, EuSEF and ELTIF regimes referred to at sections 3.3 and 3.4 of the <i>European Framework Document</i> are there any existing or proposed regional arrangements for passporting or mutual recognition of Funds which facilitate the cross border marketing/selling of Funds into your jurisdiction (“ Arrangements ”)?	We are not aware of other Arrangements which facilitate the cross-border marketing/selling of Funds in Spain.
(a) Please briefly describe any such Arrangements and the relevant rules, guidance or legislation. Please ensure that these sources are included in your responses to section 3 above.	N/A
(b) If the Arrangements are already in force, if possible, please comment on how widely they have been used and whether any Funds have been marketed or sold in your jurisdiction on the basis of the Arrangements. Please give an indication of costs and timescales of using such Arrangements.	N/A
(c) If the Arrangements are not yet in force, if possible, please comment on their current status and expected timeline for implementation.	N/A
(d) Does a Fund have to be both domiciled and managed in one of the participating jurisdictions in order to benefit from the Arrangements, as implemented in your jurisdiction?	N/A

(e)	Is any local presence required in your jurisdiction or would the regulator in your jurisdiction need to approve a Fund in any way before marketing / selling can take place there on the basis of the Arrangements?	N/A
(f)	Do the Arrangements apply to both Open-Ended and Closed-Ended Funds ?	N/A
(g)	Are there any registration/notification/approval/licensing requirements which apply in respect of the OFI marketing/selling such Funds in accordance with the Arrangements in your jurisdiction?	N/A
(h)	Is there a requirement as to the language the Fund documentation needs to be in when marketing/selling pursuant to the Arrangements and are there any particular requirements that apply in connection to such documents?	N/A
(i)	Where pursuant to this section 6.3 it is possible to market a Fund pursuant to the Arrangements in your jurisdiction, is it recommended or mandatory to include certain disclaimers/wording in the written marketing materials for such Fund marketed to the public? If so, please provide recommended wording in Section F of each of Appendix 1 and Appendix 2 (as applicable) of this Memorandum.	N/A
6.4	Investment Management & Advisory Services	
Please refer to section 8 of the <i>European Framework Document</i> .		
(a)	Please confirm whether your response to section 5(d) would apply where the unsolicited	Yes, it will be applicable.

	approach in respect of Investment Management & Advisory Services is made by an investor which is a member of the public. If applicable, please cross-refer to your answer to section (b) or (d) below.	
(b)	Is marketing/selling of Investment Management & Advisory Services to the public in your jurisdiction permitted without restriction?	No. Active marketing/selling of Investment Management & Advisory Services to the public will trigger licensing requirements as explained in section 5(d) above and may only be undertaken by an EEA Passporting Entity authorised to provide Investment Services in Spain. The cross-border marketing of Investment Management & Advisory Services which qualify as Investment Services is not permitted under the local licence regime to non-EEA OFI for Retail Investors under MiFID II and a branch would be required – see section 10 for further detail. If/when the necessary pre-requisites are met (e.g. necessary equivalence determinations are in place), it may also be possible in the future for a Third Country Passporting Entity to market/sell Investment Management & Advisory Services. At present no such equivalence determinations have been made.
(c)	With reference to sections (a) and (b) above, if possible, please provide a definition of “the public” as such term is interpreted in your jurisdiction. For example, “the public” are those investors that are not Professional Investors (i.e. which are Retail Investors)’. Please refer to section 6.2(d) if applicable.	Please see our answer to 6.2(d).
(d)	If the answer to section (b) above is “No”, are there certain requirements that the OFI can fulfil so that marketing/selling by the OFI of Investment Management & Advisory Services to the public in your jurisdiction is permitted?	Licensing requirements set out in section 5(d) would be triggered. Only “reverse-enquiry”/“reverse-solicitation” would be permitted without triggering licensing requirements as explained in section 5(d) above.
(e)	Could an OFI be appointed as a tied agent of an EEA regulated entity in order to market/sell Investment Management & Advisory Services to investors in your jurisdiction? If so, (i) must the EEA regulated entity be incorporated in your	Please refer to section 4.2(g) above.

	jurisdiction or can it be passported into your jurisdiction;	
(ii)	must the tied agent be incorporated in the EEA; and	Please refer to section 4.2(g) above.
(iii)	do any licensing requirements apply to the tied agent? If applicable, please cross-refer your answer to section 4.2(g) above.	Please refer to section 4.2(g) above.
(f)	Is there a requirement as to the language the written marketing materials need to be in when marketing/providing Investment Management & Advisory Services to the public and are there any particular requirements that apply in connection to such documents?	Although the law does not specify the language in which marketing materials regarding investment services must be provided in Spain, the common practice is to provide information in the investor's language to ensure understanding and transparency. Therefore, we recommend that marketing documentation directed to the public also be made in Spanish. Considering consumer regulations, it is required that pre-contractual information be provided to consumers at least in Spanish, and likewise, in distance contracts with consumer clients, the language must be at least Spanish. Therefore, it is advisable that marketing materials also be provided in Spanish when directed to the public (art. 60.4, 98 and 99 Royal Legislative Decree 1/2007 of 16 November). In any case, please note that the PRIIPs KID shall be translated into Spanish. However, for MiFID II financial instruments, CNMV accepts that a distributor may provide a retail investor with a KID drafted in another language, but only if the distributor has ensured that the investor has proper knowledge of that language and is able to evidence it. It is Counsel's view that, in practice, evidencing an investor's sufficient knowledge in another language is difficult, especially because when targeting retail clients, distributors typically do not have visibility into client's language knowledge.
(g)	Where pursuant to section 6.4(d) above it is possible to market/sell Investment Management & Advisory Services to the public in your jurisdiction, is it recommended or mandatory to include certain disclaimers/wording in the written marketing materials? If so, please provide recommended wording in Section C of Appendix 3 of this Memorandum.	N/A. No disclaimers or wording are required.

7. PRIVATE PLACEMENT REGIME

Questions	Answers
7.1 Private Placement Regime (AIFs and Non-Passported UCITS Funds)	
Please refer to section 6.6 of the <i>European Framework Document</i> which deals with the requirements deriving from the AIFMD in respect of the marketing/sale of AIFs via local private placement regimes. Please also refer to section 5.2 of the <i>European Framework Document</i> which describes the position applicable to the marketing/sale of a Non-Passported UCITS Fund. In providing your answers to sections (a) to (j) below please do not repeat information that is already contained in these sections of the <i>European Framework Document</i>. However, please do include information regarding any local requirements which are different or supplemental to the requirements outlined in those sections of the <i>European Framework Document</i>.	
AIFs	
(a) Is active marketing/selling by an OFI of interests in an AIF (whether Open-Ended or Closed-Ended) to investors in your jurisdiction via a private placement regime permitted? In preparing your answer, please ensure that your analysis covers the following (or if these matters are not relevant to your jurisdiction, please explicitly state that in your response):	Yes. There is no such a private placement exemption but rather some rules to market Open-Ended or Closed-Ended Funds to Professional Investors. Please refer to section 4.1 and section 6 above regarding marketing of EU and non-EEA AIFs in Spain to Professional Investors managed by AIFMs not resident in the EU (ie via Article 42 AIFMD) or by an EEA AIFM of a non-EEA AIFM (i.e., via Article 36 AIFMD). See section 4.2(f) for the requirements for a Representative which apply equally where the AIF will be marketed/sold via A36/A42 AIFMD regimes.
(i) the impact (if any) of the marketing/sale being undertaken in respect of an Open-Ended or a Closed-Ended AIF. Where the rules of the private placement regime distinguish between Open-Ended or Closed-Ended AIF, please outline how the rules of your jurisdiction define an Open-Ended or a Closed-Ended AIF.	Yes, there is an impact as explained in section 4.1(a) above.
(ii) whether there is any impact if the AIF is regulated in a specific country other than your jurisdiction e.g. 1940 Act Fund. If applicable, please cross-refer your answer to section 6.3.	To the extent there are no other arrangements which facilitate the cross border marketing/selling of Funds in Spain, there is no impact.
(iii) available exemptions which permit marketing/sale of AIFs to investors (e.g. based	The only exemption would be reverse enquiry as explained in section 5 above. Offers to a reduced number of financially qualified investors are, in theory, also possible but in practice, this would

Questions	Answers
on type of investor, minimum investment amount, small number of investors, existing customer, tolerated practice, etc). If an exemption is available, please set out the criteria which must be satisfied in order to utilise it. Please include a discussion of any exemptions available to individual investors on the basis that they are high net worth/sophisticated . Please comment on both formal “ black-letter law ” exemptions and accepted practice .	only likely be relevant in a passive marketing scenario, as any active marketing activities would likely be considered to be publicity activities within a campaign. In addition, it must be carefully considered as this is an informal interpretation held by the CNMV prior to the implementation of the AIFMD in Spain and not tested since. Counsel does not recommend that it be relied upon.
(iv) the relevant criteria for determining whether an investor is in your jurisdiction for the purposes of determining how the private placement regime applies (e.g. the investor is incorporated, domiciled, has employees in your jurisdiction).	There is no specific criterion but it must be taken into account whether the investor has its domicile/residence in Spain.
(v) any sensitivities depending on whether the investor is a potential or an existing client. If applicable, please cross-refer to your answers to section 9 in respect of those AIFs which fall within the scope of the Prospectus Regulation .	No specific sensitivities depend on whether the investor is an existing or potential client of the OFI. Please note that the Prospectus Regulation replaced the Prospectus Directive. Recently, the SMA has been updated to reflect the Prospectus Regulation.
(b) Are there registration/notification/approval/licensing requirements which apply in respect of an AIF before it can be marketed/sold to investors in your jurisdiction? Please outline what activity will trigger such requirements (cross-referring, if necessary, to section 4.4 which specifically covers the interpretation of the definition of the “AIFMD Marketing” in your jurisdiction) and the practical steps required to fulfil any such requirements (including links to relevant forms/information on the relevant regulator’s website).	Yes. Please refer to section 4.1(a) and 6.2(c) above where all information on how the relevant AIF is to be registered in Spain is specified. The procedure is similar to the set out in section 6.2(c) (i.e. the one applicable to the marketing of AIFs to the public), but without those requirements which are retail-related).
(i) Please outline any applicable time periods (e.g. the amount of time between the submission of an application and the issuance of an approval).	If distributed/marketed/placed in Spain, registration of an AIF is required and procedures are extensively and deeply explained and described in this memorandum in detail – please see section 4.1(a) and 6.2(c). The procedure is similar to the one applicable to the marketing of AIFs to the public, but without those requirements which are retail-related).

Questions	Answers
	On timing, this depends on regulators' (home and host) workload, but as explained, no marketing, distribution, placement may be made until the final communication is made by the CNMV after the relevant registration requirements are complied with.
(ii) Are any fees payable, whether related to the: (A) initial notification/registration; or (B) on an ongoing basis?	Yes. The costs for Article 36/Article 42 approval are the same as the AIFMD Marketing Passport, i.e., EUR 2,601.51 for initial application and EUR 3,121.81 (per sub-fund) every 1 January thereafter.
(iii) Please provide a link to the local regulator's website (even if in the local language only) where information and/or notification/approval forms are set out for marketing an AIF via the private placement regime.	For AIF information, please refers to the relevant forms established in the CNMV website, at the link below: https://www.cnmv.es/portal/Gpage.aspx?id=MOD&idPerfil=4 In terms of the process for making an A36/A42 registration, there is no form on the website and it is suggested that a firm wishing to do an A36/A42 registration/authorisation engage with local counsel who can assist them with next steps.
(iv) Is there a requirement as to the language the Fund documentation needs to be in when marketing/selling pursuant to the private placement regime and are there any particular requirements that apply in connection to such documents?	No. The only consideration in this regard is for Retail Investors; in such cases, the PRIIPs KID must be translated into Spanish. However, for MiFID II financial instruments, CNMV accepts that a distributor may provide a retail investor with a KID drafted in another language, but only if the distributor has ensured that the investor has proper knowledge of that language and is able to evidence it. It is Counsel's view that, in practice, evidencing an investor's sufficient knowledge in another language is difficult, especially because when targeting retail clients, distributors typically do not have visibility into client's language knowledge.
(c) Are there registration/notification/approval/licensing requirements which apply in respect of the OFI marketing/selling an AIF in your jurisdiction? Please outline the practical steps required to fulfil any such requirements in particular:	Yes. Please refer to section 4.1(a), 6.2(c) and 7.1(a) above.
(i) please could you provide a link to relevant forms/information on the relevant regulator's website (even if in the local language only); and	https://www.cnmv.es/DocPortal/Legislacion/ModelosNormalizados/IIC/UCITSandFIAsnotificacionprocedures22.pdf
(ii) are there any possible exemptions from such requirements?	The only exemption would be for those scenarios where a reverse enquiry is carried out. Please see section 5 for more information.

Questions	Answers
(d) (i) Is it: (A) necessary; or (B) permitted to use a local intermediary in order to market/sell interests in an AIF to an investor in your jurisdiction and, if so, on what basis? Please consider the position in relation to: (A) a licensed third party intermediary; (B) an unlicensed local third party intermediary; or (C) a branch, representative office or other form of regulated place of business of the OFI in your jurisdiction. (ii) Where the key entity marketing/selling the Fund in your jurisdiction is in compliance with local licensing requirements, is it permitted for the sub-advisor/manager of the Fund to participate in the marketing activities (e.g. via Fly-In Meeting, telephone call, email) without itself being licensed in your jurisdiction? For example, can the sub-advisor/manager participate in the marketing/selling activities where the locally licensed entity acts as its chaperone?	Yes. Please refer to 4.2(f) above in relation to the requirement to have a Representative. Any EEA Passporting Entity as well as any Spanish licensed entity may be a distributor. When providing services without a branch (without permanent establishment) the EEA AIFM or non-EEA AIFM shall also appoint a Spanish local agent for tax purposes. These roles may be assumed by the same entity provided that the relevant requirements are all met. Any EEA Passporting Entity as well as a Spanish licensed entity may be a distributor. N/A Any Spanish branch licensed entity may be a distributor. No. According to Spanish law, as indicated above, in order to perform any kind of marketing activities a licence will be required.
Non-Passported UCITS Fund	
(e) Please confirm, whether your response to (a) above would apply in respect of the active marketing/selling by an OFI of interests in a Non-Passported UCITS Fund to investors in your jurisdiction. If the position would differ please specifically address the legal basis of permitted active marketing/selling of Non-Passported UCITS Funds via a private placement regime in your jurisdiction, addressing the same issues set out in (a) above.	Although technically speaking there is no private placement in relation to UCITS funds, the CNMV has traditionally allowed the placement of UCITS funds without a licence provided that: (i) the number of qualified investors does not exceed 25-30; and (ii) there is no publicity activity. In practice, this would only likely be relevant in a passive marketing scenario, as any active marketing activities would likely be considered to be publicity activities within a campaign. Note that this is a criterion of the CNMV which may change.

Questions	Answers
(f) Are there registration/notification/approval/licensing requirements which apply in respect of a Non-Passported UCITS Fund before it can be marketed/sold via the private placement regime to investors in your jurisdiction? In this section we are interested in steps required in respect of a Non-Passported UCITS Fund marketed/sold via a private placement regime only. Please do not refer to the notification process applicable to a UCITS Fund that is a Passported UCITS Fund, dealt with in section 6.1 of this Memorandum. Please outline what activity will trigger such requirements and the practical steps required to fulfil any such requirements (including links to relevant forms/information on the relevant regulator's website).	N/A
(i) Please outline any applicable time periods (e.g. the amount of time between the submission of any application and the issuance of an approval).	N/A
(ii) Are any fees payable , whether related to: (A) the initial notification/registration; or (B) on an ongoing basis? Please refer to section 7.1(b) above if applicable.	N/A
(iii) Please provide link to the local regulator's website (even if in local language only) where information and/or notification/approval forms are set out for marketing Non-Passported UCITS Fund via the private placement regime.	N/A
(g) Are there any registration/notification/approval/licensing requirements which apply in respect of an OFI marketing/selling a Non-Passported UCITS Fund in your jurisdiction? Please outline the practical steps required to fulfil any such requirements (including links to relevant forms/information on the relevant regulator's	N/A

Questions	Answers
website) plus any possible exemptions from such requirements. Please refer to section 7.1(c) above if applicable.	
(h) Is it: (A) necessary; or (B) permitted to use a local intermediary in order to market/sell interests in a Non-Passported UCITS Fund to an investor in your jurisdiction and, if so, on what basis? Please consider the position in relation to:	N/A
(i) a licensed third party intermediary;	N/A
(ii) an unlicensed local third party intermediary; or	N/A
(iii) a branch, representative office or other form of regulated place of business of the OFI in your jurisdiction.	N/A
Please refer to section 7.1(d) if applicable.	N/A
General	
(i) Are there any other requirements (including any ongoing requirements) in order to comply with the rules/guidance applicable to the private placement regime in your jurisdiction for Funds (whether AIFs or Non-Passported UCITS Funds) not dealt with elsewhere in this Part B Memorandum? For example are there any particular requirements that apply to a special category of investor in your jurisdiction which an OFI should bear in mind before marketing to such investors (i.e. based upon an investor being an insurance company, a sovereign wealth fund, an endowment, a foundation or a pension fund). Please do not refer to requirements applicable to Retail Investors which are dealt with in section 6 of this Memorandum.	There are no additional requirements besides those explained above.
(j) Would your answer to question 7.1 differ if interests in the AIF or Non-Passported UCITS Fund being marketed/sold constituted the re-sale of existing interests (i.e. a secondary offering) rather than the offering/placement of a new issue?	No.

Questions	Answers
(k) Could an OFI be appointed as a tied agent of an EEA regulated entity in order to market/sell an AIF or Non-Passported UCITS Fund to investors in your jurisdiction? If so, (i) must the EEA regulated entity be incorporated in your jurisdiction or can it be passported into your jurisdiction;	N/A
(ii) must the tied agent be incorporated in the EEA; and	N/A
(iii) do any licensing requirements apply to the tied agent? If applicable, please cross-refer your answer to section 4.2(g) above.	N/A

Questions			Answers		
7.2 Sensitivities based on Structure and/or Investment Strategy (Funds)					
What we are seeking to draw out in this section is whether there are any particular requirements or restrictions that only apply to certain sorts of Fund (whether AIFs or UCITS Funds) when they are marketed or sold in your jurisdiction. You may have already dealt with these issues elsewhere in the Memorandum in which case please include a cross-reference to the applicable response. There is no need to repeat sensitivities already dealt with in Appendix 3 of the <i>European Framework Document</i>.					
(a) Are there particular requirements or restrictions which apply where an OFI wishes to market/sell a Fund (whether an AIF or a Non-Passported UCITS Fund) in your jurisdiction where such Fund is structured as: Please indicate your response by answering Yes/No for each type of Fund structure.					
OPEN-ENDED FUND (AIFs or Non-Passported UCITS Fund)			CLOSED-ENDED FUND (AIFs only)		
	Yes/No	If the answer is “Yes”, please include a brief description and/or cross-reference to discussion of the applicable requirement or restriction.		Yes/No	If the answer is “Yes”, please include a brief description and/or cross-reference to discussion of the applicable requirement or restriction.
corporate (unlisted)	No		corporate (unlisted)	No	
corporate (listed on an exchange including an ETF)	No		corporate (listed on an exchange including an ETF)	No	
limited partnership	No		limited partnership	No	
contractual	No		contractual	No	
trust	No		trust	No	
sub-fund of umbrella	No		sub-fund of umbrella	No	
master/feeder	No	In Spain, the master determines the distribution criteria. Marketing in Spain to Professional Investors of feeder AIFs incorporated in other EU	master/feeder	No	In Spain, the master determines the distribution criteria. Marketing in Spain to Professional Investors of feeder AIFs incorporated in other EU countries managed by

Questions			Answers		
		countries managed by AIFMs authorised in a Member State of the EU via the AIFMD Marketing Passport will only be possible if the Master is domiciled in the EU and managed by an EEA AIFM.			AIFMs authorised in a Member State of the EU via the AIFMD Marketing Passport will only be possible if the Master is domiciled in the EU and managed by an EEA AIFM.
fund whose interests/units /shares are tokenised	No		fund whose interests/units /shares are tokenised	No	
other	No		other	No	

(b) Are there particular additional **requirements or restrictions** which apply where an OFI wishes to market/sell a Fund (whether an AIF or UCITS Fund) in your jurisdiction where such Fund's **investment strategy** is listed below or involves investments in those types listed below.

Please indicate your response by answering Yes/No for each type of fund investment or strategy. There is no need to repeat sensitivities already dealt with in Appendix 3 of the *European Framework Document*.

OPEN-ENDED FUND (AIFs or Non-Passported UCITS Fund)			CLOSED-ENDED FUND (AIFs only)		
	Yes/ No	If the answer is “Yes”, please include a brief description and/or cross-reference to discussion of the applicable requirement or restriction.		Yes/No	If the answer is “Yes”, please include a brief description and/or cross-reference to discussion of the applicable requirement or restriction.
hedge fund strategy	No		hedge fund strategy	No	
private equity investments	No		private equity investments	No	
real estate investments	No		real estate investments	No	
infrastructure investments	No		infrastructure investments	No	
debt or equity instruments	No		debt or equity instruments	No	
derivative investments	No		derivative investments	No	
fund of funds strategy	No		fund of funds strategy	No	
environmental, social and governance (ESG) strategy	Yes	Consideration should be given to the European Disclosure Regulation and the Taxonomy Regulation.	environmental, social and governance (ESG) strategy	Yes	Consideration should be given to the European Disclosure Regulation and the Taxonomy Regulation.

Crypto asset strategy	Yes	UCITS, may have exposure to cryptocurrencies through financial instruments whose profitability is linked to such currencies, which do not include an implicit derivative. These instruments would be suitable as long as they have daily trading, in which the market price is determined from trading operations carried out by third parties. QuasiUCITS, in addition to the above, may invest within the coefficient of free disposal in AIFs that have exposure to cryptocurrencies. However, it is not possible to invest in derivatives whose underlying are cryptocurrencies. Open-Ended AIFs (<i>IIC de Inversión Libre</i>) could also have exposure to cryptocurrencies through derivatives, and provided that the liquidation of the derivative does not imply the delivery of the cryptocurrency, although these Collective Investment Schemes can only be traded between professionals investors. Finally, the CNMV and the Bank of Spain consider that the investment in cryptocurrencies is a high-risk investment. For this reason, the prospectus and the KID must include an express mention about the exposure to cryptocurrencies and the risks that may be involved.
Sharia compliant strategy	No	Spanish law does not regulate any Sharia compliant strategy funds. Therefore, provided such funds are compliant with Spanish regulations, there would not be any additional requirements.
Private credit/non-bank lending strategy	Yes	According to Article 50 UCITS Directive, UCITS Funds can only invest in a limited types of assets and private credit and non-bank lending are not including in that list.

Crypto asset strategy	Yes	The CNMV and the Bank of Spain consider that the investment in cryptocurrencies is a high-risk investment. For this reason, the prospectus and the KID must include an express mention about the exposure to cryptocurrencies and the risks that may be involved.
Sharia compliant strategy	No	Spanish law does not regulate any Sharia compliant strategy funds. Therefore, provided such funds are compliant with Spanish regulations, there would not be any additional requirements.
private credit/non-bank lending strategy	No	There are no restrictions with respect to Close-Ended AIFs.

		There are no restrictions with respect to Open-Ended AIFs.
other	No	

other	No	

7.3 Private Placement Regime (Investment Management & Advisory Services)	
Please refer to section 8 of the <i>European Framework Document</i>. In providing your answers to sections (a) to (f) below, please do not repeat information that is already contained in that section of the <i>European Framework Document</i>. However, please do include information regarding any local requirements which are different or supplemental to those requirements. Please note that the provision of the Investment Management & Advisory Services of Investment Advice and Arranging are separately dealt with in sections 8.8 and 8.9 of this Memorandum. It is therefore not necessary to repeat this information here. (a) Is it possible for an OFI to actively market/provide Investment Management & Advisory Services to investors in your jurisdiction and, if so, on what basis? In preparing your answers please <u>ensure that your analysis covers the following</u> (or if these matters are not relevant to your jurisdiction, please explicitly state that in your response):	Please refer to section 5(c) above. Marketing/provision of Investment Management & Advisory Services is covered by the licensing requirements and the OFI will need to be an EEA Passporting Entity or an Authorised Non-EU entity. If/when the necessary pre-requisites are met (e.g. necessary equivalence determinations are in place), it may also be possible in the future for a Third Country Passporting Entity to market/ provide Investment Management & Advisory Services in Spain.
(i) available exemptions applicable to the marketing or provision of Investment Management & Advisory Services to investors (e.g. based on type of investor, minimum investment amount, small number of investors, existing customer, tolerated practice, etc.). If an exemption is available, please set out the criteria which must be satisfied in order to utilise it. Please include discussion of any exemptions available to individual investors on the basis that they are high net worth/sophisticated. Please comment on both formal “black-letter law” exemptions and accepted practice.	The only exemption would be reverse enquiry as explained in section 5 above. However below we set out the route that may be available to a third country firm as an alternative to obtaining a full MiFID II licence. An Authorised Non-EU Entity is an entity that is authorised in Spain by means of a local licence (which is not a full MiFID II licence as it only allows such entity to provide services in Spain). A non-EU OFI may be authorised through a branch or, provided that certain conditions are met, on a cross-border basis in Spain. For background see the CNMV statement issued in July 2021 (https://www.cnmv.es/portal/verDoc.axd?t=%7Be6e510a9-b9a3-4345-bee5-9167982f4a0c%7D). The conditions are that: • there must be reciprocity in the third-country firm’s country of origin, allowing Spanish credit institutions and investment firms to provide investment services under similar conditions; and • provision of investment services must be to:

	○ eligible counterparties; or ○ per se professional clients (provided that the services are provided to fewer than 20 per se professional clients or the income from the provision of these services to per se professional clients is under EUR 2 million). The CNMV may also grant permission for a third-country firm to provide investment services on a cross-border basis where deemed appropriate in exceptional circumstances. In any event, a third-country firm providing investment services in Spain on a cross-border basis will be required to obtain prior authorisation from the CNMV and will be subject to the supervision of the CNMV. Third country firms providing investment services in Spain (i.e. Authorised Non-EU Entity) will require to comply with specific requirements for the authorisation, specifically: • <i>Organisational requirements</i> (arts. 176 to 180, 191 to 211 and 213 to 223 SMA; art. 41 bis Spanish RD 813/2023 and Circular 1/2014, of 26 February): ○ Third-country firms providing investment services in Spain must have adequate and sufficient organizational measures, technical, personal and internal control means. Specifically, the organizational structure will include a unit performing the regulatory compliance function, a unit performing the risk management function and a unit performing the internal audit function and supporting the management of the entities in their responsibility for evaluation and improvement of the effectiveness of all control systems and procedures established by the entity, including risk management and regulatory compliance. ○ Third-country firms providing investment services in Spain must adopt, among others, administrative and accounting procedures, procedures related to the management of the risks associated with the outsourcing, procedures to safeguard the security, integrity and confidentiality of the information and procedures to reduce the risk derived from the unexpected interruption of essential functions for the provision of investment services, and must also have measures and procedures to safeguard the security and conservation of all records. • <i>Conduct business rules</i>. Third country firms when providing investment services in Spain must comply with certain local provisions regarding business rules, regarding (MiFID II conduct of business rules, art. 74 Directive 2013/36/EU of 26 June 2013; Chapter VI, Section 2^a SMA; CNMV internal governance guidances and where
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applicable Commission Delegated Directive (EU) 2021/1269 of 21 April 2021 and Commission Delegated Regulation (EU) 2021/1253 of 21 April 2021):

- Obligations regarding surveillance and control related to the marketing of financial instruments (articles 199 of SMA and 123 to 139 of Royal Decree 813/2023).

Third-country firms providing investment services in Spain will have adequate surveillance and control mechanisms to ensure that the financial instruments and services they intend to offer or recommend are in line with the needs, characteristics and objectives of an identified target market.

Third-country firms providing investment services in Spain must understand the characteristics of the financial instruments they offer or recommend. In this regard, investment firms shall obtain information from the manufacturer of financial instruments in order to understand the financial instrument they intend to recommend or sell, so that the financial instruments are distributed in accordance with the needs, characteristics and objectives of the identified target market.

Third-country firms providing investment services in Spain must use the information collected from the manufacturers and the information they have about their own clients to identify the target market and the distribution strategy. However, Investment firms will reconsider the target market or update the surveillance and control mechanisms of the financial instrument if they become aware that they have wrongly identified the target market or that the financial instrument or service no longer complies with market circumstances.

- *Customer Classification* (articles 191 to 196 of SMA and 112 to 114 of Royal Decree 813/2023).

Third-country firms providing investment services in Spain must classify their customers. Investors will either be retail clients (with the ability to opt-up to professional client status), professional clients or eligible counterparties.

Retail clients may request to be treated as professional clients, expressly waiving their treatment as retail clients. The admission of the request and said resignation will be conditioned to the fact that the company that provides the investment service carries out the adequate evaluation of the experience and knowledge of the client in relation to the transactions and services that it requests and ensures that it can make its own investment decisions and

understand its risks. When carrying out the aforementioned evaluation, the company must verify that at least two of the following requirements are met:

- a) That the client has carried out transactions of significant volume in the relevant market of the financial instrument in question or of similar financial instruments, with an average frequency of 10 per quarter during the four previous quarters.
- b) That the size of the client's financial instrument portfolio, made up of cash deposits and financial instruments, exceeds 500,000 euros.
- c) That the client holds or has held for at least one year a professional position in the financial sector that requires knowledge of the transactions or services provided.

- *Assessment of appropriateness or suitability* (Articles 205, 206 and 207 of SMA and 116 and 117 of Royal Decree 813/2023)

When providing investment advice or discretionary portfolio management services, the third-country firm providing investment services in Spain shall obtain the necessary information on i) the knowledge and experience of the client or potential client in the field of investment corresponding to the specific type of product or service, ii) its financial condition, including its ability to withstand losses, and iii) its investment objectives including the tolerance for risk.

When different investment services are provided, the third-country firms providing investment services in Spain must request the client, including potential clients, to provide information on its i) knowledge and ii) experience in the field of investment corresponding to the specific type of product or service offered or requested, so that the entity can assess whether the service or investment product is suitable for the client.

If the third-country firm providing investment services in Spain considers that the investment product or service is not suitable for the client, it will warn the client. Also, when the client does not provide the requested information or it is insufficient, the entity will warn him that it is not possible to determine if the planned investment service or product is suitable for him.

When the third-country firm provides exclusively the service of execution or reception and transmission of customer orders in Spain, with or without provision of ancillary services (except for the granting of credits or loans), the

	third-country firm will not be obliged to make the assessment of appropriateness provided that all of the following conditions are met: a) the order refers to non-complex financial instruments; b) the service is provided at the initiative of the client or potential client; c) the third-country firm has clearly informed the client or potential client that it is not obliged to evaluate the appropriateness of the financial instrument offered or the service provided; and d) the third-country firm has adopted measures to prevent, detect and manage possible conflicts of interest between its clients and the company itself or its group. ○ <i>Inducements</i> (articles 216 of SMA, articles 120 to 122 of Royal Decree 813/2023 and articles 11 to 13 of the Commission Delegated Directive (EU) 217/593). Inducements are allowed when investment services (other than discretionary portfolio management or investment advice on an independent basis) are provided as long as: (i) they enhance the quality of the relevant service and, (ii) do not prejudice the fulfilment of the obligation of acting with honesty, impartiality and professionalism, in the best interest of its clients. In relation to discretionary portfolio management or investment advice on an independent basis, investment firms must return to clients any fees, commissions or any monetary benefits paid or provided by any third party or a person acting on behalf of a third party in relation to the services provided to the client as soon as reasonably possible after receipt. In terms of any form/content requirements that apply to marketing materials/documents that are distributed using this route for Authorised Non-EU Entities we note that the position is the same as that which applies to Spanish entities. Spanish branches from European Union firms are also subjected to the above conduct business rules.
(ii) the relevant criteria for determining whether an investor is in your jurisdiction for the purposes	There is no specific criterion but it must be taken into account whether the investor has its domicile/residence in Spain.

	of determining how the private placement regime applies (e.g. the investor is incorporated, domiciled, has employees in your jurisdiction).	
(iii)	any sensitivities depending on whether the investor is a potential or an existing client.	No specific sensitivities depend on whether the investor is an existing or potential client of the OFI.
(b)	Are there registration/notification/approval/licensing requirements which apply in respect of the OFI marketing/providing Investment Management & Advisory Services to investors in your jurisdiction? Please outline the practical steps required to fulfil any such requirements (including links to relevant forms/information on the relevant regulator's website) plus any possible exemptions from such requirements.	Yes. Please refer to section 5(a) above. Marketing/provision by the OFI of IMAS is covered by the licensing requirements and the OFI will need to be an EEA Passporting Entity or an Authorised Non-EU Entity. If/when the necessary pre-requisites are met (e.g. necessary equivalence determinations are in place), it may also be possible in the future for a Third Country Passporting Entity to market/ provide Investment Management & Advisory Services in Spain.
(c)		
(i)	Is it: (A) necessary ; or (B) permitted to use a local intermediary in order to market/provide Investment Management & Advisory Services to an investor in your jurisdiction and, if so, on what basis? Please consider the position in relation to:	It is not necessary but it may be permitted to use a licensed third party intermediary to market/provide the Investment Management & Advisory Services - see (A) below.
(A)	a licensed third party intermediary;	It is not necessary but it may be possible to use a licensed third party intermediary to market/provide the Investment Management & Advisory Services. If it is the licensed local third party intermediary who has the contact and the contract with the investor and markets and renders the services, no licence will be required for the OFI. This for example may work in the context where the licensed local third party intermediary is arranging for a deal or offering a service of the OFI. However, the viability of this scheme is based in the fact that the licensed local third party intermediary is the only one marketing and providing services.
(B)	an unlicensed local third party intermediary; or	No.
(C)	a branch, representative office or other form of regulated place of business of the OFI in your jurisdiction.	No.

(ii) Where the key entity marketing/selling the IMAS in your jurisdiction is in compliance with local licensing requirements, is it permitted for a sub-advisor of an investment strategy e.g. sub-advisor of a Managed Account, to participate in the marketing activities (e.g. via Fly-In Meeting, telephone call, email) without itself being licensed in your jurisdiction? For example, can the sub-advisor/manager participate in the marketing/selling activities where the locally licensed entity acts as its chaperone?	No. According to Spanish law, as indicated above, in order to perform any kind of marketing activities a licence will be required.
(d) Could an OFI be appointed as a tied agent of an EEA regulated entity in order to market/sell IMAS to investors in your jurisdiction? If so, (i) must the EEA regulated entity be incorporated in your jurisdiction or can it be passported into your jurisdiction;	N/A
(ii) must the tied agent be incorporated in the EEA; and	N/A
(iii) do any licensing requirements apply to the tied agent? If applicable, please cross-refer your answer to section 6.4(e) above.	N/A
(e) Is there a requirement as to the language the written marketing materials need to be in when marketing/providing Investment Management & Advisory Services pursuant to the routes described in this section 7.3 and are there any particular requirements that apply in connection to such documents?	Please refer to Section 6.4(f) for the position that applies where Investment Management & Advisory Services are marketed/provided to the public. Where these services are marketed/provided to Professional Investors only (e.g. by an EEA Passporting Entity or an Authorised Non-EU Entity) then Spanish and/or English can be used.
(f) Are there any other requirements (including any ongoing requirements)?	N/A

7.4 Sensitivities based on Investment Strategy (Investment Management & Advisory Services)

What we are seeking to draw out in this section is whether there are any particular requirements or restrictions that **only** apply to **certain sorts of Investment Strategy** when Investment Management & Advisory Services are marketed or sold in your jurisdiction. You may have already dealt with these issues elsewhere in the Memorandum, in which case please include a cross-reference to the applicable response.

- (a) Are there particular additional **requirements or restrictions** which apply where an OFI wishes to market/provide Investment Management & Advisory Services using the private placement regime in your jurisdiction where the **investment strategy** is listed below, or involves investments in those types listed below.

Please indicate your response by answering Yes/No for each type of investment or strategy.

INVESTMENT MANAGEMENT & ADVISORY SERVICES

	Yes/No	If the answer is “Yes”, please include a brief description and/or cross-reference to discussion of the applicable requirement or restriction.
hedge fund strategy	No	
private equity investments	No	
real estate investments	Yes	It may be a non-MiFID II instrument in which case services provided in relation to such investment will not be Investment Services and not, therefore, require a licence. Other Spanish regulations apply, an analysis of which falls outside the scope of this Memorandum.
infrastructure investments	Yes	It may be a non-MiFID II instrument in which case services provided in relation to such investment will not be Investment Services and not, therefore, require a licence. Other Spanish regulations apply, an analysis of which falls outside the scope of this Memorandum.

debt or equity instruments	No	
derivative investments	No	
fund of funds strategy	No	
environmental, social and governance (ESG) strategy	Yes	Consideration should be given to the European Disclosure Regulation and the Taxonomy Regulation.
Sharia compliant strategy	No	Spanish law does not regulate any Sharia compliant strategy IMAS. Therefore, provided such IMAS are compliant with Spanish regulations, there would not be any additional requirements.
private credit/non-bank lending strategy	Yes	It may be a non-MiFID II instrument in which case services provided in relation to such investment will not be Investment Services and not, therefore, require a licence. Other Spanish regulations apply, an analysis of which falls outside the scope of this Memorandum.
other	No	

7.5 Investment Management & Advisory Services in respect of Single Investor Vehicles, Segregated Managed Accounts and Family Office Undertaking	
Please refer to section 6.1 of the <i>European Framework Document</i> .	
This question focuses on investment structures/investment vehicles which fall outside the definition of Fund (i.e. structures which fall outside the definition of AIF as set out in the AIFMD and which are not UCITS Funds). (a) Please confirm whether the marketing or provision of the following investment structures/investment vehicles will be caught by the rules applicable to the marketing/provision of Investment Management & Advisory Services in your jurisdiction OR whether other domestic fund or marketing/offering restrictions will apply: (i) a vehicle, which makes investments into financial instruments or assets and which is prevented by national law, the rules or instruments of incorporation, or any other provision or arrangement of binding legal effect, from raising capital from more than one investor (a Single Investor Vehicle). (ii) a Segregated Managed Account. (iii) a family office undertaking, which makes investments into financial instruments or assets and where capital is invested in the undertaking by members of a Pre-Existing Group¹⁰, for the investment of whose private wealth the undertaking has been exclusively established (Family Office Undertaking). If other restrictions or rules are triggered, please outline (briefly) the position under local law and outline the key exemptions (if any).	(i) This vehicle does not fall within the definition of CIS under Law 35/2003 and it is also exempted from the application of Law 22/2014, thus its activities are unregulated. (ii) This account cannot be considered as an AIF under Law 35/2003 or Law 22/2014 because it is not even a vehicle, thus its activities are unregulated. (iii) This has not been specifically transposed into Spanish legislation. Although the CNMV would adopt the Key Concepts of the AIFMD regarding the definition of AIFs and its concept. Advice should be sought on a case-by-case basis.

¹⁰ A group of family members, irrespective of the type of legal structure that may be put in place by them to invest in an undertaking and provided that the sole ultimate beneficiaries of such legal structure are family members, where the existence of the group pre-dates the establishment of the undertaking. This shall not prevent family members joining the group after the undertaking has been established. For the purpose of this definition, “family members” means the spouse of an individual, the person who is living with an individual in a committed intimate relationship, in a joint household and on a stable and continuous basis, the relatives in direct line, the siblings, uncles, aunts, first cousins and the dependants of an individual.

8. MARKETING ACTIVITIES

Questions	Answers
The purpose of sections 5, 6 and 7 of Part B of this Memorandum is to identify to whom Funds (whether AIFs, Passported UCITS Funds or Non-Passported UCITS Funds) or Investment Management & Advisory Services can be marketed or sold in your jurisdiction. This section 8 addresses particular requirements which may apply depending on how such products or services are marketed or sold. Please refer to section 10 of the <i>European Framework Document</i>. Please note that in this section we do require answers to cover the position applicable to AIFs marketed via the AIFMD Marketing Passport, Passported UCITS Funds, Funds marketed pursuant to any private placement regime and Investment Management & Advisory Services. This section 8 also includes some questions on specific scenarios that may be relevant to an OFI in relation to its cross-border activities.	
8.1 Written Materials	
(a) Can marketing/selling of a Fund or Investment Management & Advisory Services to investors in your jurisdiction be conducted through the distribution of written marketing materials (whether by email or by physical delivery of documents)?	UCITS: Yes, to the extent UCITS notification and requirements set out in section 6.1 above are complied with, including the appointment of a distributor to carry out all marketing activities of Funds. Otherwise, the answer is no. In addition, there is an obligation to include the registration number and a statement informing on the existence of a prospectus and a KID and where those may be obtained by investors. The registration number of the Fund must also be included in such marketing materials. Non-Passported UCITS: No. Non-Passported UCITS may not be marketed in Spain. AIFs: Yes, to the extent requirements for Closed-Ended and Open-Ended Funds set out in sections 4.1(a), 4.2.1, 6.2 and 7.1 (as applicable) above are complied with, including the appointment of a distributor to carry out all marketing activities of Funds. Otherwise, the answer is no. If the marketing materials refer to Open-Ended Funds there is an obligation to include the registration number and a statement informing on the existence of a prospectus, if applicable, and where it may be obtained by investors. The registration number of the Fund must also be included in such marketing materials. Although not strictly required by law, it would also be best practice to include this information in the marketing materials related to Closed-Ended Funds. IMAS: Yes, provided that the OFI is duly licensed to render Investment Services into Spain as described in section 5(c) above (i.e. it is either an EEA Passporting Entity or an Authorised Non-EU Entity). If/when the necessary pre-requisites are met (e.g. necessary equivalence determinations are in place), it may also be possible in the future for a Third Country Passporting Entity to market/ provide Investment Management & Advisory Services in Spain.

Questions	Answers
Please could you confirm whether your above response would apply to the following types of written marketing materials and, if applicable, note any particular considerations that would apply to that particular type of document:	
(i) offering memorandum (may also be referred to as the “private placement memorandum” or “information memorandum”);	UCITS: Same conclusions as (a) above apply. Non-Passported UCITS: Same conclusions as (a) above apply. AIF: Same conclusions as (a) above apply. IMAS: Same conclusions as (a) above apply.
(ii) marketing presentation (may also be referred to as the "pitch book" or "marketing deck"). Such presentations may include: • Investment strategy/philosophy/process • Biographies of key investment team members • Track record • Case studies of specific investments • Operational infrastructure/list of service providers terms	UCITS: Same conclusions as (a) above apply. Non-Passported UCITS: Same conclusions as (a) above apply. AIF: Same conclusions as (a) above apply. IMAS: Same conclusions as (a) above apply.
(iii) tear sheet (may also be referred to as the “fact sheet” or “profile”) Such tear sheets may include: • A brief description of strategy • Summary statistics • Terms • Service providers For the purposes of this question please assume that the tear sheet includes the name of the Fund.	UCITS: Same conclusions as (a) above apply. Non-Passported UCITS: Same conclusions as (a) above apply. AIF: Same conclusions as (a) above apply. IMAS: Same conclusions as (a) above apply.
(b) Is it recommended or mandatory to include certain disclaimers/warnings in the written marketing materials? If so, please specify which type of written marketing materials will require such a disclaimer/warning, e.g. the offering document, presentations, pitch	Marketing/selling of a Fund If a Fund is registered for its marketing to the public in Spain, please see 8.1(a) above and also applicable wording in Appendices e.g., 1.C. and 2.C (or 1.E in the case of a UCITS Fund).

Questions	Answers
books, emails? Please provide recommended wording in Section A of each of Appendix 1, Appendix 2 and Appendix 3 of this Memorandum, along with an indication of whether such wording is mandatory or recommended. If applicable, please specify whether additional/alternative disclaimer language is required in respect of an AIF which falls within the scope of the Prospectus Regulation.	If the Fund is not registered for marketing to the public, there are no mandatory disclaimers and, in fact, no marketing is permitted. Therefore, the typical general disclaimer stating that the Fund cannot be offered or marketed in any jurisdiction where such offer or marketing would not be permitted or would trigger registration requirements would suffice. In this regard, please refer to the disclaimer in Appendix 1.A and/or 2.A. Alternatively where there AIF has been approved to be marketed via A36/A42 see the wording in Appendix 1.A and/or 2.A. The OFI should expressly state if the marketing is a result of the exclusive initiative of the investor if that is truly the case. Where the communication amounts to a “marketing communication” within the scope of ESMA’s Marketing Guidelines, see disclaimer wording in Appendix 4D. Marketing/selling of Investment Management & Advisory Services For Investment Management & Advisory Services no disclaimer is applicable. However, the OFI should expressly state if the marketing is a result of the exclusive initiative of the investor. Prospectus Regulation Please note that the Prospectus Regulation replaced the Prospectus Directive. The SMA has been updated to reflect the Prospectus Regulation. See the applicable wording in Appendix 2.A, 2.C and 2.D where the fund interests of a Closed-Ended Fund amount to Transferable Securities.
(c) Are there rules regarding the form/content of written marketing materials (including as to how performance data should be portrayed)? Please consider the following as part of your response: (i) Do these rules distinguish between the type of investor that such materials will be presented to? (ii) Do the national rules regarding form/content of communications with clients derive from, and are they broadly in line with, MiFID II or are there additional national requirements? Please also confirm that EEA OFIs which have no licensed office in your jurisdiction (i.e. who are providing cross-border services, rather than services from an establishment in your jurisdiction) will not be required to comply with content requirements deriving from MiFID II as implemented in your jurisdiction but rather the equivalent requirements of its home EEA member state.	Marketing/selling of a Fund Please refer to section 4.1(a) and 6.2(j) above. In addition, Circular 2/2020, of the CNMV, sets out the requirements summarised below. In addition it is necessary to have regard to the requirements in ESMA’s Funds ‘Marketing Communication Guidelines for Funds. On 30 September 2021 the CNMV issued a public statement regarding the ESMA’s Marketing Guidelines “ESMA Guidelines on marketing communications under the Regulation on cross-border distribution of funds”, which states that the content of the ESMA’s Marketing Guidelines is consistent with the provisions of Circular 2/2020 (although the scope of Circular 2/2020 is wider than the scope of the ESMA Marketing Guidelines). ESMA’s Marketing Guidelines apply to all marketing communications addressed to investors or potential investors in UCITS and AIFs (including those set up as EuVECAs, EuSEFs, ELTIFs and money market funds). In absence of a definition of what constitutes a “marketing communication” the Marketing Guidelines instead provide non-exhaustive examples of what may and may not qualify.

Questions	Answers
	Notably all mediums, including paper printed documents or information made available in electronic format, interviews, advertisements, documents made available on the internet, as well as webpages (including messages broadcast on any social media platform), video presentations, live presentations, radio messages or factsheets are within scope. UCITS Fund Requirements Regarding the content, the law requires certain provisions for the key documents, as follows: 1. Prospectus: The prospectus must contain the regulations of the CIS. The prospectus has to contain the information listed in Schedule A of Annex I of UCITS Directive. 2. The Annual Report. The annual report must contain the annual accounts of the CIS, the management and the audit report; information on the remuneration policy of the management company, and any other significant information that allows the investor to make an informed judgment about the evolution the results of the CIS. 3. The Semi-Annual Report. This must contain information on the state of the assets, the number of shares in circulation, the net asset value per share, the portfolio of securities, movements in the assets, as well as a comparative table for the last three years. It must also include all the CIS's expenses expressed as a percentage of the CIS's assets, as well as the composition of the portfolio. The manager must indicate in each prospectus whether they will voluntarily provide quarterly information. If the manager decides to provide it, it must meet the same requirements indicated for the semi-annual information. The prospectus and the latest published annual and semi-annual reports, along with the KID, will be made available to the public in their most updated version on the website. Unless expressly waived by the investor, the manager must send the annual and semi-annual reports to investors by electronic means, unless they do not provide the necessary data for this or express in writing their preference to receive them physically, in which case the manager would have to send the paper versions to the investors, always free of charge. The law foresees that every communication with the investors will be carry out by electronic means, except when the communication is made to the public, and as long as the public do not provide the necessary data for this or when the public expresses in writing their preference to receive it physically, in which case it will be sent on paper, always free of charge. The manager can inform the current investor that there will be an automatic change to electronic communication if they do not request the continuation of paper information within eight weeks.

Questions	Answers
	Marketing/selling of Investment Management & Advisory Services MiFID II requirements apply (i.e., risk warnings, formatting, forward-looking statements and fair, clear and not misleading communication with clients). The key requirement is that marketing communications are “fair, clear and not misleading”. For Retail Investors, there are more requirements to consider deriving from MiFID II but these have been implemented largely in line with MiFID II (i.e., the information to include in the prospectus). Aside from MiFID II requirements, Circular 2/2020, of the CNMV, sets out additional requirements summarised below applicable when advertising investment products and services. EEA Passporting Entities which have no licensed office in Spain providing cross-border services and duly registered to do so will not be required to comply with content requirements deriving from MiFID II as implemented in Spain pursuant to MiFID II regulatory framework. However, EEA Passporting Entities are subjected to Circular 2/2020. See section 7.3(a)(i) for the requirements that apply to a non-EU OFI that has applied for cross-border authorisation as an Authorised Non-EU Entity. Circular 2/2020, of 28 October, of the CNMV, on the advertising of investment products and services. The Annex of Circular 2/2020 establishes form and content requirements for marketing materials and will apply to marketing materials for Funds and Investment Management & Advisory Services. In particular, it stipulates the following: • Advertising for the investment products and services covered by shall be clear, balanced, unbiased and not misleading. To this end, simple and easily understandable language shall be used and the omission of relevant information or the inclusion of ambiguous, biased, incomplete or contradictory information that could lead to confusion shall be avoided. • The information contained in commercial communications must be consistent and may not contradict the information or warnings that institutions are obliged to provide to customers in the marketing of products or services. • In any advertising material or activity for specific products, reference should be made, where appropriate, to the existence of mandatory legal information documents and an indication should be given of where these documents can be obtained. Expressions which could mislead investors into believing that legal documentation is less important than any other information used as advertising for these products or that advertising material is an alternative to legally required information should also be avoided.

Questions	Answers
	• Institutions shall ensure, where this is not obvious from the context, that their advertising activity is clearly identified as advertising in the medium used to disseminate the message or advertising piece. For these purposes, a communication shall be understood to be advertising in any case when it refers to the products and services of a given entity and the latter pays or provides any type of remuneration, monetary or non-monetary, direct or indirect, for the dissemination. • Commercial communications and advertising pieces that provide information on the cost or profitability of a product or service must contain clear, accurate, sufficient and up-to-date information, in a manner appropriate to their nature and complexity, the characteristics of the media used and the target audience to which they are addressed. • The advertising messages and the way in which they are presented shall enable the advertising piece to be properly understood, taking into account the target audience to which the product or service is addressed and, in particular, shall avoid creating disproportionate or false impressions or expectations that act as an incentive to contract the product or service or a different appearance to the reality of the characteristics or duration of the advertised offer. • When messages of a secondary or less prominent nature are included in the advertising piece, such messages may not contradict the content of the main message. • Any relevant information or warnings about the product or service included in the commercial communication (about risks, conditions affecting cost or profitability, requirements or restrictions for its commercialisation or other aspects) shall be formatted and positioned so as to ensure their relevance within the advertising piece and shall not be included as secondary information or in footnotes. In particular, the font size of this information shall be at least equal to the size predominant in the marketing communication. • Taking into account the characteristics of the advertising medium to be used, commercial communications and advertising pieces shall be designed in such a way that they do not omit or conceal relevant information. • When the communication means or the advertising format used imposes space or time limitations such that it is not possible to include all the relevant information or warnings about the product in the initial advertising piece, the latter must refer to alternative sources of information or be included in a secondary advertising piece so that in any case it is possible to find out all the relevant information or warnings about the product or service

Questions	Answers
	quickly and easily. When in commercial communications issued through digital media or social networks relevant information is included in images, videos or other visual, sound or audiovisual resources in order to overcome the limitation of space or time, their viewing by the recipient shall be promoted by including express indications in the advertising message such as "click on the image to obtain more information" or similar formulas. • In audiovisual, radio or any other media in which an advertising message is broadcast, the relevant information must be reproduced for sufficient time to allow it to be properly perceived. • Any mention of limitations or exclusions of liability of entities for the content of advertising should be avoided. In advertising broadcast via social networks, the institution shall be liable for compliance with these provisions when forwarding text or content shared by a third party, in particular customers, which expressly endorses or highlights the benefits of a product or service marketed by the institution, even if it did not generate the original content of the communication. • The products and services offered shall be clearly distinguished, and the use of words or expressions that may generate doubts about their nature and characteristics or about the risks associated with their contracting shall be avoided. Similarly, where two or more products of different natures are offered simultaneously, the different characteristics of each shall be clearly indicated. • The inclusion in the advertising message of superlative or diminutive adjectives, or expressions indicating preference, advantage or leadership of the advertiser or of the product or service, must be based on objective and verifiable factors or data that allow this to be accredited. Otherwise it should be avoided, in particular in the case of expressions relating to the cost or performance of the product or service offered. If the advertising message includes a comparison between products or services, the products or services must have the same purpose or satisfy the same needs, and the comparison must be made objectively between one or more of their essential characteristics, which must be relevant, verifiable and representative. • Where a tender has a fixed period of validity, this shall be expressly stated. Where the validity is conditional on any other variable (e.g. reaching a certain volume) this shall be mentioned in the body of the main message, with appropriate prominence.

Questions	Answers
	• If the advertising message refers to the advantages of a certain tax treatment, it shall be made clear whether this is of a general nature or depends on the personal situation of the customer or potential customer. • The use of the term "gift" (<i>regalo</i>) or any other equivalent term should be avoided in cases where there may be a tax impact from the provision of a good or a sum of money as an incentive for the purchase of a product or service and, in particular, in all transactions that tax regulations classify as remuneration in kind. • Any quantitative information on the past cost or profitability of the product or service included in the advertising message must expressly indicate the period of time to which it refers. Where two or more figures are included, they shall relate to the same period of time. This type of information shall in any case comply with the specific regulation applicable depending on the product or service concerned. • Information on past performance must not be provided in a partial or biased manner, must include performance over the last five preceding years or over the entire marketing period of the product if shorter, in full 12-month periods and must be expressed in terms of revaluation, with the addition of the APR (TAE) where applicable. It shall be acceptable to include returns over periods of time shorter than 12 months provided that they are not provided on an annualised basis and that information on the performance of at least one additional 12-month period is included. For newly established CIS which do not yet have performance data for a full 12-month period, cumulative performance information for the current year may be provided. • Likewise, returns for periods longer than one year may be provided, provided that they are additional to the minimum information required by this section. Furthermore, these returns may not appear prominently above the rest and the years used to calculate them must be visibly and clearly identified, which must necessarily be the most recent and consecutive years. • In any case, the terms in which each return is being expressed and the time period to which it refers must be indicated in a sufficiently visible manner. • Historical results may not be the most prominent element of the communication, and it is not acceptable to present them in a larger or highlighted font size. In addition, it should be prominently stated that past performance is not a reliable indicator of future performance.

Questions	Answers
	• Where a reference to the maximum change in a given index or share price over a given period of time is included, it must be supplemented by data for the smallest change over the same period. • The font size, in particular for warnings and explanations, shall be sufficient for the advertising format and the intended reading distance of the text. The typeface and fonts used in the advertising message shall be easily legible. The above points will not apply to the following cases (among others) as they are not subject to Circular 2/2020: • Corporate advertising campaigns, understood as those containing exclusively generic information on an entity or its corporate purpose, intended to make it known to the public, provided that they are not related to a public offer of securities or financial instruments and do not involve an appeal for the acquisition of such securities or financial instruments on secondary markets. • Specific content required to contract products or services (e.g., pre-contractual and contractual information, warnings on the characteristics and risks of the products or services offered that are provided to investors in compliance with information obligations). • Objective information on a financial instrument sent to clients or published on the website which do not include subjective elements, including analysis reports and documents or informative publications sent to clients explaining the situation of the markets and the institution's management decisions in this market context for a given period. • Documentation or information provided when providing information on investment strategies by (inter alia) management companies of collective investment undertakings and management companies of closed-ended collective investment undertakings, to potential professional investors domiciled or registered in the EU, in order to ascertain their interest in an AIF, provided that this is done within the terms set out in Article 30a of Directive 2011/61/EU. The Circular 2/2020 applies, among others, to management companies of collective investment undertakings and management companies of closed-ended collective investment undertakings authorised in another Member State of the European Union or in a third State operating in Spain under the freedom to provide services.

Questions	Answers
	Finally, please note that according to Circular 2/2020, the advertising of the products and services must respect the conditions of legality established in the Publicity Law (see section 4.1(a) above). <u>Accessibility Requirements</u> In addition, accessibility rules may apply to the format and delivery of marketing materials disseminated through digital channels. In Spain, public-facing websites, mobile apps and downloadable documents (i.e., PDFs, factsheets, KIDs), as well as audiovisual pieces, should meet recognised accessibility standards, as established on Law 11/2023, of 8 May, transposing European Union Directives on the accessibility of certain products and services, which transposes Directive (EU) 2019/882 of 17 April on the accessibility requirements for products and services, so that information is perceivable, operable and understandable for users with disabilities (i.e., sufficient contrast and font size, alternative text for images, proper tagging of PDFs for screen readers, subtitles/captions and, where appropriate, audio description in videos). These requirements are particularly relevant for retail-facing communications. They do not alter the substantive CNMV/ESMA marketing rules, but they do affect the “how” of dissemination and should be considered whenever materials are published on websites, apps, social media or sent by email in electronic formats.
(d) Does the regulator of your jurisdiction require the OFI to retain a record of the recipients of distributed marketing materials?	No. Nevertheless, according to article 177 of the SMA, investment services companies shall keep record of all the services, activities and transactions they carry out. Said registry must be sufficient to allow the CNMV to carry out its supervisory functions and apply the appropriate executive measures and, in particular, to enable it to determine whether the investment services and activities company has fulfilled all its obligations, including those related to its clients or potential clients and the integrity of the market. Moreover, the abovementioned record mentioned shall include recordings of telephone conversations or electronic communications related to the services and investment activities. More specifically, the record shall include: (a) the types of telephone conversations or electronic communications with customers; (b) the obligation to notify the clients of the fact that communications will be recorded; (c) the prohibition to provide services or carry out investment activities by telephone with those clients who have not been notified in advance of the recording in relation to certain services;

Questions	Answers
	(d) the possibility that customers can communicate their orders through other channels as long as such communications can be made on a durable medium; and (e) the adoption of reasonable measures to avoid those communications that cannot be registered or copied. The records kept by the investment companies will be made available to customers if they so request, and will be kept for a period of five years and, when the CNMV so requests, for a period of up to seven years. Apart from these, Circular 2/2020 stipulates that the OFI shall keep an up-to-date internal register of their advertising activities. For this purpose, it shall record the documentation for each of the advertising campaigns carried out.
(e) With reference to Art. 7 of the CBDF Regulation, will the competent authority in your jurisdiction require ex-ante/prior notification of marketing communications which UCITS ManCos/AIFMs intend to use directly or indirectly in their dealings with retail investors? If so, please could you provide a link to the website that the competent authority is required to provide under Article 7(2) setting out the relevant procedure etc.	Spain has not yet exercised the right to require the ex-ante approval of marketing communications set up in article 7 of CBDF Regulation. Moreover, the CNMV has not made any public announcement/communication about its intention to exercise this right. However, on 30 September 2021 the CNMV issued a public statement regarding the ESMA's Marketing Guidelines, which states that the content of the guidelines is consistent with the provisions of Circular 2/2020 (although the scope of Circular 2/2020 is wider than the scope of the ESMA Guidelines). In this regard, Rule 9 of Circular 2/2020 provides that the marketing activities targeting Spanish investors does not require CNMV's prior authorisation. However, the obligation to inform the CNMV can take place on a later stage, once the marketing has started, as the CNMV may require entities to provide specific information on advertising campaigns in order to assess compliance with the advertising requirements established in the Circular 2/2020. This could apply to advertising materials aimed only at Professional Investors as well as to Retail Investors. It also applies to materials relating to UCITS, AIFs or Investment Management & Advisory Services. Despite the absence of a prior notification obligation in Spain, please note that the Retail Investor has to be provided with the following documentation prior subscription: (i) a copy of the Key Investor Information Document (KID) and (ii) the latest published semi-annual report. The CNMV does not require any prior notification of marketing communications which UCITS ManCos/AIFMs intend to use directly or indirectly in their dealings with Retail Investors.

Questions	Answers
(f) Art 4(3) of the CBDF Regulation requires that marketing communications shall specify where, how and in which language investors or potential investors can obtain a summary of investor rights and shall provide a hyperlink to such a summary, which shall include, as appropriate, information on access to collective redress mechanisms at Union and national level in the event of litigation. Has the regulator in your jurisdiction issued any guidance as to where information on access to collective redress mechanisms both in your jurisdiction and at EU level in the event of litigation can be accessed?	The CNMV has not issued specific guidance on this point. Even though Spain has not issued any further guidance on this point, we recommend firms to comply with Art. 4(3) of the CBDF as a matter of best practice.
(g) Are there any other considerations that an OFI should bear in mind before disseminating written marketing materials in your jurisdiction?	Yes. Circular 2/2020 stipulates that the OFI shall approve an internal commercial communication policy, which shall include appropriate internal procedures and controls. According to article 6 Circular 2/2020, this should include: a) A description of the advertising activity carried out; b) The general principles and criteria of Circular 2/2020 set out in section 8.1(b) above, as well as a list of the regulations applicable to the entity's advertising activity; c) The functional areas of the institution responsible for the internal review of advertising pieces in order to ensure that they comply with the principles and criteria to which they must conform, in particular that the requirements on the content and format of the advertising message set out in the Annex to the Circular 2/2020 are met; and d) A description of the internal procedures and controls in place to protect the interests of customers and manage the risks arising from the advertising activity.
8.2 Telephone	
(a) Can marketing/selling of a Fund or Investment Management & Advisory Services to investors in your jurisdiction be conducted through marketing by telephone?	UCITS: Yes, provided that the OFI complies with the requirements set out in section 4.1(a). Non-Passported UCITS: No. Non-Passported UCITS may not be marketed in Spain. AIF: Yes, provided that the OFI complies with the requirements set out in section 4.1(a). IMAS:

Questions	Answers
	Yes, provided that the OFI complies with the requirements set out in section 5(c).
(b) Do specific additional requirements or restrictions apply in respect of cold calling of such investors?	UCITS: No. Non-Passported UCITS: N/A AIF: No. IMAS: No.
(c) Is it recommended or required to make certain oral disclaimers/warnings during the course of the telephone call? If so, please describe the requirements that apply. Please also provide recommended wording in Section B of each of Appendix 1, Appendix 2 and Appendix 3 of this Memorandum.	UCITS: Please refer to section 8.1(b) above. Non-Passported UCITS: N/A AIF: Please refer to section 8.1(b) above. IMAS: Please refer to section 8.1(b) above.
(d) Are there any other considerations that an OFI should bear in mind before conducting telephone calls with prospective investors in your jurisdiction? For example, is it mandatory that such telephone calls be recorded?	Yes. Please refer to section 8.1(d) above.
8.3 Fly-In Meetings	
(a) Can marketing/selling of a Fund or Investment Management & Advisory Services to investors in your jurisdiction be conducted through a Fly-In Meeting? This would include a roadshow where specific information regarding the Fund and/or Investment Management & Advisory Service is presented/discussed.	UCITS: Yes, Fly-in/roadshow marketing is acceptable in Spain provided that the OFI complies with the requirements set out in section 4.1(a). Otherwise, the answer is no. Non-Passported UCITS:

Questions	Answers
	No. Non-Passported UCITS may not be marketed in Spain. AIF: Yes, Fly-in/roadshow marketing is acceptable in Spain provided that the OFI complies with the requirements set out in section 4.1(a). Otherwise, the answer is no. IMAS: Yes, Fly-in/roadshow marketing is acceptable in Spain provided that the OFI complies with the requirements set out in section 5(c). Otherwise, the answer is no.
(b) Are there any particular considerations that an OFI should bear in mind before conducting Fly-In Meetings with prospective investors? For example, is there a risk that frequent Fly-In Meetings may trigger some local licensing or regulatory requirements?	UCITS: Yes. Fly-In Meetings could trigger requirements set out in section 4.1(a), but this should be analysed on a case-by-case basis. In connection with chaperoning there is no definition of this term under Spanish law. In case of accompanying distributors in meetings it will be permitted to the extent the OFI is not rendering services in Spain. On the frequency of the Fly-In Meetings, you should note that according to the European Union Treaty, a person providing services may, in order to do so, “temporarily” pursue his activity in the State where the service is provided without triggering the local licensing requirements. Therefore, the main concept related to the freedom to provide services is “temporarily”. The temporary nature of the supply of services provided for by the European Union Treaty is to be determined in the light of its duration, regularity, periodicity and continuity. Therefore, it should be analysed on a case-by-case basis and it will be generally subject to the interpretation of the CNMV. Non-Passported UCITS: N/A AIF: Yes. Please see the remarks set out above for UCITS. IMAS: Yes. Fly-In Meetings could trigger requirements set out in section 5(c), but this should be analysed on a case-by-case basis. Please see the remarks set out above for UCITS.

Questions	Answers
8.4 Fly-Out Meetings	
(a) Do the licensing and regulatory requirements of your jurisdiction continue to apply to any marketing activities in connection with Funds or Investment Management & Advisory Services which take place at a Fly-Out Meeting?	No. If both the OFI and the relevant individual are outside Spain, Spanish requirements will not be applicable. Instead, analysis as to whether marketing of Funds or investment services are provided in the other jurisdiction should be carried out.
(b) If the answer to section (a) above is “no”, are there any courses of action which could result in the requirements of your jurisdiction having extra-territorial effect? For example, would it be possible for the OFI to induce the resident to leave your jurisdiction to attend a meeting in an offshore office of the OFI without triggering the application of the licensing and regulatory restrictions in your jurisdiction?	Such an inducement could be considered a way to circumvent the applicability of Spanish laws in order to market Funds or promote investment services to potential clients in Spain without complying with the relevant Spanish requirements and should be avoided.
8.5 Internet/Social Media	
(a) Please outline the requirements in your jurisdiction which apply to a webpage which is targeted towards investors located in your jurisdiction (e.g. by writing it in the language of your jurisdiction or by sponsoring links generated when internet users in your jurisdiction search for particular terms via a search engine).	A website published in Spanish, accessible from Spain (or with a Spanish domain) targeted towards investors located in Spain would be deemed to be targeting Spanish residents and as such would trigger Fund registration/licensing requirements as discussed in this Memorandum. However, note that the use of “smart” technology on an account (e.g. pop-ups that cater to the Account holder’s personal preferences) should not trigger licensing requirements provided that they are self-directed (i.e. at the initiation of the customer) and the website/server is located outside of Spain. Solicitation of clients is not an investment service itself, but a preparatory activity to such services, which may be developed separately. However, it is also a restricted activity and can only be carried out on a professional basis, directly or through agents, by entities duly authorised to render Investment Services.
(b) Does your jurisdiction impose requirements/restrictions in respect of webpages which have not been targeted towards investors in your jurisdiction but which are accessible from your jurisdiction?	No. As set out above, a website accessible from Spain (without a Spanish domain) but not targeted towards Spanish investors should not be presumed to be targeting Spanish residents.
(c) If the answer to section (b) is “yes”, what steps could an OFI take to reduce the regulatory risk in your jurisdiction as regarding marketing materials posted on non-targeted webpages? For example, by requiring an investor or potential investor to verify suitability through acceptance of a disclaimer, provide confirmation that he is	N/A

Questions	Answers
not located in your jurisdiction, by making the pages password protected or through use of a secure portal to regulate information available to users?	
(d) Please outline any requirements in your jurisdiction which apply to marketing activities which take place via social media (e.g. blogs, X Corp. (formerly known as Twitter), social networks (Facebook, LinkedIn), forums or photo/video-sharing platforms (e.g. YouTube, Instagram)) and which are targeted towards investors located in your jurisdiction e.g. (i) posts are written in the language of your jurisdiction or have direct relevance to investors in your jurisdiction or (ii) adverts are sponsored to appear on the user pages of investors based in your jurisdiction? Please can you consider if activities on social media would be treated differently if they were conducted by means of a direct message to an investor in your jurisdiction as opposed to a post that can be viewed by many users of the platform including an investor in your jurisdiction.	If marketing activities are published in Spanish, accessible from Spain (or with a Spanish domain) and targeted towards investors located in Spain, these activities would be deemed to be targeting Spanish residents and as such would trigger Fund registration/licensing requirements (as this seems to be the case). This applies to Facebook, LinkedIn, X Corp., Youtube, Instagram or another similar social media platform. In a nutshell, content restrictions and requirements regarding licensing, filings, disclosures will be triggered by the type of activity that is deemed to be carried out and whether such activities are being targeted to Spain or not. In addition, if the activities refer to a specific product they will most probably qualify as a marketing of such specific product. The activity would not be considered as Investment Advice (which requires a licence or EU passport to provide Investment Services as explained above) to the extent: (i) it does not make a recommendation regarding one or several transactions related to a specific financial instrument and it does not refer to a generic type of asset or financial product; (ii) it is not personal, that is, explicitly or implicitly presented as suitable for a particular person based on a consideration of his personal circumstances; (iii) it is not marketed through other means that do not consist exclusively of distribution channels for the public in general (i.e. press, television or radio advertisements); and (iv) it is not an individualised service, that is, addressed to a person in its capacity as investor or possible investor or as an agent or representative of such person. As the marketing activities referred to in this question are targeted towards Spanish investors, they would be subject to fund or financial instruments marketing requirements, the requisites of products registration and the licensing requirements as explained above in this Memorandum. In addition, the CNMV requires that websites, media and social networks that disseminate financial advertising must verify that the advertiser is licensed to provide investment services in Spain. As mentioned above, marketing investment services is a restricted activity and, therefore, directing messages to investors in Spain are more likely to be treated as targeting Spanish residents and as such would trigger Fund registration/licensing requirements as discussed in this Memorandum.

Questions	Answers
(e) Does your jurisdiction impose requirements/restrictions in respect of social media content which has not been targeted towards investors in your jurisdiction but is nevertheless accessible from your jurisdiction?	No. As set out above, any social media accessible from Spain (without a Spanish domain) but not targeted towards Spanish investors should not be presumed to be targeting Spanish residents.
(f) Please set out any practical advice which OFIs should follow in order to reduce the regulatory risk in your jurisdiction regarding marketing activities conducted via social media. For example, is it recommended that all posts contain either the full recommended disclaimer or is it ok to include a link to such disclaimer instead? On X Corp. (formerly known as Twitter), is the use of images a possible solution to the problem of character limitation e.g. by posting a disclaimer as an attachment to a tweet?	In our view, the best approach would be the most conservative. The social media site could be restricted so it is not accessible from Spain and, in any case, it would be advisable that all posts contain the full recommended disclaimer (see below). Further, where the communication amounts to a “marketing communication” within the scope of ESMA’s Marketing Guidelines, see disclaimer wording in Appendix 4.D. of this Memorandum.
(g) Are there any legends, risk factors, disclosures and disclaimers which are required or recommended by local counsel for inclusion in webpages and/or social media which contain marketing materials relating to Funds and/or Investment Management & Advisory Services and which may be accessed by investors located in your jurisdiction?	No, to the extent that such webpages cannot be considered targeting the Spanish market, because of the language (not Spanish) and it does not contain any information addressed to Spanish resident clients in particular or information of Spanish interest only. The best method to avoid Spanish requirements is to avoid the use of the Spanish language, any information addressed to Spanish resident clients in particular or any information of Spanish specific interest only. If the relevant webpage or social media site could potentially be considered to be targeting the Spanish market, please see the wording set out in Appendix 4.B. of this Memorandum.
(h) Please outline (or cross-refer to) any licensing/regulatory requirements in your jurisdiction which apply to virtual events/meetings (e.g. online web/video conferences/channels) involving marketing/selling activities relating to Funds and/or Investment Management & Advisory Services conducted with investors in your jurisdiction (e.g. virtual roadshows, presentations or promotional events).	In the event that such virtual events/meeting can be considered to be targeting Spanish investors, licensing requirements would be triggered as described in section 4.1(b) for Closed-Ended and Open-Ended Funds) and 5(d) (for Investment Management & Advisory Services) above. This will happen for example when virtual events are conducted in Spanish, accessible from Spain (or with a Spanish domain) or targeted towards investors located in Spain. Note that licensing requirements will not be triggered where the virtual event is the result of an unsolicited request from an investor, provided that the Conditions for Permitted Reverse Enquiry are met.
(i) Is it recommended or mandatory to include certain disclaimers/warnings in the materials presented/disseminated by	Please refer to section 8.1(b) above. Moreover, the omission of relevant information or the inclusion of ambiguous, biased, incomplete or contradictory information that could lead to confusion should be avoided. For this reason, in our

Questions	Answers
means of virtual events/meetings relating to Funds and/or Investment Management & Advisory Services?	view, the best approach would be to include among others, disclaimers/warnings on, for example, risks or constraints affecting cost or profitability. When there are space or time limitations such that it is not possible to include all the relevant information or warnings about the product in the materials presented/disseminated, it must refer to alternative sources of information so that in any case it is possible to find out all the relevant information or warnings about the Fund or IMAS in a quick and agile manner. The materials presented/disseminated in the virtual events/meetings can include the formula “<i>click on the image to obtain more information</i>” or similar ones. Additionally, where appropriate, references to the existence of mandatory legal information documents and where these documents can be obtained should also be included. In this sense, expressions which could mislead investors to believe that legal documentation is less important than any other information used as advertising for these products should be avoided. Where the communication amounts to a “marketing communication” within the scope of ESMA’s Marketing Guidelines, see disclaimer wording in Appendix 4D of this Memorandum.
8.6 General Marketing	
(a) Please set out or cross-refer to any licensing and regulatory restrictions which may apply to general marketing by an OFI in your jurisdiction as follows: (i) general brand marketing that comprises the use of the OFI’s corporate name, logo, slogan or design scheme; (ii) providing general information about the OFI (e.g. history, business divisions, key persons); (iii) publishing articles / giving interviews e.g. thought leadership pieces or macroeconomic analysis/market outlook; and (iv) general marketing materials which refer to awards/customer testimonials. Does the analysis depend on the type of investor that is targeted e.g. Professional Investor, Retail Investor etc. or whether the activity takes place remotely or at a Fly-In Meeting?	Funds (including UCITS Funds) To the extent there is no reverse solicitation by the investors, this could be seen as marketing of AIFs and, thus, the above restrictions would apply. In such scenario, since the marketing of AIFs qualifies as a regulated investment service under Spanish law (please see 4.2(e)(i) above), licensing requirements would be triggered as described in section 5(d) above (for Investment Management & Advisory Services) and requirements for Closed-Ended and Open-Ended Funds set out in section 4.1(b) could also apply. Even general brand awareness or advertising of the OFI itself rather than anything specific regarding Funds could be regarded as soliciting clients as it could be suspicious for the CNMV. It is a grey area (bordering on regulated) for carrying out/handing over generic marketing/branding materials to prospects in Spain. The same remarks apply to the provision of general information about the OFI as well as to the publication or distribution of articles, interviews or macroeconomic analysis/market outlook papers. These scenarios will need to be carefully considered on a case-by-case basis as they could trigger licensing requirements. Additionally, if the activities are referred to a specific Fund they would most probably qualify as a pre-marketing/marketing of such specific Fund and the above explained restrictions must be taken

Questions	Answers
	into account. Any general marketing activities will need to be carefully considered on a case-by-case basis. IMAS The same remarks set out above for Funds apply in respect of general marketing relating to Investment Management & Advisory Services, as applicable.
(b) Please set out or cross-refer to any licensing and regulatory restrictions which may apply to general marketing which involves general awareness-raising of product lines or service lines including discussion of general strategies (but without reference to a specific Fund (whether an AIF or Non-Passported UCITS Fund or Investment Management & Advisory Service). Does the analysis depend on the type of investor that is targeted e.g. Professional Investor, Retail Investor etc. or whether the activity takes place remotely or at a Fly-In Meeting?	Funds (including UCITS Funds) No. Same criterion will apply. By way of example, marketing of the most general nature – logo, branding, awards, etc. e.g. name of the OFI on a pen would be acceptable. Customer testimonials, on the other hand, should be assessed in more detail on a case-by-basis as they could potentially trigger licensing requirements. However the publishing of articles e.g. thought leadership pieces or research papers by the OFI, marketing by means of awareness of product/service lines (without reference to a specific Fund) or marketing particular characteristics or an investment strategy (without reference to a specific Fund) would likely trigger the restrictions. Any general marketing activities will need to be carefully considered on a case-by-case basis. IMAS The same remarks set out above for Funds apply in respect of general marketing relating to Investment Management & Advisory Services, as applicable.
(c) Please set out or cross-refer to any licensing and regulatory restrictions which may apply to general marketing which involves discussions which refer to particular characteristics of a Fund (whether AIFs or Non-Passported UCITS Funds) or Investment Management & Advisory Service (e.g. investment strategies or ideas) without referring to the name of the relevant Fund or Investment Management & Advisory Service? An example of this type of marketing would include a tear sheet which while it may not include the name of the relevant Fund or Investment Management & Advisory Service, may include a brief description of strategy, terms, summary statistics (e.g. relating to AUM, performance, risk) and/or a list of key service providers.	Funds (including UCITS Funds) If the activities are referred to particular <i>characteristics</i> of a Fund they would most probably qualify as a pre-marketing/marketing of such specific Fund and the above explained restrictions must be taken into account. IMAS The same remarks set out above for Funds apply in respect of general marketing relating to Investment Management & Advisory Services, as applicable.

Questions	Answers
Does the analysis depend on the type of investor that is targeted e.g. Professional Investor, Retail Investor etc. or whether the activity takes place remotely or at a Fly-In Meeting?	
(d) Are there any rules regarding the form/content of written marketing materials which contain the type of information referred to in 8.6(c) above e.g. tear sheets/snapshots of marketing presentations that do not refer to the name of the Fund?	Funds (including UCITS Funds) Please refer to section 8.1(c) above. IMAS Please refer to section 8.1(c) above.
(e) Are there any licensing or regulatory restrictions which may apply when an employee of an OFI: (i) attends a finance-related event in your jurisdiction; or (ii) is a speaker at a finance-related event in your jurisdiction and discusses general trends/themes rather than a specific Fund/IMAS?	Certain types of presentations or seminars where a specific topic is explained but which are not designed to raise market awareness of Funds or IMAS provided by the OFI may not trigger restrictions. It depends on the contents of the speaker presentation. If it is not a marketing event of specific products or services or the OFI's brand but rather an informative or technical presentation no requirements will apply. Note that non-finance events or finance-related events which are purely seminars may be better defended. In any case, this general marketing will always raise the suspicions of the CNMV and will need to be carefully considered on a case-by-case basis. An OFI's attendance at a finance-related event in Spain is generally permissible and does not, by itself, trigger licensing or marketing restrictions, provided the attendee does not promote specific funds or investment services or distribute materials. However, each scenario will need to be carefully considered on a case-by-case basis.
(f) Are there any restrictions in relation to solely socialising with prospective investors in your jurisdiction?	Purely social interaction with prospective investors in Spain is not, by itself, prohibited. However, once the interaction veers into promoting Funds or investment services, or involves distributing materials, it can trigger Spanish licensing requirements. Separately, hospitality must comply with MiFID II inducements and conflicts standards, and Spain's anticorruption rules (especially for public investors).
(g) Are there any restrictions in relation to solely distributing business cards (paper or electronic)? Does the analysis depend on the type of investor that is targeted e.g. Professional Investor, Retail Investor etc. or whether the activity takes place remotely or at a Fly-In Meeting?	An electronic business card with offshore contact details would not be considered <i>per se</i> as active marketing, but unless made on a pure unsolicited basis it will prejudice any possibility of the OFI to rely on a reverse enquiry exemption. For paper business cards, if the OFI is duly authorised to render services on cross-border basis into Spain, no restrictions will apply. Otherwise, any marketing activity would be restricted. There may be context for situations where handing over business cards to prospects in Spain occurs. For example, where an OFI officer meets a client with a licensed entity or where such handing over is requested by an acquaintance but where no real active solicitation or marketing takes place.

Questions	Answers
	However, no handing over of business cards should be made where in the context or situation it can be interpreted as active marketing. This is a grey area and a conservative view of not handing over business cards is advised.
(h) Is it recommended or mandatory to include certain disclaimers/warnings in any general marketing materials presented/disseminated?	Please note that marketing materials that may be related to any product/service line would likely trigger marketing restrictions. We recommend to include the wording set out in Appendix 4.A to avoid licensing restrictions; however, please bear in mind that the marketing materials should be analysed case-by-case to determine whether or not there is a solicitation of clients. Although in general terms the marketing materials provided by the OFI about itself where not specifying any product or service offered by it will not be subject to the advertising regulations (Order EHA/1717/2010), to the extent that the marketing materials are provided by the OFI in Spain (e.g. at a Fly-In Meeting), targeting local customers, it may entail licence requirements.
8.7 [Intentionally left blank]	
8.8 Investment Advice	
Please refer to section 8 of the <i>European Framework Document</i>. (a) Is it permitted for an OFI to provide Investment Advice in relation to a Fund or Investment Management & Advisory Services to an investor in your jurisdiction and, if so, on what basis? In preparing your answer, please ensure that your analysis covers the following (or if these matters are not relevant to your jurisdiction, please explicitly state that in your response):	No, unless the OFI is duly licensed to render Investment Services into Spain as described in section 5(c) above as Investment Advice relating to financial instruments is an Investment Service. Please note that if the Investment Advice is rendered with respect to non-registered Closed-Ended and Open-Ended Funds, it may trigger registration requirements as already explained in this Memorandum.
(i) the impact (if any) if the provision of Investment Advice is being undertaken by, or on behalf of, an OFI benefiting from an EEA Passport (e.g. a MiFID II Investment Firm or a UCITS ManCo) compared with an OFI that does not.	Investment Advice relating to financial instruments is an investment service and, as such, can only be rendered in Spain by an Authorised Non-EU Entity duly licensed to provide Investment Management & Advisory Services in Spain or an EEA Passporting Entity according to section 5(c) above. If/when the necessary pre-requisites are met (e.g. necessary equivalence determinations are in place), it may also be possible in the future for a Third Country Passporting Entity to provide investment advice. At present no such equivalence determinations have been made.
(ii) the impact (if any) if the provision of Investment Advice is being undertaken by an AIFM authorised to perform Investment Advice as a non-	Please refer to section 4.5(a) above.

Questions	Answers
core service pursuant to Article 6(4) of the AIFMD.	
(iii) available exemptions which permit the provision of Investment Advice. If an exemption is available, please set out the criteria which must be satisfied in order to utilise it. Please comment on both formal “ black-letter law ” exemptions and accepted practice .	There are no applicable exemptions besides reverse enquiry explained in section 5 above.
(iv) the relevant criteria for determining whether an investor is in your jurisdiction for the purposes of determining whether the provision of Investment Advice is permitted (e.g. investor is incorporated, domiciled, has employees in your jurisdiction).	There are no specific criteria but it must be taken into account whether the investor has its domicile/residence in Spain.
(v) any sensitivities depending on whether the investor is a potential or an existing client or whether such investor solicited the Investment Advice or not.	No specific sensitivities depend on whether the investor is an existing or potential client of the OFI.
(b) Does the regulatory regime in your jurisdiction applicable to the marketing/provision of Investment Advice extend to advice in relation to portfolio construction and/or manager selection? If not, please could you briefly outline how the marketing/provision of advice in relation to portfolio construction/manager selection is regulated in your jurisdiction, if at all.	Under MiFID II (and thus, under the Spanish regime), “investment advice” means the provision of personal recommendations to a client, either upon its request or at the initiative of the investment firm, in respect of one or more transactions relating to financial instruments. With this definition in hand, it should be analysed on a case-by-case basis whether each particular advice falls within the definition. Without prejudice to this case-by-case analysis, we consider that advice on manager selection would not typically be related to financial instruments and should therefore fall outside the definition. This has been stated by ESMA on its Consultation Paper with reference number CESR/09-665 (although it is from 2009 and therefore prior to MiFID II, we consider this fully applicable to date): <i>41. Advice to become the client of a particular investment firm (e.g. a particular portfolio manager), or to use its services in a certain way, would need to relate to one or more specific financial instruments in order to be considered as investment advice under MiFID.</i>

Questions	Answers
	<i>42. Recital 60 of the MiFID Implementing Directive notes that advice given by a portfolio manager to a client to the effect that the client should give or alter a mandate to the portfolio manager that defines the limits of the portfolio manager's discretion should be considered a recommendation within the meaning of Article 19(4) of MiFID. This Recital makes clear that advice in relation to a portfolio management mandate is subject to the requirements on assessing suitability (although it is not necessarily a personal recommendation).</i> However, the same cannot be said for investment portfolio construction, as in this case there seems to be a strong possibility after a first analysis that it would fall within the definition of investment advice. Again, this shall be analysed on a case-by-case basis.
8.9 Arranging	
Please refer to section 8 of the European Framework Document. (a) Is it permitted for an OFI to provide Arranging services in relation to a Fund Investment Management & Advisory Services with an investor in your jurisdiction and, if so, on what basis?	No. Arranging is likely to amount to reception and transmission of orders relating to financial instruments which is an investment service. It cannot be provided by the OFI in Spain unless it is properly licensed to carry out such investment service into Spain as an EEA Passporting Entity or an Authorised Non-EU Entity holding a Spanish license to render Investment Services. If/when the necessary pre-requisites are met (e.g. necessary equivalence determinations are in place), it may also be possible in the future for a Third Country Passporting Entity to market/sell Investment Management & Advisory Services. At present no such equivalence determinations have been made.
In preparing your answer, please ensure that your analysis covers the following (or if these matters are not relevant to your jurisdiction, please explicitly state that in your response): (i) the impact (if any) if the Arranging is being undertaken by an AIFM authorised to perform reception and transmission of orders as a non-core service pursuant to Article 6(4) of the AIFMD.	Please refer to section 4.5(a) above.
(ii) the impact (if any) if the Arranging is being undertaken by, or on behalf of, an OFI benefiting from an EEA Passport (e.g. a MiFID II Investment Firm or a UCITS ManCo) compared with an OFI that does not.	An OFI benefiting from an EEA Passport will be able to carry out Arranging.

Questions	Answers
(iii) available exemptions which permit the provision of Arranging. If an exemption is available, please set out the criteria which must be satisfied in order to utilise it. Please comment on both formal “ black-letter law ” exemptions and accepted practice .	There are no applicable exemptions besides reverse enquiry explained in section 5 above.
(iv) the relevant criteria for determining whether an investor is in your jurisdiction for the purposes of determining whether the provision of Arranging is permitted (e.g. investor is incorporated, domiciled, has employees in your jurisdiction).	There are no specific criteria but it must be taken into account whether the investor has its domicile/residence in Spain.
(v) any sensitivities depending on whether the investor is a potential or an existing client or whether such investor solicited the Arranging or not.	No specific sensitivities depend on whether the investor is an existing or potential client of the OFI.
8.10 Subscription Documentation and Relationship Management	
Sections (a) to (c) below look at scenarios relating to the provision by an OFI to an investor of either: • Fund subscription documentation; or • contracts relating to the provision of Investment Management & Advisory Service(s). In relation to sections (a) to (c) below please can you briefly describe any relevant restrictions or considerations that apply or, if relevant, please cross-refer to other sections of the Memorandum. Are the below scenarios are permitted?	
(a) The OFI provides/sends: • Fund subscription documentation; or • a contract relating to the provision of Investment Management & Advisory Service(s)	

Questions	Answers
to a potential investor:	
(i) where the OFI and the investor are both in your jurisdiction (e.g. at a Fly-In Meeting); or	Position in relation to Funds (including UCITS Funds) This could amount to marketing activities and therefore licensing requirements are triggered. Please see 4.1(b) above in respect of AIFs and section 6 in respect of UCITS. Please note that Non-Passported UCITS Funds cannot be actively marketed in Spain. Position in relation to IMAS This could amount to marketing activities and therefore licensing requirements are triggered. Please see section 5(c) above.
(ii) where the OFI is outside your jurisdiction but the investor is in your jurisdiction (e.g. the OFI sends the documentation via email/post).	Position in relation to Funds (including UCITS Funds) Same licensing requirements as well as reverse enquiry exemptions explained above apply. Please see section 4.1(b) above in respect of AIFs and section 6 in respect of UCITS. Please note that Non-Passported UCITS Funds cannot be actively marketed in Spain. Please see section 5 in respect of the reverse enquiry exemption. Position in relation to IMAS Same licensing requirements as well as reverse enquiry exemptions explained above apply. Please see section 5(c) above.
(b) The: • Fund subscription documentation; or • a contract relating to the provision of Investment Management & Advisory Service(s) is signed:	
(i) where the relevant signatories for both parties are in your jurisdiction (e.g. at a Fly-In Meeting); or	Position in relation to Funds (including UCITS Funds) Same licensing requirements as well as reverse enquiry exemptions explained above apply. Please see section 4.1(b) above in respect of AIFs and section 6 in respect of UCITS. Please note that Non-Passported UCITS Funds cannot be actively marketed in Spain. Please see section 5 in respect of the reverse enquiry exemption. Position in relation to IMAS Same licensing requirements as well as reverse enquiry exemptions explained above apply. Please see section 5(c) above.

Questions	Answers
(ii) where the relevant signatories for the Fund or provider of the Investment Management & Advisory Service are outside your jurisdiction but the investor is in your jurisdiction (e.g. the signed documents are transmitted between the parties via email/fax/post/courier).	Position in relation to Funds (including UCITS Funds) Same Licensing requirements as well as reverse enquiry exemptions explained above apply. Please see section 4.1(b) above in respect of AIFs and section 6 in respect of UCITS. Please note that Non-Passported UCITS Funds cannot be actively marketed in Spain. Please see section 5 in respect of the reverse enquiry exemption. Position in relation to IMAS Same licensing requirements as well as reverse enquiry exemptions explained above apply. Please see section 5(c) above.
(c) Will the location where documentation is signed by either party as described in either section (b)(i) or (ii) above affect whether the contract is deemed “booked” in your jurisdiction?	No.
(d) This question 8.10(d) focuses on relationship management and/or investor relations activities, which are conducted between an OFI and an investor once such investor has invested in a Fund and/or engaged the OFI to provide an Investment Management & Advisory Service. Such activities would, for example, involve the OFI: • updating the investor on its existing investments; and/or • providing account statements, transaction reports or periodic reports to the investor. Please confirm whether an OFI would be permitted to conduct such relationship management/investor relations activities: • on a cross-border basis; or • at a Fly-In Meeting in your jurisdiction. Alternatively, please describe any relevant restrictions or considerations that apply, if relevant cross-referring to other sections of the Memorandum. (e) For the purposes of this question, please presume that the marketing/selling activities that underpin the relationship between the OFI and the investor were conducted pursuant to permitted means in your jurisdiction and/or were conducted in another	Relationship management and/or investor relations activities, which are conducted between an OFI with a Spanish existing client would not generally trigger regulatory licensing requirements to the extent the services or activities provided do not constitute marketing or provision of new investment services. Activities which consist of mere client services (e.g. updating investor on its existing investments, invoicing, providing account statements, transaction reports or periodic reports to investors, etc.) would not be problematic. The above conclusion would apply regardless the relationship management and/or investor relation activities are provided on a cross-border basis or at a Fly-In Meeting. Notwithstanding the aforementioned, please note that, as mentioned before, the marketing or provision of investment services would require a licence, including if these are provided to an existing client (and they are out of the scope of the existing relationship).

Questions	Answers
jurisdiction before the investor re-located to your jurisdiction. Please also presume that the relationship management/investor relations activities will not involve any further marketing/selling of other funds/services outside the scope of the existing relationship.	
8.11 Requests for Proposals (RFPs)	
This question 8.11 looks at the scenario where an OFI is asked to respond to a request for proposal , request for information or similar process (an RFP) from an investor in your jurisdiction.	
(a) Please could you outline whether there are any registration/notification/approval/licensing requirements which apply where an OFI responds to an RFP in respect of a Fund from an investor in your jurisdiction? If appropriate, please cross-refer to other sections of the Memorandum in your response.	As explained in section 5(a), passive marketing of a Fund is permitted and this situation should not trigger licensing requirements provided that it is self-directed, upon the client's sole inquiry, and the other Conditions for Permitted Reverse Enquiry explained in sections 4.2(e)(ii) and 5(c) are met. This applies for AIFs, whether open-ended or closed ended and Non-Passported UCITS Funds. If the Conditions for Permitted Reverse Enquiry are not met, the licensing requirements will be triggered and an OFI will either need to be an EEA Passporting Entity or an Authorised Non-EU Entity in order to respond to an RFP.
(b) Could the activity of responding to an RFP regarding a Fund fall within the scope of permitted "reverse-enquiry"/"reverse-solicitation" in your jurisdiction?	Yes, as long as the Conditions for Permitted Reverse Enquiry explained in sections 4.2(e)(ii) and 5(c) are met. This applies for AIFs, whether open-ended or closed ended and Non-Passported UCITS Funds.
(c) Please could you outline whether there are any registration/notification/approval/licensing requirements which apply where an OFI responds to an RFP in respect of an Investment Management & Advisory Service from an investor in your jurisdiction? If appropriate, please cross-refer to other sections of the Memorandum in your response.	An OFI should not be deemed to engage in the marketing or provision of restricted Investment Services by responding to an RFP, provided the Conditions for Permitted Reverse Enquiry explained in sections 4.2(e)(ii) and 5(c) are met. Please see section 5(d)(iv). If the Conditions for Permitted Reverse Enquiry are not met, the licensing requirements will be triggered and an OFI will either need to be an EEA Passporting Entity or an Authorised Non-EU Entity in order to respond to an RFP.
(d) Could the activity of responding to an RFP regarding an Investment Management & Advisory Service fall within the scope of permitted "reverse-enquiry"/"reverse-solicitation" in your jurisdiction?	Yes, as long as the Conditions for Permitted Reverse Enquiry explained in sections 4.2(e)(ii) and 5(c) are met.

Questions	Answers
8.12 Relocation of Investor	
(a) What restrictions, if any, might apply where an OFI has an investor that invested in a Fund and/or that received the OFI's Investment Management & Advisory Services while the investor was in another jurisdiction but that investor has now moved into your jurisdiction ?	The licensing and registration requirements would not be triggered where: - an investor makes an unsolicited approach to the OFI, as long as the Conditions for Permitted Reverse Enquiry are met as explained in sections 4.2(e)(ii) and 5(c)(iv) above; or - the OFI continues to service a specific Investment Management & Advisory Service or Fund to an investor in respect of its original investment relationship (which originated outside Spain) and strictly sticking to the scope of such original relationship. Otherwise, an OFI will trigger licensing and registration requirements set out in Section 10.
(b) Can the OFI continue to service that investor in respect of its original investment/relationship ?	Yes, provided it relates to the specific Investment Management & Advisory Service or Fund that was the subject of the original investment/relationship which originated outside Spain. The OFI could still service that existing investment but no further/new marketing activities would be permitted. Where the original investment/relationship has resulted from a reverse enquiry, as explained in section 5(d)(iii), once the unsolicited request has been received and the relationship has been established, any other subsequent act, while being strictly related to the original request, would also be considered unsolicited, so to continue to service the investor in respect of its original investment/relationship would not trigger licensing/registration requirements.
(c) If the OFI wished to conduct further marketing activities in respect of that Fund or Investment Management & Advisory Service with that investor, what considerations would apply? If appropriate, please cross-refer to other sections of the Memorandum in your response.	Further marketing activities cannot apply to activities outside the initial unsolicited relationship. Please see section 5(d)(iii). However, if it is the client who at its own initiative requests information on specific Investment Management & Advisory Services or Funds, the OFI can provide this strictly sticking to such unsolicited request. Note that if the initial scenario cannot be considered permitted “reverse-enquiry/reverse-solicitation”, to provide any further marketing by an OFI will trigger the licensing and registration requirements set out in section 10 below.
(d) Does the analysis depend on the type of investor that is targeted e.g. Professional Investor, Retail Investor etc?	No. Please see section 5(a)(vii).

9. PROSPECTUS REGULATION (PR3)

Questions	Answers
Please refer to section 3.7 of the <i>European Framework Document</i>. The purpose of this section is to identify the particular issues that may arise in respect of AIFs which fall into the scope of PR3. (a) What are the relevant criteria for determining whether an AIF might fall within the scope of PR3 in your jurisdiction	The criteria would be whether Funds' interests are transferable securities. Transferable securities in Spain are defined in article 2 of the SMA. The following will be considered to be transferable securities: (a) Shares of companies and transferable securities equivalent to shares, and any other type of transferable security giving entitlement to acquire shares or securities equivalent to shares through conversion or exercise of the rights inherent to them. (b) Covered bonds (cédulas) and bonds of internationalization. (c) Bonds, debentures and similar securities representing part of a debt claim, including those which are convertible or exchangeable. (d) Mortgage covered bonds, mortgage bonds and mortgage participations. (e) Asset-backed securities. (f) Units and shares in UCITS. (g) Money market instruments, i.e. categories of instruments which are normally traded on the money market, such as treasury bills, certificates of deposit and commercial paper, except those issued on a unique basis and excluding instruments of payment deriving from preceding commercial transactions that do not involve the capture of repayable funds. (h) Preference shares. (i) Territorial covered bonds. (j) Warrants and any other derivative transferable security giving the right to acquire or sell any other transferable security or giving the right to a cash settlement determined by reference to transferable securities, currencies, interest rates or yields, commodities, credit risk or other indices or measures. (k) Any others which the law or regulations define as a transferable security. This definition would include units/shares in Closed-Ended Funds in Spain.
(b) Have the exemptions from the requirement to publish a fully PR3 compliant prospectus (summarised in section 3.7 of the <i>European Framework Document</i>) been subject to any gold-plating in your	The SMA has been updated to reflect the Prospectus Regulation. Without prejudice to Article 1 (4) and (5) of the Prospectus Regulation, securities may only be offered to the public or admitted to

Questions	Answers
jurisdiction? In particular, please could you set out: (i) the amount specified in your jurisdiction with respect to the Value of Offering Exemption; (ii) whether any additional national requirements have been introduced in your jurisdiction with respect to offerings which are less than the amount in (i); and (iii) any other gold-plating?	trading on a regulated market after prior publication of a prospectus in accordance with that Regulation. The SMA contemplates an exception. The prospectus referred to in the preceding paragraph shall not be required in the case of offers to the public or admissions to trading on regulated markets of promissory notes with a maturity of less than 365 days. According to the SMA, the term “qualified investors” in Spain is aligned with the term “PD Qualified Investor” as discussed in the <i>European Framework Document</i>. In this context, the following shall be deemed to be qualified investors: (a) Financial institutions and other legal persons that need to be authorised or regulated by States, of the European Union or otherwise, in order to operate in the financial markets. (b) National and regional governments, public bodies that manage public debt, central banks, international and supranational institutions such as the World Bank, the International Monetary Fund, the European Central Bank, the European Investment Bank and other similar organisations. (c) Entrepreneurs that individually meet at least two of the following criteria: 1. Their total assets amount to EUR 20 million or more. 2. Their annual revenues amount to EUR 40 million or more. 3. Their own funds amount to EUR 2 million or more. (d) Institutional investors not included under item (a) above that invest habitually in securities and other financial instruments. In particular, venture capital firms and their management companies shall be included in this category. (e) Other clients or entities that request it beforehand and expressly waive treatment as retail clients. (f) SMEs with corporate domicile in the Spanish territory that have expressly requested to be treated as a qualified investor. The threshold in Spain with respect to the Value of Offering Exemption is where the total value of the offer in the EEA is less than EUR 8,000,000, which limit is calculated over a period of 12 months. However, for credit institutions, the Value of Offering Exemption is where the aggregate amount of each such offer in the Union is less than EUR 5 million, which limit is also calculated over a period of 12 months. No additional requirements in relation to this exemption have been put

Questions	Answers
	in place. Please refer to Section (3)(d) above in relation to forthcoming amendments to this exemption. Passporting of Third Country prospectuses PR3 allows a prospectus approved by the competent authority of one EEA Member State to be passported into other EEA Member States. For further information, see section 3.7 of the EFD. Under PR3 as amended by the PR3 Amendment Regulation (see section 3(d) for further details), a third country issuer can offer securities to the public in an EEA Member State after publishing a prospectus approved in accordance with the laws of a third country (a Third Country Prospectus) where the following conditions are met: • the European Commission has adopted an implementing act determining that the third country framework ensures that the Third Country Prospectus meets requirements equivalent to PR3 (as amended); • the third country issuer has filed the prospectus with its home Member State; • the third country issuer provides written confirmation that the prospectus has been approved by a third country supervisory authority and provides the authority's contact details; • cooperation arrangements exist between the competent authority of the home Member State/ESMA and the third country supervisory authority with respect to the exchange of information and enforcement of obligations; • the prospectus meets certain language requirements; and • relevant advertisements disseminated in the EU by the third country issuer comply with certain requirements (e.g. are not inaccurate/misleading and are consistent with information in the prospectus). These new rules on equivalence apply from 4 December 2024. The European Commission has not yet adopted any implementing acts determining that a third country framework ensures equivalence. Where the above conditions are met, the Third Country Prospectus can be passported into other EU Member States in the same way as an approved prospectus under Article 25 of PR3 as amended.

Questions	Answers
	The PR3 Amendment Regulation makes certain other changes to PR3 including changes to certain prospectus exemptions and the rules governing the sequence, format and content of information to be included in a prospectus.
(c) For AIFs which fall into the scope of PR3, do the exemptions in PR3 provide the basis for the private placement of such AIFs into your jurisdiction or is it necessary to separately consider the exemptions available (if any) under your jurisdiction's private placement regime as discussed in section 7.1(a) above?	PR3 is directly applicable in Spain. Please refer to <i>European Framework Document</i> section 3.7.

10. LICENCE

Questions	Answers
If a licence is required in order to be able to engage in marketing/selling a Fund or Investment Management & Advisory Services, please explain in outline only: (a) The type of licence that would be required;	MiFID II Passport, CRD Passport, UCITS Passport and AIFMD Managing Passport. If the OFI is not an investment firm authorised in another Member State of the European Union and intends to market/sell a Fund or Investment Management & Advisory Services by setting up a branch in Spain, it must obtain an authorisation to render those services (e.g. by establishing a branch). If it intends to render services on a cross-border basis without a Spanish branch, it must be authorised by the CNMV. If the OFI is an investment firm authorised in another Member State of the European Union, it may provide investment services or restricted ancillary services in Spain without obtaining a separate licence in Spain either by opening a branch or under the free provision of services. The authorisation, by-laws and legal regime of the entity must allow it to perform the intended activities. In both cases, the SMA sets out the obligation to be registered with the CNMV before marketing investment services or restricted ancillary services either as an EEA Passporting Entity or with a Spanish licence to provide investment services. As set out in section 10(c), the authorisation shall be declared to have lapsed if, within a period of one year from the day following the date of notice of the administrative resolution granting authorisation, the OFI has not applied for registration in the corresponding register of the CNMV.
(b) What, if any, presence in your jurisdiction the OFI would need to establish in order to obtain the relevant licence, including:	An EU OFI may act by means of a branch or on a cross-border basis if it benefits from MiFID II Passport, CRD Passport, UCITS Passport or AIFMD Managing Passport.

Questions	Answers
	A non-EU OFI may act with a licence from the CNMV on a branch or cross-border basis. However, following Article 39(1) of MiFID II Directive, Article 41bis.2 of RD 813/2023 states that Investment Services provided without a branch in Spain by non-EU OFIs shall be aimed at original Professional Clients and Eligible Counterparties referred to in the SMA, since the provision of services to Retail Investors or clients who opt up for Professional Investor referred to in Article 195 of the SMA shall be made by means of a branch. A non-EU OFI may be authorised to act on a cross-border basis in Spain, provided that the following conditions are met as indicated by the CNMV in its “<i>Communication on the provision in Spain of investment services by third-country firms without establishing a branch</i>”: • there must be reciprocity in the third-country firm’s country of origin, allowing Spanish credit institutions and investment firms to provide investment services under similar conditions; and • provision of investment services must be to: ○ eligible counterparties; or ○ per se professional clients (provided that the services are provided to fewer than 20 per se professional clients or the income from the provision of these services to per se professional clients is under EUR 2 million). The CNMV may also grant permission for a third-country firm to provide investment services on a cross-border basis where deemed appropriate in exceptional circumstances. In any event, a third-country firm providing investment services in Spain on a cross-border basis will be required to obtain prior authorisation.
(i) any specific legal form requirements (e.g. a local company or a branch);	The establishment of a branch is required where a non-EU OFI intends to provide investment and ancillary services in Spain to retail and opt-up professional clients (i.e. clients who have requested to be treated as professional clients) pursuant to Article 195 of the SMA. However, on the basis of the volume of activity, the complexity of the products or services or for reasons of general interest, the CNMV may also require a third-country entity to establish a branch even if it intends to trade only with eligible counterparties and professional clients per se (as provided in Article 194 of the SMA).
(ii) any requirement to list/register the local presence in a commercial registry or other local register;	In case of establishing a Spanish local company or a branch, this company or branch has to be registered: (i) in the Spanish commercial registry; and (ii) in the CNMV register or the Bank of Spain register (in case it is a credit institution).

Questions	Answers
(iii) any limitations regarding ownership of the local presence;	It is required that the shareholders, due to the need to ensure a sound and prudent local presence, are suitable.
(iv) any substance requirements that apply to the local presence;	Investment Firms In general terms, the RD 813/2023 sets out the following key requirements for a local company to obtain an authorisation from the CNMV for marketing or provision of the Funds or Investment Management & Advisory Services: (i) the exclusive corporate purpose is to carry out investment services; (ii) the local Spanish company is a limited liability company called “<i>sociedad anónima</i> (S.A.)” and its shares are nominative; (iii) a minimum share capital paid in cash; (iv) a board of directors with a minimum of three members; (v) the Chairmen, Vice-Chairmen, Board Members or Directors, General Directors and those similar to them should be of recognised honour, knowledge and experience in order to carry out their duties properly and be able to exercise good governance; (vi) an internal code of conduct; and (vii) a business plan that shows a financial viability in the future. Other requirements may also apply. In case of establishing a branch the requirements are similar, and therefore will entail capital allocation, organisational and human resources similar to incorporating a Spanish local company. Credit Institutions In general terms, the RD 84/2015 sets out the following requirements for a local company to obtain authorisation from the Bank of Spain for marketing or provision of the Funds or Investment Management & Advisory Services: (i) the local Spanish company is a limited liability company called S.A; (ii) the local Spanish company has its registered offices and effective management and administration in Spain; (iii) the exclusive corporate purpose is to carry out activities of a credit institution; (iv) a minimum share capital paid in cash; (v) shareholders, managers or members owning qualifying holdings must be deemed suitable; (vi) a board of directors with a minimum of five members; (vii) an appropriate administrative and accounting structures, and adequate internal control procedures; and (viii) appropriate procedures and bodies for internal control and communication so as to prevent money laundering. In case of establishing a branch the requirements are similar, and therefore will entail capital allocation, organisational and human resources similar to incorporating a Spanish local company. UCITS Management Companies The opening in Spain of branches of management companies authorised in other Member States of the European Union will not require prior authorisation. However, such authorisation will be conditional upon the CNMV receiving a communication from the competent authority of the

Questions	Answers
	management company's home Member State, containing the following information: (a) the Member State within the territory of which the branch is proposed to be established; (b) the operating programme; (c) the address in the host Member State from which documents may be obtained; and (d) the names of the managers responsible for the branch. Once the CNMV has received the notification, it will notify the management company of its receipt and the management company must register the branch in the Companies Register and in the corresponding register of the CNMV, informing the latter of the date of the effective commencement of its activities. AIFMs Please note that the marketing or provision of Funds can also be carried out by AIFMs, which can establish a branch in Spain. The opening in Spain of AIFMs authorised in other Member States of the European Union will not require prior authorisation. However, (i) the management company shall be authorised in its home Member State to perform the activities it intends to provide in Spain by means of a branch, and (ii) the initiation of the activities by the branch in Spain will be conditional on the reception by the CNMV of a communication from the competent authority of the management company's home Member State. Said communication shall include (a) the Member State within the territory of which the branch is proposed to be established; (b) the operating programme; (c) a description of the organisational structure of the branch; (d) the address in the host Member State from which documents may be obtained; and (e) the contact details of the managers responsible for the branch. Once the CNMV has received the notification, it will notify the management company of its receipt and the management company must register the branch in the Companies Register and in the corresponding register of the CNMV, informing the latter of the date of the effective commencement of its activities.
(v) any requirements regarding locally employed staff (e.g. minimum number of directors and/or employees, any qualification or notification requirements that apply in respect of such staff); and	Please see section (iv) above.
(vi) indication of time period and approximate costs to set up/establish local presence;	The average time for setting up a branch and costs of setting up a local company is around two (2) months (six (6) months for an OFI).

Questions	Answers
	Regarding costs, total expenses depend much on the complexity of the project and the type of entity. In any case, the CNMV publishes its fees every year (which include registration fees) and additional costs are likely to be incurred (attorneys' fees, notarial fees, sworn translation, etc.).
(c) An outline of the procedure involved in obtaining such licence including an indication of the time it would ordinarily take to obtain such licence; and	MiFID II Passport, CRD Passport, UCITS Passport and AIFMD Managing Passport requirements will apply. <u>In the case of a non-EU OFI:</u> Investment Firms 1. Acting through a branch in Spain: • The procedure is <i>mutatis mutandi</i> the same as the one required to obtain a licence for a Spanish company, so it will entail capital allocation, organisational and human resources similar to incorporating a Spanish local firm. • The application for authorisation must be filed with the CNMV and accompanied by the by-laws plus a schedule of activities specifying which activities the OFI plans to engage in and to what extent, indicating the OFI's organisation and resources and other documentation set out in RD 813/2023. • The CNMV resolution must state the reasons and must be notified within six months from the date of application or from the date on which all the obligatory documentation was provided. If the application is not resolved upon in the aforementioned period, it shall be deemed to have been rejected. • The authorisation may be rejected for prudential reasons, for the home Member State failing to grant or ensure the compliance with the disciplinary rules in the Spanish ordinance securities markets. • The authorisation must state the class of investment firm in question and the specific investment services and ancillary services that are authorised. 2. Acting on a cross-border basis: The OFI must previously request the CNMV to provide it with the relevant authorisation informing the CNMV about the activities to be carried out. The CNMV may request additional information. In 1, once authorised, prior to commence operations, the OFI must be registered with the Mercantile Registry and subsequently . In 2, once authorised, the OFI must be registered with the appropriate Registry of the CNMV.

Questions	Answers
	The authorisation shall be declared to have lapsed if, within a period of one year from the day following the date of notice of the administrative resolution granting authorisation, the OFI has not applied for registration in the corresponding register of the CNMV. Credit Institutions OFI being credit institutions authorised to provide the Services can create a branch in Spain, but such a project requires a huge capital allocation to the branch. <u>In the case of an EU OFI:</u> 1. Acting through a branch in Spain: • Prior authorisation shall not be required for the establishment in Spain of branches of investment firms or credit institutions authorised in other Member States of the European Union. However, such establishment shall be conditional upon the CNMV receiving a communication from the competent authority of the investment firm's home Member State. • Upon receipt of the communication, the CNMV shall notify the OFI of its receipt, and the OFI must be registered in the Mercantile Registry and in the corresponding Registry of the CNMV, notifying to the CNMV the date of effective commencement of its activities. • If the CNMV does not issue that communication, the branch may be established, and it may be registered with the Mercantile Register and the CNMV, and it may commence operations two months after the date of notification by the competent authority of the home Member State. • If the branch is not registered in the corresponding Registry of the CNMV within one year from the notification to the investment firm of receipt of the communication from the supervisory authority, the proceeding shall be deemed to have lapsed. 2. Acting on a cross-border basis via EU passport: The performance in Spain for the first time of investment activities or services and ancillary services under the free provision of services by investment firms or credit institutions authorised in another Member State of the European Union may commence once the CNMV has received a communication from the competent authority of the firm's home Member State. Costs and timeframes: Regarding costs, total expenses depend much on the complexity of the project and the type of entity. In any case, the CNMV publishes its fees every year (which include registration fees) and additional

Questions	Answers
	costs are likely to be incurred (attorneys' fees, notarial fees, etc). The timeframe will vary depending on the type of entity and type of services that will be performed in Spain.
(d) Please specify the approximate costs associated with obtaining such licence (please include initial application cost together with any ongoing fees).	Please note that it is very difficult to provide a fee estimate due to the fact that this fee estimate shall comprise CNMV fees (set out in Section 4 of Law 16/2014 and amended by the Eighth Final Provision of Law 16/2014 of 30 September, which regulates the fees of the National Securities Market Commission) and notarial and lawyer's fees (which are more difficult to calculate). Having said that, the approximate costs associated with obtaining such licence will be EUR 35,000 .

11. PENALTIES/SANCTIONS

Questions	Answers
(a) Is it the competent regulator that enforces the applicable laws and/or another body (e.g. the courts)?	Yes. The CNMV enforces the applicable laws.
(b) Do the possible legal consequences of a breach of applicable laws in relation to the cross-border marketing and sale of Funds and Investment Management & Advisory Services into your jurisdiction include:	
(i) criminal sanctions;	Generally speaking, administrative sanctions would be imposed. The breach of authorisation and registration requirements to render financial services does not constitute per se a criminal offence under the Spanish Criminal Code (<i>Código Penal</i>).
(ii) other sanctions (e.g. fines, loss of licence, public censure);	The following administrative sanctions would be imposed: (A) Rendering regulated investment services without obtaining prior authorisation and registration: It will be deemed a very serious breach of securities market regulations. In such case the offender shall have to pay a fine of up to the highest of the following amounts: (a) five times the gross profit (i.e. the offender's revenues from the reserved activity) obtained as a result of the acts or omissions comprising the infringement; (b) five per cent of the infringing firm's own funds; (c) five per cent of the total funds, owned by the firm or third parties, that were used in the infringement; (d) ten per cent of the total annual turnover of the offending entity, according to the latest available accounts approved by the administrative body; or (e) EUR 5,000,000 and the fine may not be less than EUR 600,000. In addition to the penalty imposed on the offender for very serious infringements, those holding directorships or executive positions therein who are responsible for the infringement will be sanctioned with a fine of up to EUR 400,000. Additionally, one or more of the following penalties may also be imposed: (a) suspension of the offender from directorships or executive posts in the firm for a period not longer than three years;

	(b) removal and disqualification of the offender from directorships or executive posts in the same firm for a period not longer than five years; and (c) removal and disqualification of the offender from directorships or executive posts in any investment firm and in credit institutions for a period not longer than ten years. In any case, sanctions imposed shall be published in the Official State Gazette. (B) The public offering of units/shares/interests in AIFs without the prior registration requirements: It will be considered a very serious infringement under Law 35/2003 for Open-Ended AIFs and Law 22/2014 for Closed-Ended AIFs. For Open-Ended Funds, the Law 35/2003 sets out the following sanctions: (i) a fine of the following amounts: (a) between two and five times the gross profit (i.e. the offender's revenues from the reserved activity) obtained as a result of the acts or omissions comprising the infringement; (b) between 10 percent and 20 percent of the legal person's total annual turnover according to the most recent accounts available approved by the management or governing body, or a lump sum, between EUR 5,000,000 and 6,000,000; (ii) exclusion of the official registry no under than two years nor above five years; (iii) revocation of the authorisation or prohibition to operate in the Spanish market; (iv) suspension or restriction of the type or volume of transactions carried out by the entity for no more than five years; (v) mandatory substitution of the depositary of the AIF; and (vi) public reprimand in the Official State Gazette. In addition to the penalty imposed on the offender for very serious infringements, those holding directorships or executive positions therein who are responsible for the infringement may also be sanctioned. (C) Breaches of the obligations or prohibitions provided for in the Prospectus Regulation: It will be considered a very serious infringement under the SMA. The fine to be imposed shall be up to the higher of the following amounts: (a) three times the profits made or losses avoided as a result of the infringement, if such profits or losses can be determined; or (b) in the case of a legal person, EUR 7,000,000, or 5 per cent of its total turnover during the preceding financial year, according to the latest available financial statements approved by the management body.
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(iii) civil claims;	Regarding the civil field, a client of the investment service may, for instance, give rise to a claim for damages against the OFI, as well as for the possible unlawful gain obtained. Courts would be competent in connection with claims by affected parties, and not the CNMV.
(iv) the transaction to which the activity relates becoming void or voidable (and if voidable, at whose instigation)?	Transactions should not be considered void as there are other sanctions to be imposed by law on the breach of the SMA and Law 35/2003 in accordance with Article 6.3 of the Spanish Civil Code.
Please provide details of maximum penalties (e.g. fines). Please state whether these sanctions are applicable to the OFI and/or to directors, officers or employees of the OFI and/or both.	Please see Section (ii) above.
(c) Please provide the 5 most recent examples (from published reports) of the competent regulator or courts taking action against an OFI in respect of a breach of applicable laws in relation to the cross-border marketing or sale/provision of Funds and Investment Management & Advisory Services to investors in your jurisdiction.	The records of sanctions imposed by the CNMV are deleted after 5 years. Thus, we only have access to the 3 most recent penalties: • Resolution of 3 November 2021 of the CNMV publishing the sanctions for a very serious infringement imposed on HOUSERS GLOBAL PROPERTIES, PFP, S.L., and its directors for carrying out investment services without a licence. The sanction imposed was EUR 130,000 on the company. • Resolution of 21 January 2015 of the CNMV publishing the sanctions for a very serious infringement imposed on Dracon Partners Eafi, S.L., and its directors for carrying out investment services without a licence. The sanction imposed was EUR 150,000 on the companies and EUR 30,000 and EUR 75,000 on each of the directors. • Resolution of 13 March 2018 of the CNMV publishing the sanctions for a very serious infringement imposed on Gestión de Patrimonios Mobiliarios, A.V., S.A. for carrying out investment services without a licence. The sanction imposed was EUR €200,000 on the company. In addition, although not directly relevant to OFIs, we note that, by Resolution 3 November 2025, the CNMV published a sanction against Twitter International Unlimited Company for a very serious, continued infringement of its duty to assist the CNMV. Specifically, Twitter failed to verify: (i) whether “Quantum AI” was authorised by the CNMV to provide investment services, and (ii) whether “Quantum AI” appeared on the CNMV’s or foreign supervisors’ warning lists. The sanction imposed was EUR 5,000,000 on the company.
(d) Please comment on:	The CNMV has been active in imposing sanctions during the past years.

(i) the attitude of the regulator, courts or other body responsible for enforcement of the applicable laws; and (ii) any accepted or tolerated market practice	
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APPENDIX 1**DISCLAIMERS: OPEN-ENDED FUND****A: WRITTEN DISCLAIMERS - PPR**

Where the AIF has **not** been registered for marketing/selling to the public in Spain and the OFI is relying on an exemption, the following applies:

Neither [name of the Fund] the Fund [nor any of the sub-funds of the Fund] nor any of the shares or units in the Fund or its sub-funds can be offered or marketed in any jurisdiction where such offer or marketing would not be permitted without a licence or where registration requirements are triggered. Neither the Fund [nor any of the sub-funds of the Fund] nor any of the shares or units in the Fund [or its subfunds] have been registered with the Spanish Securities Market Commission (Comisión Nacional del Mercado de Valores or CNMV) for their public marketing in Spain in accordance with the requirements of Spanish laws and regulations. Additionally, neither the Fund [nor any of the sub-funds of the Fund] nor any of the shares or units in the Fund are intended to be publicly marketed into Spain. Any person who is in possession of this [document] is hereby notified, and acknowledges and accepts, that no action has been or will be taken in order to register the Fund with the CNMV. Further, any person who is in possession of this [document] expressly undertakes not to take any action or carry out any activity, either directly or indirectly, which may be considered as a public offer of the Fund under the applicable Spanish laws and regulations.

Where the AIF is registered for marketing/selling in Spain via A36/A42:

[Name of the Fund] the Fund is marketed to [professional investors] only.

The information contained herein may be modified from time to time. Said modifications will be made public in the legally established manner and may, where appropriate, grant the investor the corresponding right of separation. The registration of the [name of the Fund] the Fund by the CNMV will not imply a recommendation to subscribe to the shares referred to in it, nor any pronouncement on the solvency of the fund or the profitability or quality of the units offered.

Disclaimer to be added if only one or some compartments of an AIF have been approved for marketing:

Only the following [sub-funds] of the [fund] are [approved] for marketing in Spain to investors:

[list name of registered [sub-funds]]

Only units/shares of the above mentioned [sub-funds] are allowed to be marketed in Spain to investors.

Wording to be used when responding to a reverse enquiry:

There is no recommended or required form of wording. The general disclaimer set out above (for AIFs that have not been registered for marketing/selling to the public in Spain) can be used. In addition, the OFI should expressly state if the marketing is a result of the exclusive initiative of the Client.

B: ORAL DISCLAIMERS – PPR

N/A

C: DISCLAIMERS – RETAIL INVESTORS

For Open-Ended Funds, Article 18 of Law 35/2003 sets out that all publicity that includes an invitation to buy shares or units of an Open-Ended Fund must set out the existence of the relevant prospectus and the KID as well as the place and way that the public may obtain or access them. See the wording below.

"[Name of the AIF Fund] is registered with the Securities Market Commission under official registration number [Include relevant registration number]"

"The Prospectus and the [Key Information Document/Simplified Prospectus], the annual accounts and interim reports and the rest of the relevant documentation of the fund may be obtained in the offices of the distributors of the fund. Investors may obtain a complete list of such distributors on the Securities Market Commission website (www.cnmv.es)"

Disclaimer to be added if only one or some compartments of an AIF have been approved for marketing:

Only the following [sub-funds] of the [fund] are [approved] for marketing in Spain to investors:

[list name of registered [sub-funds]]

Only units/shares of the above mentioned [sub-funds] are allowed to be marketed in Spain to investors.

D: DISCLAIMERS – AIFMD MARKETING PASSPORT

It is mandatory to include the registration number of the passported AIF granted by the CNMV upon registration as well as a reference to the places where the relevant documentation of the passported AIF may be obtained. Suggested wording is as follows:

"[Name of the AIF Fund] is registered with the Securities Market Commission under official registration number [Include relevant registration number]"

"The Prospectus and the annual accounts and interim reports and the rest of the relevant documentation of the fund may be obtained in the offices of the distributors of the fund. Investors may obtain a complete list of such distributors on the Securities Market Commission website (www.cnmv.es)"

Disclaimer to be added if only one or some compartments of an AIF have been notified for marketing:

Only the following [sub-funds] of the [fund] are [notified] for marketing in Spain to investors:

[list name of notified [sub-funds]]

Only units/shares of the above mentioned [sub-funds] are allowed to be marketed in Spain to investors.

E: DISCLAIMERS – UCITS MARKETING PASSPORT

It is mandatory to include the registration number of the UCITS Funds granted by the CNMV upon registration as well as a reference to the places where the relevant documentation of the UCITS Funds may be obtained. Suggested wording could be in the lines set out below.

"[Name of the UCITS Fund] is registered with the Securities Market Commission (CNMV) under official registration number [Include relevant registration number]."

The Prospectus and the [Key Information Document/Simplified Prospectus], the annual accounts and interim reports and the rest of the relevant documentation of the fund may be obtained in the offices of the distributors of the fund. Investors may obtain a complete list of such distributors on the Securities Market Commission website (www.cnmv.es).

This document is intended for informational purposes and in no case constitutes a contractual element, nor a recommendation, nor personalized advice, nor offer, nor solicitation. It is recommended to consult the KID (Key Investor Information Document) before making any decision to invest, subscribe or buy units or divestment and the countries in which the product is registered for marketing in [relevant website] or through authorized marketers in your country of residence. It has not been verified that the data contained in this document meet the marketing requirements of all countries of sale since it is only an information document and not a marketing document of the product. This product may not be marketed to U.S. persons or residents of the United States. For any information regarding the product you can contact [manager identification address], a management company of collective investment institutions registered with the Securities Market Commission (CNMV) under [number]. The Depositary of the funds is [relevant information regarding the depositary]. Investment in investment funds or other financial products indicated herein may be subject to investment risks: market risk, credit risk, issuer and counterparty, liquidity risks, currency risks and, where appropriate, emerging market risks. Additionally, if the funds materialize their investments in hedge funds, or in real estate, commodities or private equity assets or funds, they may be subject to the valuation and operational risks inherent in these assets and markets as well as to risks of fraud or those derived from investing in unregulated or unsupervised markets or in unlisted assets. Past returns are not indicative of future results. Returns have been calculated based on net asset value, after commissions and annualized for periods of more than one year. Any mention of taxation should be understood to depend on the personal circumstances of each investor and may vary in the future. The accounting or market information included in this file has been compiled from sources that [manager name] considers reliable, although it has not confirmed or verified its accuracy or that it is complete. [Manager name] does not assume any responsibility for the use of the information contained in this document.

Past performance is not necessarily indicative of future performance."

Disclaimer to be added if only one or some compartments of a UCITS have been notified for marketing:

Only the following [sub-funds] of the [fund] are [notified] for marketing in Spain to investors:

[list name of notified [sub-funds]]

Only units/shares of the above mentioned [sub-funds] are allowed to be marketed in Spain to investors.

F: DISCLAIMERS – MARKETING PASSPORTS AND MUTUAL RECOGNITION SCHEMES

N/A

G: DISCLAIMER - PRE-MARKETING

The rubrics on the PPM, offering documents and prospectus (in draft form) should clearly state: (a) that they do not constitute an offer or an invitation to subscribe for units or shares of AIF, and (b) that the information contained therein is not reliable because it is incomplete and may be subject to changes.

Spain specific disclaimer:

This document relates to a product which is still in development and is subject to change at any time. This document and the information contained herein does not constitute and is not intended to constitute an offer of securities and accordingly should not be construed as such. This document provides a high level summary only and does not define the terms and conditions relating to the vehicle which will be included in the definitive offering document and other materials and agreements for the vehicle. This document will not constitute a valid form for the subscription or acquisition of units/shares. No legally binding terms are created herein or shall be created until definitive documentation is executed and delivered in accordance with any applicable law. As the vehicle is not yet established, the vehicle has not been notified, registered or approved in accordance with local law and/or regulations implementing AIFMD. once the vehicle is established and preliminary terms are agreed, the vehicle intends to be fully compliant with the European Union Alternative Investment Fund Managers Directive (directive (2011/61/EU) (the “AIFMD”) for marketing in member states of the eu or eea, as well as considering relevant provisions of Spanish act 22/2014, of November 12 to this regard. this document is for the use of the named addressee only and should not be given, forwarded or shown to any other person (other than employees, agents or consultants in connection with the addressee’s consideration thereof).

APPENDIX 2

DISCLAIMERS: CLOSED-ENDED FUND

A: WRITTEN DISCLAIMERS - PPR

Where the AIF has **not** been registered for marketing/selling to the public in Spain the following applies:

Neither [name of the Fund] the Fund [nor any of the sub-funds of the Fund] nor any of the shares or units in the Fund or its subfunds can be offered or marketed in any jurisdiction where such offer or marketing would not be permitted without a licence or where registration requirements are triggered. Neither the Fund [nor any of the sub-funds of the Fund] nor any of the shares or units in the Fund [or its subfunds] have been registered with the Spanish Securities Market Commission (Comisión Nacional del Mercado de Valores or CNMV) for their public marketing in Spain in accordance with the requirements of Spanish laws and regulations. Additionally, neither the Fund [nor any of the sub-funds of the Fund] nor any of the shares or units in the Fund are intended to be publicly marketed into Spain. Any person who is in possession of this [document] is hereby notified, and acknowledges and accepts, that no action has been or will be taken in order to register the Fund with the CNMV. Further, any person who is in possession of this [document] expressly undertakes not to take any action or carry out any activity, either directly or indirectly, which may be considered as a public offer of the Fund under the applicable Spanish laws and regulations. Accordingly, the shares or units in the Fund may not be offered or distributed, and neither this [document] nor any offering material relating to the units or shares in the Fund may be distributed or made available in whole or in part, either directly or indirectly, in the Kingdom of Spain unless the requirements set out in Section 36 of Law 6/2023 of March 17 on Securities Markets and Investment Services. Such requirements are the following:

- a) An offer of securities exclusively directed to qualified investors.*
- b) An offer of securities directed to less than 150 natural or legal persons of a Member State, without including qualified investors.*
- c) An offer of securities directed to investors who acquire securities for a minimum of 100,000 euros per investor, for each separate offer.*
- d) An offer of securities the unit nominal value of which is at least 100,000 euros.*

Where the AIF is registered for marketing/selling in Spain via A36/A42:

[Name of the Fund] the Fund is marketed to [professional investors].

The information contained herein may be modified from time to time. Said modifications will be made public in the legally established manner and may, where appropriate, grant the investor the corresponding right of separation. The registration of the [name of the Fund] the Fund by the CNMV will not imply a recommendation to subscribe to the shares referred to in it, nor any pronouncement on the solvency of the fund or the profitability or quality of the units offered.

Disclaimer to be added if only one or some compartments of an AIF have been approved for marketing:

Only the following [sub-funds] of the [fund] are [approved] for marketing in Spain to investors:

[list name of registered [sub-funds]]

Only units/shares of the above mentioned [sub-funds] are allowed to be marketed in Spain to investors.

Wording to be used when responding to a reverse enquiry:

There is no recommended or required form of wording. The general disclaimer set out above (for AIFs that have not been registered for marketing/selling to the public in Spain) can be used. In addition, the OFI should expressly state if the marketing is a result of the exclusive initiative of the Client.

B: ORAL DISCLAIMERS - PPR

N/A

C: DISCLAIMERS – RETAIL INVESTORS

See Appendix 1.C for wording that is recommended to be included where Closed-Ended Funds will be approved for marketing to the public.

Further, where a Closed-Ended Fund is being marketed/sold to Retail Investors without an approved prospectus it may be appropriate to include wording clarifying the basis such as the following (where this applies to the particular fact pattern):

Please note that the issuance of units of [Name of the AIF Fund] is exempt from the requirement to publish a prospectus in accordance with Article 1.4(b) of Regulation (EU) 2017/1129 of the European Parliament and of the Council of 14 June 2017, and Article 36 of Law 6/2023 of 17 March, as it constitutes an offer [of securities addressed to fewer than 150 natural or legal persons, other than qualified investors / an offer of securities whose denomination per unit amounts to at least EUR 100,000]. For any information regarding the product you can contact [manager identification address]. The Depositary of the funds is [relevant information regarding the depositary]. Investment in investment funds or other financial products indicated herein may be subject to investment risks: market risk, credit risk, issuer and counterparty, liquidity risks, currency risks and, where appropriate, emerging market risks. Additionally, if the funds materialize their investments in hedge funds, or in real estate, commodities or private equity assets or funds, they may be subject to the valuation and operational risks inherent in these assets and markets as well as to risks of fraud or those derived from investing in unregulated or unsupervised markets or in unlisted assets. Past returns are not indicative of future results. Returns have been calculated based on net asset value, after commissions and annualized for periods of more than one year. Any mention of taxation should be understood to depend on the personal circumstances of each investor and may vary in the future. The accounting or market information included in this file has been compiled from sources that [manager name] considers reliable, although it has not confirmed or verified its accuracy or that it is complete. [Manager name] does not assume any responsibility for the use of the information contained in this document.

Past performance is not necessarily indicative of future performance.

D: DISCLAIMERS – AIFMD MARKETING PASSPORT

See Written Disclaimer for Open-Ended Funds in Appendix 1.D. which applies equally to Closed-Ended Funds.

Depending on the context, the following may also be required:

Please note that the issuance of units of [Name of the AIF Fund] is exempt from the requirement to publish a prospectus in accordance with Article 1.4(b) of Regulation (EU) 2017/1129 of the European Parliament and

of the Council of 14 June 2017, and Article 36 of Law 6/2023 of 17 March, as it constitutes an offer [of securities addressed to fewer than 150 natural or legal persons, other than qualified investors / an offer of securities whose denomination per unit amounts to at least EUR 100,000]. The Depositary of the funds is [relevant information regarding the depositary]. Investment in investment funds or other financial products indicated herein may be subject to investment risks: market risk, credit risk, issuer and counterparty, liquidity risks, currency risks and, where appropriate, emerging market risks. Additionally, if the funds materialize their investments in hedge funds, or in real estate, commodities or private equity assets or funds, they may be subject to the valuation and operational risks inherent in these assets and markets as well as to risks of fraud or those derived from investing in unregulated or unsupervised markets or in unlisted assets. Past returns are not indicative of future results. Returns have been calculated based on net asset value, after commissions and annualized for periods of more than one year. Any mention of taxation should be understood to depend on the personal circumstances of each investor and may vary in the future. The accounting or market information included in this file has been compiled from sources that [manager name] considers reliable, although it has not confirmed or verified its accuracy or that it is complete. [Manager name] does not assume any responsibility for the use of the information contained in this document.

Past performance is not necessarily indicative of future performance.

E: [Intentionally Not Used]

F: DISCLAIMERS – OTHER MARKETING PASSPORTS AND MUTUAL RECOGNITION SCHEMES

N/A

G: DISCLAIMER - PRE-MARKETING

See Appendix 1.G. above.

APPENDIX 3**DISCLAIMERS: INVESTMENT MANAGEMENT & ADVISORY SERVICES****A: WRITTEN DISCLAIMERS****Wording to be used when responding to a reverse enquiry:**

There is no recommended or required form of wording. However, the OFI should expressly state if the marketing is a result of the exclusive initiative of the Client.

Wording to be used where firm has applied to use the route for Authorised Non-EU Entities:

There is no recommended or required form of wording.

B: ORAL DISCLAIMERS

There is no recommended or required form of wording. However, the OFI should expressly state if the marketing is as result of the exclusive initiative of the Client.

C: DISCLAIMERS – RETAIL INVESTORS**Wording to be used when responding to a reverse enquiry:**

There is no recommended or required form of wording. However, the OFI should expressly state if the marketing is a result of the exclusive initiative of the Client.

APPENDIX 4

DISCLAIMERS: OTHER

A: GENERAL MARKETING DISCLAIMER

We recommend to include the below wording in the general marketing materials to be provided in Spain. However, this would not impede the CNMV or the Bank of Spain to consider this as marketing of Investment Management & Advisory Services (and therefore triggering licensing requirements).

This document is intended for information purposes only and does not constitute advice, an offer or an invitation by, or on behalf of, [●] to buy or sell any fund interests, securities or other products or to participate in any particular trading strategy in any jurisdiction.

B: INTERNET DISCLAIMER

Non-targeted pages: No specific wording required to the extent that such webpages cannot be considered targeting the Spanish market, because of the language (not Spanish) and because no information is addressed to Spanish resident clients in particular or information of Spanish interest only.

Targeted pages: If the relevant webpage or social media site could potentially be considered to be targeting the Spanish market, the following disclaimer could be of some use:

“There may be legal restrictions on the distribution of the information contained on this website and persons who access it are required to comply with any such restrictions. The information in this website is not intended to be published or made available to any person in any jurisdiction where doing so would contravene any applicable laws or regulations.

By accessing this website you confirm that you are aware of the laws in your own jurisdiction relating to the provision and sale of funds and related financial services products and you warrant and represent that you will not pass on or utilise the information contained on the website in a manner that could constitute a breach of such laws. The information contained on the following pages does not constitute a solicitation in any jurisdiction in which solicitation is not authorised or to any person to whom it is unlawful to make such a solicitation. In any event, unless expressly stated otherwise, the information does not constitute an offer to enter into any agreement or to purchase any fund interests.

The information on the following pages in Europe is directed solely at persons who would be constituted as Professional Investors in accordance with Directive 2014/65/EU of the European Parliament and of the Council of 15 May 2014 on markets in financial instruments and amending Directive 2002/92/EC and Directive 2011/61/EU and with Law 6/2023, of 17 March, approving the restated text of the Securities Market Act.

The information on the following pages is provided for information purposes only and does not constitute investment, legal, tax or other advice or any recommendation to buy, or sell or otherwise transact any of the funds or stocks mentioned. Prospective investors should take appropriate professional advice before making any investment decision. Investments in the funds must be made solely on the terms of the relevant prospectus and no reliance should be placed on any other information contained on the website. In all cases where historical performance is presented, note that past performance is not indicative of future results and you should not rely upon it as the basis for making an investment decision.

Further, the information on the following pages does not constitute "marketing" as defined in Directive 2011/61/EU of the European Parliament and of the Council, of 8 June 2011, on Alternative Investment Fund Managers and amending Directives 2003/41/EC and 2009/65/EC and Regulations (EC) No 1060/2009 and (EU) No 1095/2010.

By accessing to this website, you represent, warrant and agree that you (1) have read and understood the information set out above, (2) agree to be bound by these terms, and (3) are permitted under applicable laws and regulations to receive the information contained on the pages that follow.

If you cannot so certify and agree, you must exit this website.”

C: VIRTUAL MARKETING - DISCLAIMER

See response in 8.5(i).

D: MARKETING COMMUNICATIONS – DISCLAIMER

Note that if the communication is a “marketing communication” within the scope of the ESMA Marketing Guidelines, then an appropriate disclaimer is required e.g.: *“This is a marketing communication. Please refer to the [prospectus of the [UCITS/ AIF/EuSEF/EuVECA]/Information document] of the [AIF/EuSEF/EuVECA] and to the [KID] before making any final investment decisions.”*

Note that where the medium does not allow for the above language, a shorter disclaimer can be used such as “Marketing communication” or #MarketingCommunication.